



PROFILE OF INTERNAL DISPLACEMENT : PHILIPPINES

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PROFILE SUMMARY

Continued instability in Mindanao threatens IDP rehabilitation

The ceasefire agreed in July 2003 between the government and the Moro Islamic Liberation Front (MILF) – the main rebel group fighting for independence on the southern island of Mindanao – has been holding relatively well in the past two years and the absence of any major clashes has allowed for the return of the vast majority of the estimated 400,000 people displaced in 2003. Mindanao remains nevertheless a troubled region where the presence of other armed groups such as the rebels of the communist New People's Army (NPA) or the Abu Sayyaf group is a regular cause of displacement. Nearly 160,000 people have reportedly been displaced in the Philippines since the beginning of 2005, mainly in the Muslim-populated areas of Mindanao. With the exception of Sulu, an island province in south-western Mindanao, where weeks of intense fighting between government forces and a faction of the Moro National Liberation Front (MNLF) forced an estimated 85,500 people from their homes, most displacements during 2005 have been short-term with people returning after a few days or weeks. A significant number of internally displaced persons (IDPs) – estimated at 60,000 people – remain, however, displaced throughout the island. This figure includes people who were displaced by the 2000 and 2003 wars and who are reluctant to return to areas where frequent skirmishes threaten their safety, as well as people who are still waiting for the government to help them rebuild homes and livelihoods destroyed during the conflict.

An 18-month government-United Nations programme, which started in October 2004, is currently addressing the assistance and rehabilitation needs of the displaced. Often forced from their homes for the second or third time, the displaced are in dire need of rehabilitation assistance to restart their lives, but they also need guarantees that they will not be displaced again by yet another outbreak of fighting. While signs are positive that a peace deal might be reached between the government and the MILF in the coming months, it will be important to ensure that it not only includes provisions for the return and reintegration of IDPs, but also that it is accompanied by strong anti-poverty and development measures for Mindanao. Addressing the root causes of the conflict in Mindanao is the only way to ensure a lasting political settlement and prevent future cycles of displacement and destitution for the Mindanoans.

Background and main causes of displacement

The conflict in Mindanao is rooted in the general underdevelopment of the region, the unequal distribution of wealth, and the lack of sufficient effort by the central government to integrate the Muslim (or "Moro") population into the political and institutional fabric of the country. The fighting and displacement is mainly concentrated in the Muslim-populated areas of central and south-western Mindanao, where the rich reserves of untapped natural resources and raw materials have been an added factor in the government's fight against Muslim secessionist movements there since the 1970s (Oxfam, November 2000, pp.4-5). Other causes of insecurity in Mindanao include military operations against the rebels of the communist New People's Army (NPA), widespread banditry and clan disputes (or "rido"), which sometimes degenerate into wider armed incidents involving the military and Muslim armed groups.

In 1996, a peace agreement between the government and the rebel Moro National Liberation Front (MNLF) – the first Moro armed separatist group – was signed, allowing the implementation of the 1976 Tripoli Agreement, which established some degree of autonomy in 13 provinces and nine cities in the southern Philippines. The agreement was, however, rejected by the Moro Islamic Liberation Front (MILF), a splinter group from the MNLF established in 1984 with a more religious agenda (USIP, January 2005, p.5). The MILF, nevertheless, agreed to open discussions with the government and a ceasefire agreement was signed in 1997. It was, however, repeatedly violated in the following years.

In 2000 President Joseph Estrada's "all-out war" on the MILF displaced nearly one million people from their homes in Mindanao (UNDP, 13 November 2000, p.4). The Tripoli Peace Agreement was signed in June 2001 between the MILF and the government and was reinforced in May 2002 by the establishment of guidelines explicitly providing for the return and rehabilitation of the displaced (or "evacuees"). However, repeated violations of the ceasefire by both sides during 2001 and 2002 meant that people in Mindanao continued to be displaced by armed clashes, which also hampered the return of many IDPs to their homes.

In February 2003, large-scale military operations resumed when government forces attacked MILF camps in central Mindanao. Hundreds of thousands of people, often the same ones who had already been forced to flee in 2000, were drawn into yet another cycle of displacement. Intense bombardments, burning of houses and a significant militarisation of the area triggered massive evacuations of people to safer places. An estimated 411,000 people were displaced between February and May 2003 (DSWD, 9 October 2003). A ceasefire agreed in July 2003 put an end to the fighting and allowed for the return of most of the displaced.

Despite several incidents involving the MILF and the government forces during 2004 and 2005, the ceasefire generally has been holding well. This success is largely due to the improved dialogue and confidence-building measures established between the government and the MILF, namely through the Joint Coordinating Committee on the Cessation of Hostilities (JCCCH); this has prevented armed skirmishes and army operations against criminal gangs from turning into larger armed confrontations. Also, a Malaysian-led international monitoring team has been deployed in Mindanao since October 2004 and has helped to maintain the ceasefire. The latest round of peace talks took place in Malaysia in mid-September, with both parties confident that a final settlement could be reached before the end of the year (The Inquirer, 17 September 2005).

While peace prospects between the MILF and the government are now quite good, it is yet another peace deal struck nine years ago between the government and the MNLF that has become a cause of concern. The resumption of fighting in February 2005 between the government and the MNLF in the island province of Sulu has raised concern that the 1996 peace deal might be at risk. Almost a decade after the agreement, Manila's promises of development of the Autonomous Region of Muslim Mindanao (ARMM) have reportedly not done much to improve the socio-economic conditions in these provinces which remain the poorest of the country. While the average percentage of families in poverty at the national level decreased from 40 to 34 per cent between 1991 and 2000, this figure rose by 15 per cent in the ARMM region to reach 66 per cent (International Alert, December 2003, p. 58). The August 2005 ARMM elections, boycotted by many MNLF leaders, resulted in the victory of the Manila-backed candidate who became the first non-MNLF governor of the region (Reuters, 12 August 2005). In mid-September, one of the main leaders of the MNLF accused the government of failing to respect the 1996 peace agreement and warned that the MNLF might resume its armed struggle (Reuters, 13 September 2005).

Military operations displaced nearly 160,000 people in 2005

Since the beginning of the year, the Philippines, and in particular the southern island of Mindanao, has witnessed regular clashes between the security forces and rebel groups belonging either to the communist NPA or to one of the main Moro rebel groups – the MILF or the MNLF. Most incidents were caused by military operations – officially aimed at hunting down the al-Qaeda-linked Abu Sayyaf group – taking place in or close to MILF- or MNLF-controlled territory and therefore almost inevitably turning into armed incidents with the Moro rebels.

From January to September 2005, a total of 158,375 people have reportedly been displaced by these armed encounters with the worst incident taking place in Sulu province in early February and resulting in the displacement of more than 85,000 people (GIDPP, 15 September 2005). Most displacement incidents during the year were relatively short-term with people returning home as soon as the fighting subsided.

In the first week of February 2005, government forces launched a massive military operation against Muslim rebels in Sulu, a MNLF stronghold. As a result of the heavy fighting which lasted from February to April, and which reportedly included indiscriminate aerial bombing and shelling of civilian areas, some 85,500 people were forced from their homes (Kalinaw Mindanao, April 2005, p. 11). Although the majority managed to return as soon as the fighting subsided, more than 8,000 people remained displaced as of June 2005 (DSWD-DROMIC, 9 June 2005). In September 2005, a civil society group in Sulu claimed that more than six months after the fighting started “thousands of families” remained displaced because of the military operations (Mindanews, 3 September 2005).

The second largest displacement incident occurred one month earlier on 9 January 2005 in Mamasapano, Maguindanao province, when an estimated 35,000 people fled their homes due to clashes between MILF rebels and government forces. Both sides were quick to play down the incident as they stated that it would not affect the ongoing peace talks. The MILF acknowledged responsibility for the attack, which they claim was ordered by a renegade local commander without the approval of the MILF leadership. The majority of the displaced managed to return in the weeks following the incident (DSWD-DROMIC, 26 January 2005).

Armed encounters between the communist NPA and the military have been occurring regularly during 2005, although these have generally caused small displacement movements limited to a few hundred people. A significant displacement however took place in Surigao del Sur province in north-eastern Mindanao in May, when an estimated 4,000 people fled military operations conducted against NPA rebels (DROMIC, 26 May 2005). In early September 2005, the communist rebels and the government agreed to resume formal peace talks, at a standstill since August 2004 (DPA, 7 September 2005).

An estimated 60,000 people remain displaced

Since the end of the 2000 campaign, Mindanao has never really been at peace. Although with the exception of the February 2003 operation and more recently the February 2005 fighting in Sulu, no major combats have taken place in the region, frequent skirmishes remain a constant threat, in particular for communities near military and rebel camps, and continue to displace smaller numbers of people.

This continued instability and the lack of post-conflict assistance means that in addition to those uprooted during 2005 there are also a number of people who have remained displaced for two to five years. It is estimated that as of September 2005, a total of 60,000 people were internally displaced due to conflicts in the Philippines. The vast majority of the IDPs are located in the Muslim-populated areas of the ARMM region in Mindanao. During the fighting in February 2003 that displaced more than 400,000 people, the areas most affected by fighting and displacement were the provinces of Maguindanao, North Cotabato, Sultan Kudarat, Lanao Del Sur and Lanao del Norte in central and western Mindanao (DSWD, 9 October 2003). During 2005, most of the episodic displacements took place in the same provinces sometimes affecting the same communities as in 2000 and 2003.

The internally displaced people are usually poor and uneducated peasants fleeing their homes for fear of being caught in the crossfire or after being ordered to leave by the military. The vast majority of the displaced are Muslims, a reflection of the overall ethnic composition of the areas affected by fighting (Oxfam, January 2001, p.19).

Women and children most vulnerable to displacement

Most of the displaced are women and children. They usually seek refuge in neighbouring villages and main urban centres where they have been sheltered in evacuation centres, schoolrooms, mosques, chapels and other public buildings. Some live in what have become permanent evacuation centres or stay with friends and relatives (UNDP, 21 September 2004, p.1).

Displaced women and children were among those most directly and adversely affected by the violence and displacement. Conditions in evacuation centres in Sulu were generally described as inadequate, with insufficient food, poor medical facilities and sanitation, resulting in health risks for the most vulnerable (Mindanews, 19 February 2005). Prolonged stays in the evacuation centres tend to expose displaced children – reported to constitute 60 to 70 per cent of the IDP population – to ailments such as flu, skin disease, coughing, measles, diarrhoea and typhoid fever (Notre Dame University & Commission on Population, January 2004, p.34). At the end of August 2005, three children staying in evacuation centres in Guindolongan, Maguindanao province, reportedly died as a result of diarrhoea (Mindanews, 2 September 2005).

During displacement, roles of family members tend to be altered. Faced with limited authority and great dependency, men tend to show signs of depression and frustration which sometimes result in domestic violence (WB, January 2005, p. 9). Although there is hardly any data available on the psychological effects of conflict and displacement on children there is little doubt that they bear the brunt of the disastrous effects of war and displacement (Save the Children, 2004, p.103). A study conducted by Balik Kalipay, an academic project, in 2002 among 1,200 children in Pikit, North Cotabato showed that 94 per cent of them manifested trauma symptoms (WB, January 2005, p.6).

The continued presence of MILF or government forces in villages of origin, traumatic memories of the violence the displaced have witnessed or endured, lack of basic services and limited housing possibilities are among the reasons for not returning. Many IDPs have also enrolled their children in schools in their area of displacement or have established new livelihoods and do not wish to be relocated again (Notre Dame University & Commission on Population, January 2004, pp.31-32).

Returnees need more assistance to rebuild their lives

War and displacement have greatly disrupted the lives of the people in Mindanao. Prior to the eruption of violence in 2000 and 2003, Mindanao, and in particular the Muslim-populated ARMM, already ranked among the poorest regions of the country (WB, 3 March 2003, p.9). Available socio-economic indicators show that while the percentage of the population living in poverty stands at 36 per cent in Maguindanao province, more than nine families out of ten live below the poverty level in Sulu province, where nearly 15 per cent of the population was displaced in February 2005 (International Alert, December 2003, p. 57).

Forced to leave their properties and livelihoods – often destroyed or looted during the fighting – the displaced become even more vulnerable and dependent on external assistance. When they finally return to their homes, they face many challenges. These include lack of housing, food scarcity, lack of sources of livelihood, poor water and sanitation conditions, lack of access to health care and poor education facilities for their children (CFSI, October 2003, p.14). Although the availability and delivery of immediate relief assistance during displacement has tended to improve in recent years, there remains an important post-conflict assistance gap (Save the Children, 2004, p. 104).

The government estimates that the 2003 fighting damaged close to 7,000 houses, 70 per cent of which were located in Maguindanao province (DSWD, 22 July 2003). By early 2004 some 3,000 replacement houses – or just a little over 50 per cent of the targeted 5,800 core shelter units – had been completed. However, in March 2004, lack of funding reportedly started hampering the completion of the housing programme (DSWD, 31 March 2004). Between October 2004 and March 2005, some 241 core shelters were built in the Provinces of Cotabato, Zamboanga del Norte, Maguindanao, Sulu and Basilan as part of an IDP rehabilitation programme implemented jointly by the government and the United Nations (Government of the Philippines, 23 May 2005).

The presence of landmines and unexploded ordnance near villages and on land the displaced are returning to is putting their lives at risk and hindering their rehabilitation. Many of the displaced are farmers and are dependent on access to their land for survival. Access to the villages and farms is often restricted by the

military. When displacement occurs during harvesting times, the displaced face the risk of losing their crops and means of survival if they cannot access their lands. Despite the fighting and the risk, some farmers have reportedly preferred to stay near their homes to ensure that they could harvest their crops and feed their family (Bantay Ceasefire, 28 July 2005; Mindanews, 19 August 2005).

Assistance to IDPs

The Philippines government generally acknowledges its responsibility vis-à-vis IDPs and has assisted them through the Department of Social Welfare and Development (DSWD), the Office of Civil Defence, the National Red Cross and local authorities. However, as was noted by the UN Secretary-General's Representative on Internal Displacement, there are often gaps between positive intentions and statements made by the government on behalf of the evacuees and their practical implementation on the ground (CHR, 3 February 2003, p.12).

These shortcomings reportedly resulted from a lack of capacity of national and local institutions to effectively deal with the scale of displacement and from a lack of funding, making local authorities, especially in the poorest areas of Mindanao, dependent on external aid to assist the displaced. This has meant that assistance was often short-term and inadequate to meet the needs of the displaced (Notre Dame University & Commission on Population, January 2004, p.48). Other limitations of the assistance efforts include the cyclical nature of war and displacement in Mindanao, which tend to render rehabilitation efforts unsustainable, as well as the limited coverage of assistance programmes (Janet M. Arnado & Mary Ann M. Arnado, 15 November 2004, p. 75).

Complementing the efforts of the government, many civil society bodies, including local NGOs and church organisations, participate in the relief and rehabilitation efforts, often filling existing assistance gap. Other initiatives from civil society include the Mindanao Emergency Response Network (MERN), a coalition of national and international NGOs, and Bantay Ceasefire, a network of grassroots organisations that has since January 2003 conducted investigative missions of armed incidents and has established early warning networks in the field capable of preventing small incidents from turning into larger confrontations (PRWeb, 9 March 2004).

Under a government-United Nations Multi-Donor Programme, now in its third phase, the international community and the UN have over the past few years been assisting the conflict-affected region of Mindanao by providing emergency relief assistance to the displaced and assistance to communities to foster rehabilitation. They have also provided the authorities at the national and local level with assistance to deal with humanitarian emergencies. At the end of 2004, the UN Development Programme and the European Commission started to implement an 18-month rehabilitation project benefiting people displaced by armed conflicts in Mindanao, particularly in the provinces most hit by the fighting and destruction (Government of the Philippines, 28 September 2004). The project is aimed at addressing the rehabilitation and resettlement requirements of some 10,000 displaced families (or 60,000 individuals) in 35 selected conflict-affected communities in Mindanao (UNDP, 21 September 2004, p.1). As of 30 June 2005, 32 out of 35 selected areas had already benefited from some sort of rehabilitation assistance and 20,500 IDP families or 120,000 people, most of them displaced during 2005, had received relief assistance (Government of the Philippines, 20 July 2005).

During 2004, a Joint Needs Assessment (JNA), involving all key stakeholders including the MILF, was conducted in conflict-affected areas in Mindanao. The aim was to assess the assistance and rehabilitation needs of the affected communities and to identify the priorities within a comprehensive reconstruction and development strategy for Mindanao (MEDCo, 3 November 2004). The JNA, which was due to be finalised by the end of September 2005, is seen as an important tool to promote peace and development in Mindanao and to ensure a successful peace agreement between the government and the MILF.

With a peace deal between the MILF and the government expected to be reached before the end of the year, both parties now have a chance to end decades of conflict in Mindanao and to reiterate their commitment to facilitate the return and rehabilitation of the displaced. Only a political solution, accompanied by strong anti-poverty and development measures for Mindanao is likely to put an end to the conflict and ensure that the conflict-affected people will not have to face yet another cycle of displacement and destitution.

CAUSES AND BACKGROUND OF DISPLACEMENT

Background

Background to the Moro struggle in Mindanao

- Spanish control came quite late and remained tenuous in southwestern and western Mindanao.
- Mass migration of Christian settlers during 1950s and 1960s altered the demographic balance to the detriment of the Muslims or 'Moros'.
- During the early 1970s, the secessionist MNLF started waging war against the government in the Sulu archipelago.
- An agreement was reached in Tripoli in 1976, but its contested implementation led to the emergence of other armed groups (MILF).
- The 1996 agreement signed between MNLF and government allowed for the implementation of limited autonomy in the Muslim-populated provinces of Mindanao, but has failed to satisfy popular expectations.
- MILF has drawn on these frustrations and has continued the armed struggle against the government.

"The Philippines traces its unique status as Asia's sole Christian-majority state to more than three centuries of Spanish colonial rule (1565–1898). Ninety percent of the country's 82 million people profess Christianity today, but in the southwestern provinces of the Sulu archipelago and western Mindanao, where Spanish control came late and remained tenuous, indigenous state formation proceeded much further than anywhere else in the country, undergirding a tradition of resistance to alien rule. Muslim sultanates in Sulu (from about 1450), Cotabato (c.1515) and Lanao (c.1600) retained varying degrees of independence well into the nineteenth century, only becoming fully incorporated into the Philippines under the aegis of American colonialism (1898–1946), and giving rise to a transcendent, multi-tribal "Moro" identity. In the final decades of U.S. rule, and accelerating through the 1950s and 1960s, mass migration from the Christian North to the Mindanao frontier fundamentally altered the demographic balance in the South, today leaving Muslim majorities in only five of the region's twenty-five provinces. This shift coincided with a revival of Islamic consciousness beginning in the 1950s.

Intensifying electoral competition in the newly vote-rich South between 1967–71, combined with proliferating land disputes and armed militias, led to a spiral of sectarian polarization. Beginning in Cotabato province, at the forefront of postwar Christian in-migration, in early 1970, militia skirmishes spread rapidly to Lanao in 1971 and Zamboanga in early 1972. President Ferdinand Marcos, facing the end of his final term in office, cited this disorder in imposing martial law on the country in September 1972 and overthrowing the constitutional system. By December, the armed forces were locked in full-scale civil war with the secessionist Moro National Liberation Front (MNLF) on the island of Jolo, and by early 1973, mainland Mindanao was also at war. The intercession of the Organization of the Islamic Conference, lead by Libya, helped bring about a cease-fire and autonomy agreement in Tripoli in December 1976, but the subsequent splintering of the MNLF into a number of contending factions, and disputes over Tripoli's implementation, have continued to draw the conflict out. To date, possibly 120,000 have died in the fighting, and millions have been displaced.

A "final" autonomy agreement mediated by Jakarta in 1996 now embraces all five Muslim-majority provinces, but has failed to satisfy popular expectations, or the demands of three main armed factions. The

Moro Islamic Liberation Front (MILF), which broke away from the MNLF after Tripoli, commands widespread support among Maguindanao and Maranao Muslims in the Cotabato and Lanao regions, and is engaged in a fragile peace process supported by Malaysia and the United States. An MNLF faction lead by imprisoned founding chairman Nur Misuari is strongest in Sulu. The Abu Sayyaf Group (ASG), centered on the Sulu and Basilan islands, is far smaller, but highly mobile, and draws on kinship ties with MNLF and MILF members to seek refuge from government forces. At other times ASG and government elements may act in collusion. Further complicating this volatile situation are transnational terrorist networks linked to Jemaah Islamiyah and al-Qaeda, which view the Southern Philippines as a key front in their wider regional and global jihad." (East-West Center Washington, 2005, p. 63)

Mindanao's conflict is largely concentrated in resource-rich, under-developed, Muslim-populated areas

- Muslim provinces are largely under-developed compared to the rest of the country.
- The moro (Muslim) areas in Maguindanao, Sultan Kudrat, North and South Cotabato, Basilan and the Sulu islands have rich reserves of untapped natural resources, raw materials and, cheap labor.
- Mindanao represents 48 per cent of gold production, 63 per cent nickel and 18 per cent charcoal in the country's total reserves.
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"The conflict in Mindanao has been only one of five major conflicts in the Philippines since independence. It has largely been concentrated in the Muslim-majority areas of central and southwestern Mindanao, which consists of three of today's administrative regions (Region IX—Western Mindanao; Region XII—Central Mindanao; and the Autonomous Region in Muslim Mindanao, or ARMM) and of four provinces in Region XI—Southern Mindanao (Davao del Sur; Sarangani; South Cotabato; and Sultan Kudarat).

Resistance to central control and resentment at the increasing number of Christian settlers, as well as the logging and mining activities, which had become important sources of export earnings, was at first organized under the aegis of the Moro National Liberation Front (MNLF), formed in the late 1960s and until the 1990s largely accepted as representing the interests of Mindanao's Muslim population. Despite the formation of ARMM in 1989 and the formal acceptance of the 1996 peace accord between the Government and the MNLF, the armed conflict continued. The Moro Islamic Liberation Front (MILF) emerged as the Government's main opponent. The MILF, as the name suggests, is more religion-oriented than the nationalistic-oriented MNLF, but is in no way comparable in attitudes or practices to Islamic fundamentalist organizations elsewhere in East Asia. The Moros have benefited from the support of the Organization of Islamic Conferences, and have maintained close relations with Muslims in Indonesia and Malaysia. However, MILF relations with the small terrorist (and largely criminal) group Abu Sayyaf and the Indonesia-based Jemaah Islamiyah have been sporadic and loose, and in the context of the on-going peace discussions the MILF has distanced itself completely from those organizations.

Overall, although religious differences have partly shaped the conflict, the roots of the conflict have been the clash of interests in land and other natural resources, and the identity issues emerging from the de facto second-class status of much of the Moro population. Complicating the picture, a number of non-Malay indigenous peoples (collectively referred to as "Lumads") have historically been pushed aside in turn by Spanish and American colonizers, Christian settlers, and the Moros themselves. They were first displaced from the lowlands to the highlands (mainly in the Cotabato-Sarangani area); then put under pressure from the outsiders' rush to exploit the timber and the gold of the highlands; and today are viewed as inferior (including by the Moros themselves), and lack a role and a voice in the peace negotiations. Yet, loosely paralleling the situation in the Amazon basin, the involvement of indigenous people in the peace process and their active cooperation with its implementation will be important not only in itself and for a lasting political solution, but also for a healthy environmental protection strategy.

As inevitable in a brief summary, the situation on the ground is more complex than indicated here. There are three major complicating factors. The first is the vast difference in economic interests among Christians themselves between the economic and commercial elite and the majority of Christians. The other two are more directly relevant to the violence. Chronic conflict among different “clans” (sometimes erroneously referred to as “tribes”) within the Muslim population, generates some part of the violence and sporadic flare-ups—often drawing in military reaction. Also, ordinary but widespread banditry confuses both the origin of violent attacks, extortion and kidnapping and the often indiscriminate response of the Philippine military. To some extent, the internecine conflict among Muslim “clans” have been suppressed or hidden by the nationalist-religious organized rebellion, and the existence of a common “outside” opponent. To that extent, therefore, peace might allow them to bubble up to the surface, and a significant qualifier should be appended to the probability of realization of the dynamic benefits and potential peace dividends listed later in this paper. On the other side of the ledger, however, peace would also contribute to restoring law and order and improving overall security in central and southwestern Mindanao." (WB, February 2005, pp. 1-2)

February 2003 attacks on MILF camps seen by local groups as part of a strategy to expropriate Moro people from their lands

"'Poor people in a rich country' is the sad and ironic reality for both the Filipino and the Bangsamoro people. A serious look at the situation of the Bangsamoro specifically in their traditional homeland will bring one to understand why their communities remain a battlefield between people in resistance and forces who want to subjugate them and expropriate their lands.

To give us a glimpse:

Davao, Cotabato, Basilan, Sulu and Zamboanga are host to a number of rubber, timber, banana and pineapple plantations that bring wealth to a number of big corporations operating in the Philippines. These are the same provinces where one finds Bangsamoro communities who, amidst a backdrop of wealth, still remain in abject poverty;

The Philippines has the capacity to produce 8 barrels of oil and natural gas every day and as much as 500 to 600 barrels of crude oil every day. More than 60% of these resources can be found in Mindanao.

According to the Philippine Contracting Round (PCR) conducted by the Department of Energy (DOE) on August 2003, there are 3 major oil sites in the Philippines namely the Palawan Waters, Sulu Sea Basin where the Reed Bank and Cotabato Basin could be found. Upon U.S. President Bush's State Visit last August 2003, the Arroyo government promised to open more than 46 "oil and exploration contracts" in the South China Sea and Mindanao. Not coincidentally, Liguasan Marsh, which is part of the Reed Bank and Cotabato Basin, was the target of the AFP-led attack in 2003 ostensibly to flush-out the MILF guerillas. Sulu now is under heavy military operations. Palawan is also home to a number of Bangsamoro communities." (NCCP & MCPA, 21 February 2005, p. 7)

"All-out" war in 2000 attributed to the presence of vast natural resources in Mindanao's Moro areas

"Mindanao spreads over 94, 229 sq km/34 percent of country's land area and provides a substantial contribution to the country's economy. The moro areas in Maguindanao, Sultan Kudrat, North and South Cotabato, Basilan and the Sulu islands have rich reserves of untapped natural resources, raw materials and, cheap labor. The GoP's all-out war against the MILF has mainly been because of these resources.

As many observe, Mindanao is the 'Land of Promises' and in fact is the 'Rice Bowl' of the Philippines. The land is characterized by fertile soil suitable to cultivate a variety of crops and has a timberland of nearly 39 per cent of nation's forest cover, despite massive deforestation. These areas, especially those within the MILF camps have potentials for super profits.

Mindanao represents 48 per cent of gold production, 63 per cent nickel and 18 per cent charcoal in the country's total reserves. The Philippine National Oil Company (PNOC) is eyeing on a marshland in the said area for natural gas extraction. The Moroland Sugar Corporation is planning to establish a milling facility within a 25,000 hectare land area which will traverse six municipalities. The Consunji concession and a Malaysian corporation are planning to log and to put up a palm oil tree plantation respectively in the town of Buldon. These are but examples of the region's potentials as an investor's haven. The MILF is a deterrent to the government's program of attracting more foreign investors in the region." (Oxfam November 2000 pp. 4-5)

For more information about the MILF and the Moro struggle see:

[“Overview of the Moro struggle through history”](#) and [“The Moro struggle for self-determination and the Moro Islamic Liberation Front”](#), by the Task Force Detainees of the Philippines (TFDP), May 2000

The international context (September 2002)

- The conflict in the Southern Philippines has an international dimension, especially in relation to the Muslim world and neighboring countries.
- The war on terrorism at the international level tends to condition the conflict in the Southern Philippines at the military, political, psycho-social, and even cultural levels.
- As a result of the military pressure on Abu Sayyaf, the latter is increasingly isolated, reduced to its core cadre and support structures, and it is clearly on the defensive.

"The conflict in the Southern Philippines has always had an international dimension, especially in relation to the Muslim world and neighboring countries. The formation of the Moro National Liberation Front (MNLF) was influenced by the March, 1968 massacre in Corregidor of Muslim combatants linked to an aborted Marco Administration plan to foment rebellion in Sabah. Upon formation the MNLF received support and safe haven from Muslim countries, in part because of the Philippine claim on Sabah and the Marcos Administration's aborted attempt to pursue that claim by military means.

Inversely, the 1976, 1996, and 2001-2002 peace processes have all had intermediations from Muslim countries. Libya, Indonesia, and Malaysia have undertaken leadership roles in the intermediation of these processes. The Organization of Islamic Conference (OIC) has represented the Islamic world in general in the peace process through the Committee of Eight chaired by Indonesia.

In the 2001 and 2002 peace processes Libya and Malaysia have taken a lead role in facilitating GRP-MILF peace agreement within the framework of the territorial integrity and constitution of the Republic of the Philippines. The negotiations were undertaken between Kuala Lumpur and Tripoli. Likewise, these two countries also played proactive roles in the negotiations that led to the MNLF-MILF unity agreement.²⁵

The 2001-2002 peace and unity agreements and the positive international environment surrounding them could lead to further and much needed financial support for Mindanao from investors in Muslim countries. A first step in this direction would be palm oil plantation land for up to 270,000 hectares to be financed with Malaysian capital. This point is of importance inasmuch as at this historical juncture neither the Philippine national budget nor the quantum of external cooperation the country is receiving would be able to meet the financial requirements for constructing a sustainable peace in Mindanao. Investment would have to be the driving force with external cooperation and government programmes providing complementary financing. This of course is not a liability but in reality the ideal situation. Mindanao is quite fortunate that there is significant investor interest. However, the security threshold necessary to access

foreign direct investment is high. There cannot be significant foreign investment in Mindanao until sustainable peace is obtained and the law and security situation improves, especially in relation to kidnapping for ransom.

It is necessary to take advantage of the current positive international conditions because this window of opportunity may be short-lived. The 2001-2002 GRP objective of seeking a fast track to peace is congruent with international reality. The international war on terrorism is going to be fought principally in Muslim countries, or in Muslim regions of multicultural countries. This will increase polarization in the Islamic World, including non-Muslim countries with significant Muslim populations. It is thus better to reach agreements now before the situation becomes more complicated.

The war on terrorism at the international level has and will condition the conflict in the Southern Philippines at the military, political, psycho-social, and even cultural levels. It is a factor in the interaction of the different policy positions on peace and war in Mindanao, in the political processes within the Bangsamoro community, and in Philippine national public opinion.

To date the impact of the War on Terrorism is mixed but on balance positive. The pressure on Abu Sayyaf has increased given the higher level of activity of the AFP and Philippine National Police (PNP) backed by U.S. Army support. The rejection of Abu Sayyaf in Filipino public opinion and in the Bangsamoro community is strong, although family and clan loyalties are always a factor in the region. As a result of the foregoing Abu Sayyaf is increasingly isolated, reduced to its core cadre and support structures, and it is clearly on the defensive.

The GRP-MILF peace process was already well underway before 11th September, but the international and national atmosphere after that date indicates the wisdom of the timing of the MILF decision to retire from insurgent status. This has already brought tangible benefits for both the MILF and the peace process. For example, it was the intercession of the GRP engaged in the peace process with the MILF that got this organization taken off the U.S. State Department list of terrorist organizations. To be on that list today obviously would have major implications for the MILF, Filipino society and the GRP. It would have meant placing 15,000 experienced combatants in a pariah status that would preclude negotiations.

There has also been a hardening of public opinion in some circles of Philippine society and the State in relation to the peace processes in the South. Ample sectors of public opinion identify a generic Mindanao situation without distinctions as to different actors and processes. Some of these states of opinion are also fueled by prejudices that date back to the Spanish and their introduction of the term "Moro" in centuries in which Christian-Muslim wars on the Iberian peninsula were still relatively recent. Some elements have attempted to exploit this space by attempting to link Abu Sayyaf's need to find safe havens with MILF elements. Those who oppose the "Implementing Guidelines" of May 7th have also sought to mobilize public opinion against rewarding the Muslim insurgents of MILF with "the return to the camps" and the "management of national funds" after the sacrifices of the AFP soldiers who were killed or were wounded taking the camps. The bombing campaign of the "Indigenous Federalist People's Army" (IFPA) has attempted to project an image of endless chaos in Mindanao for national destabilization purposes. These factors have proven manageable and do not represent a threat to the peace process to date. " (UNDP 23 September 2002, pp. 31-33)

Causes of displacement

Conflict and displacement in Mindanao (1996-2000)

- Nationhood among Islamized ethnic groups in the south is based on specific ethnic identifications unified by Islamic tradition that first influenced the Sulu islands in the 13th century.
- The 1996 peace agreement between the MNLF and the GRP has not prevented the resurgence of armed conflict and the emergence of new representations asserted by the Moro Islamic Liberation Front (MILF) and the Abu Sayyaf (Father of the Sword) Group in Mindanao.
- In 1997, an attack by government forces on MILF's Rajamuda camp led to the displacement of 75,000 people.
- In 2000, all-out armed confrontations between government forces and the MILF, as well as the Abu Sayyaf, escalated in 9 municipalities of Maguindanao, 5 in Cotabato, 3 in Lanao del Sur, 1 in South Cotabato and in the cities of Cotabato and General Santos.
- By August 439,000 people had evacuated of whom 340,265 were housed in evacuation centers

"The Philippines has various ethnic minorities within the larger Christian-Filipino society. While the state has appeased most of the more than eighty ethno-linguistic groups nationwide, it has not made peace with the Islamized ethnic groups in the south. Nationhood among Islamized ethnic groups in the south is based on specific ethnic identifications unified by Islamic tradition that first influenced the Sulu islands in the 13th century. In the most recent phase of the Muslim struggle for nationhood, the Government of the Republic of the Philippines (GRP) made peace with the Moro National Liberation Front (MNLF) in 1996.

Despite high expectations, the peace agreement has not prevented the resurgence of armed conflict and the emergence of new representations asserted by the Moro Islamic Liberation Front (MILF) and the Abu Sayyaf (Father of the Sword) Group in Mindanao, now renamed as the Al-Harakatul-ul-Islamiya (Islamic Movement).

Barely a month after the signing of the Peace Agreement, the MILF prepared for war and began to reassert its own representation of the demands of the Moro people. In a display of mass strength during the Bangsa Moro People's Assembly in Cotabato City on 3-5 December, 1996, it declared its rejection of the Peace Agreement and reaffirmed its commitment to Islamic independence.

Four years later, all-out armed confrontations between government forces and the MILF, as well as the Abu Sayyaf, caught domestic and international public attention. Hostilities escalated in 9 municipalities of Maguindanao, 5 in Cotabato, 3 in Lanao del Sur, 1 in South Cotabato and in the cities of Cotabato and General Santos.

Refusing to recognize the MILF as a legitimate representative of the Moro people, the Philippine government engaged in dual tactics: military confrontations and piece-meal negotiations. Initial meetings between the MILF and the GRP in April, May and June of 1997 were bogged down by continued fighting. In June 1987[sic], government forces attempted to seize control of Camp Rajamuda, the MILF's second biggest camp, resulting in the displacement of around 75,000 people.

Intense fighting continued until July after which the GRP and MILF signed an Agreement on the General Cessation of Hostilities (AGCH). This was followed by the signing of the Implementing Administrative Guidelines on the AGCH on September 12, 1997. By November, the two parties had signed a Ceasefire Agreement.

Upon the election of Estrada to the presidency, his government appointed a new negotiating panel to talk peace with the MILF. What followed was a rough process that swung from war to negotiations finally leading to the government's all out offensive in April 2000.

Two days after the government offensive, the MILF unilaterally suspended talks with the government. By May 7, 2000, the Department of Social Welfare and Development (DSWD) reported that the clashes in Maguindanao, Cotabato and Lanao had already affected 23,031 families (123,758 persons of whom 74,691

were housed in evacuation centers). By August 439,000 people had evacuated of whom 340,265 were housed in evacuation centers." (Oxfam January 2001, pp. 5-6)

Nearly one million people displaced by government's war against the MILF rebels (2000)

- During 2000, increased militarization and fighting between the army and the MILF in Mindanao led to the destruction of over 6,000 homes and the internal displacement of nearly one million persons.
- Large-scale military operations have also been undertaken in Basilan and Jolo as part of search and rescue operations for Abu Sayyaf hostages.
- UNDP notes that only 10% of the persons whose homes have been destroyed desired to return to their place of origin as of October 2000, mainly because of the presence of the military around their homes.
- In Mindanao the evacuee camps were in a crisis situation during months with high mortality rates, especially among children.

"The militarization of the conflict in the course of the year 2000 has led to deterioration in the peace and development situation.

The government has successfully reasserted control over areas previously held by the Moro Islamic Liberation Front (MILF). The break-up of the territorial bases of the MILF has led to the fragmentation of its permanent forces into decentralized and at times independent guerrilla commands. Large-scale military operations have also been undertaken in Basilan and Jolo as part of search and rescue operations for Abu Sayyaf hostages held for ransom and as human shields. Terrorist tactics have been utilized by insurgents in central Mindanao and by the kidnapping gangs in Basilan and Jolo.

Increased militarization has led to more civilian than military fatalities. In the period of maximum combat in the year 2000 (January-August), there were 218 soldiers and militiamen killed and 354 civilian fatalities, as well as 457 MILF killed. The government also reports that more civilians died in the evacuee centers than in combat. That figure of over 700 civilian deaths in combat or in evacuee centers is greater than the combined soldier, militia, and MILF losses of 677 in the same period. Increased militarization has also led to the destruction of over 6000 homes and the internal displacement of nearly one million persons, 300,000 of whom were in that status in October 2000. The National Peace Forum identified two cases that they consider to constitute intentional destruction of housing by the Army (Nalapoan Pikit, North Cotabato and Matanog, Maguindanao). The same representatives point out that this should not be considered a pattern in that other cases have not been identified. However, the tactics employed did objectively lead to a large number of houses destroyed and a massive displacement of civilian population. The type of displacement produced is also qualitatively different from those seen in recent years. There now exists a tendency toward longer-term displacements for the first time since the 1970's. Only 10% of the persons whose homes have been destroyed desire to return to their place of origin as of October, 2000. In some cases relocation is being undertaken. The displaced persons do not wish to return to the locations of their previous homes due to the presence of the military, not because they fear the soldiers, but rather because stationary or in transit military draw MILF attacks that frequently place civilians in cross-fire situations. The net result is that human security in the areas affected has deteriorated as a result of militarization.

The levels and types of population displacements produced by militarization have the potential to reproduce the armed conflict through the expansion of the pool of potential insurgent combatants. In insurgencies with social and political support, acute or chronic civilian casualties, widespread destruction of property, and massive population displacements increase the pool of potential insurgents. New combatants may enter either established groups or form new ones. Evacuee camps, especially when they become permanent, often

become insurgent recruitment centers. The most critical group is quite obviously young unemployed men whose families have been affected by the conflict.

In Mindanao the evacuee camps were in a crisis situation in June as evidenced by high mortality rates, especially among children. The crisis has subsequently subsided but conditions in many camps remain overcrowded and deficient. Some people are being permanently relocated and some of the housing now considered temporary will most probably become permanent. Most all of the people in the camps can be considered poor in that people with more resources generally find other accommodations. All have suffered economic setbacks as a result of their displacement." (UNDP 13 November 2000, pp. 4-5)

For further details on the chronology of events, see "[How war erupted in Central Mindanao](#)", Gaston Z. Ortigas Peace Institute, 20 October 2000

Resumption of fighting between government and MILF displaces some 400,000 people (Nov. 2002- Dec. 2003)

- During 2003, the government's war against "lawless elements" resulting in a resumption of fighting with the MILF caused the displacement of 400,000 in Mindanao, mainly in the Muslim ARMM region.
- The conflict degenerated when in November 2002, massive deployment of government troops near the Liguasan Marsh and later in December fighting between military and MILF caused residents to flee their homes.
- In January 2003, massive evacuation of civilians started with at least 1,100 B'laan and Maguindanaon (indigenous peoples in Mindanao) families fleeing from seven barangays in Marang, North Cotabato.
- In early February, some 7,000 families or 42,000 persons, more than half of Pikit's population, fled their homes to avoid the clash between the MILF and the military.
- On February 11, a major offensive was launched by the government against the MILF.

"In 2003, two years after PGMA said that the task of rebuilding Mindanao, of achieving peace and oneness as a people, as a nation, should begin, renewed fighting broke out. The PGMA government publicly declared a war against "lawless elements" but whose real objective was revealed later as an offensive against Moro Islamic Liberation Front (MILF) forces allegedly massing up in the Buliok complex. The military eventually wrested control of the area from the MILF and even trumpeted the capture of the safe house of the MILF chairperson, Hashim Salamat. But the guerillas responded with ambushes, raids of military detachments and toppling of transmission towers.

This war was launched despite ongoing peace talks with the MILF and while agreements for a ceasefire was tenuously in place.

As a result, 400,000 human beings were displaced; their lives and livelihoods in shatters, and their children forced to abandon their education. As of July 2003, hundreds have yet to return to their homes and farms.

In June 17, it was reported that the refugee death toll has risen to 215, with 43 infants and children below 10 years old who had died of easily treatable diseases like measles, pneumonia, diarrhea and dehydration." (TFDP January 2004, p. 2)

"As early as November 2002, massive deployment of government troops has been reported near the Liguasan Marsh. There were also reports of fighting between government troops and the Moro Islamic Liberation Front last December 6, 2002, prompting some 300 residents of Sitio Lagao, Brgy. Langgapan, Sultan sa Barongis to flee their homes. Accounts from residents, say that the village was having a "*kanduli*" (Muslim thanksgiving festival) when around 100 soldiers came and burned at least 11 houses.

On December 7, 2003, Army soldiers picked up a Barangay council member from his house in Brgy Muslim, Talayan Mindanao. His body was later found that afternoon in the nearby village of Balabag. In the evening, more Army soldiers entered the village and clashed with MILF rebels. OV-10 planes also bombed Brgy Katibpuan.

On January 4, 2003, around 300 armed persons were sighted to have entered in the remote communities along the tri-boundary of Carmen, President Roxas and Arakan, all municipalities of North Cotabato, particularly in the municipalities beside the Pulangi River. This prompted the people in the community to move out from their homes and seek refuge to safer places. A few days later, the massive evacuation of civilians started with at least 1,100 B'laan and Maguindanaon (indigenous peoples in Mindanao) families fleeing from seven barangays in Marang, North Cotabato.

On January 25, more than 1,000 members of the 40th IB of the Philippine Army based in Carmen, North Cotabato conducted an operation in the area to check on the reported sightings of an armed group. A running battle ensued, which resulted to the killing and wounding of at least 17 persons.

On January 27, the Provincial Governor of North Cotabato backed up by a number of military men entered to check on the incident. Not less than 150 families evacuated to safer grounds. The military build-up starting February 7, 2003 prompted more families to move out from their homes. Evacuation of people was remarkable in Pikit, North Cotabato, where at least five tanks and 10 six-by-six trucks of soldiers or 3,000 government troops from the 602nd Brigade along with several Marine and Navy battalions were deployed. This forced the evacuation of at least 7,000 families or 42,000 persons, more than half of the town's population, to avoid the clash.

On February 11, 2003, an all-out-war offensive against the Moro Islamic Liberation Front (MILF) was launched by the Armed Forces of the Philippines. According to the military, the assault was purportedly launched to weed out the Pentagon Gang, a notorious kidnap-for-ransom gang, alleged to be hiding in the said area. However, the military through no less than Defense Secretary Angelo Reyes later claimed that the campaign, which is one of the biggest since government and the MILF began peace negotiations, is directed at the Moro Islamic Liberation Front and not against the Pentagon Gang. Moreover, some legislators claim that the ultimate game plan for the renewed military offensives in Mindanao might be the seizure of untapped resource-rich areas than to counter terrorism. Sen. Aquilino Pimentel and Rep. Gerry Salapudin said in separate interviews that the big natural gas deposits in the marsh might be the target of the military offensives.

It has been two weeks since the intense bombardment, but it seems that there is no respite in sight. Almost everyday, there are reported cases of hostilities. The heavy fighting affected at least 97 barangays in 24 municipalities from the four provinces of North Cotabato, Sultan Kudarat, Maguindanao and Sulu.

According to the February 20, 2003 Update Report of the government's Department of Social Welfare and Development (DSWD), a total of 34,745 families or 199,283 individuals were affected by the government's all-out-war. The evacuation of families and communities continue as the MILF launched retaliatory attacks." (ACT 4 March 2003)

Nearly 160,000 people displaced by conflict during 2005 (September 2005)

- Based on information published by the government's Disaster Monitoring Centre (DROMIC) and media reports, an estimated 158,000 people have been displaced by conflict since January 2005.

8,000 people displaced by military operations against suspected Abu Sayyaf members (Dec. 2004-Jan. 2005)

"THOUSANDS of villagers fled their homes in a Sultan Kudarat town, following a series of attacks allegedly perpetrated by Abu Sayyaf bandits operating in the area, officials said.

This prompted President Arroyo to order the military to crash the armed group the soonest possible time.

Palimbang Mayor Labualas "Samrod" Mamansual said based on the report submitted to him by his municipal social welfare development officer Marly Malalis, the confirmed number of evacuees, coming from the town's nine barangays, has reached to 2,011 families with a total dependents of more than 8,866, most of whom are children.

The affected barangays are Molol, Majales, Malisbong, Kraan, Maguling, Lumitan, klubi, Butril and Libong.

The evacuees are temporarily housed at the Malisbong Elementary and High School, Tagaltal Elementary School and Kolong-Kolong Primary School, all in Palimbang." (Sun Star Davao, 7 January 2005).

Around 35,000 people displaced in Maguindanao by MILF-AFP fighting (Jan. 2005)

"The encounter occurred when unidentified men harassed the army camp in barangay Linantangan, Mamasapano, Maguindanao on the midnight of January 9, 2005 that resulted to massive evacuations of residents from the fourteen (14) barangays of Mamasapano.

(...)

A total of 7,385 families or 35,381 persons from 27 barangays in the municipalities of Mamasapano, Shariff Aguak and Datu Unsay were adversely affected.

To date [26 January 2005], all the eighteen (18) evacuation centers utilized were already closed. The 3,502 families or 17,702 persons that took refuge for shelter inside the evacuation centers have returned to their respective places of origin. Further, 3,883 families or 18,309 persons stayed with their friends and relatives houses in nearby areas are back to their daily routines." (DSDW-DROMIC, 26 January 2005)

85,000 people displaced by major combats in Sulu province (Feb.-April 2005)

"Intense fighting started on February 6, Monday upon the alleged joint offensives of some 500 members of an MNLF Breakaway Group (MBG) together with some Abu Sayyaf elements against an army post in Panamao town in Sulu. On February 8, the AFP ordered the bombardment of alleged Abu Sayyaf lairs in Sulu hinterlands claiming that MBG gunmen have tied up with some 400 elements of the ASG (Quoted from Brig. Gen. Braganza, 17 soldiers killed in Sulu, PDI 2/9/05).

Aimed at pulverizing the MBG and the Abu Sayyaf, the military geared for war. SouthCom Chief Braganza was hence quoted as saying "I have ordered air strikes to punish these renegades... They have asked for it and they will get it (17 soldiers killed in Sulu, PDI 2/9/05)."

AFP troops reached about 3,000 at the earlier stage of fighting aided by howitzers, helicopter gunships, and OV-10s. Like wildfire, the fighting escalated and terror has spread to seven municipalities --- Panamao, the current center of action, Patikul, Panglima Estino, Indanan, Talipao, Luuk and Maimbung." National Council of Churches in the Philippines (NCCP & MCPA, 21 February 2005, p. 1)

"Reports gathered from the Department of Social Welfare and Development (DSWD) and Philippine National Red Cross (PNRC) – Sulu Chapter revealed that as of March 24, 2005, the internally displaced persons (IDPs) affected by the Sulu war was 9,879 families or about 57, 900 persons. This number is slightly reduced from the reported 15% of the total population (536,000) who rushed to safety during the height of the fighting in early February.

The DSWD admitted that at least 10,000 IDPs, who did not go to designated evacuation centers and instead sought refuge with their families and relatives are yet to receive assistance from the government. On this note, comes the impression that the data on the actual number of the IDPs may have been uncertain or inaccurate, in any case understated.

The largest number of the reported IDPs came from the municipality of Indanan, with 2, 963 families or 17, 778 persons; followed by Patikul with 606 families or 5, 611 persons; and then Panglima Estino with 956 families or 4, 577 persons. The biggest evacuation center in Sulu is in the elementary school of Panglima Mamah, which has no water source. The rest of the IDPs are from Panamao, Jolo, Parang, Kalingalan Caluang, Luuk and Maimbung towns." (Mindanao Peaceweavers, April 2005, p. 14)

"Thirteen thousand four hundred forty (13,440) families composed of 85,532 persons were affected.

A total of 1,601 families composed of 8,475 individuals are still being served inside and outside of the evacuation center.

To date, one (1) evacuation center remained open at Timbangan, Indanan sheltering 15 families composed of 68 individuals while 1,586 families composed of 8,407 individuals are still being served outside." (DSDW-DROMIC, 9 June 2005)

3,769 people displaced in Labayong, Sultan Kudarat (March)

"A total of seven hundred forty-one (741) families composed of 3,769 individuals suddenly evacuated to a safer ground due to the incident.

The situation escalated when another sporadic encounter between the two groups occurred last March 5, 2005. These resulted to the opening of six (6) evacuation centers to served 607 families of 3,173 while 134 family evacuees or 596 persons opted to take refuge for temporary shelter with their relative's houses in the neighboring barangays." (DROMIC, 16 March 2005).

1,057 people displaced in Siaton, Negros Oriental (April 2005)

"Two Hundred fifty-three (253) families composed of 1,057 persons were adversely affected.

All the family evacuees were served inside the three (3) evacuation centers opened in Siaton (2) has served 151 families or 625 individuals and in Sta. Catalina (1) with 102 families or 432 individuals. They all returned to their respective places origin in the morning of April 16, 2005, per instruction and clearance by the Philippine National Police (PNP) and the Local Chief Executive." (DSWD-DROMIC, 28 April 2005)

1,375 people displaced in Calbiga, Samar (May)

"Residents from seven (7) villages trooped to the town center of Calbiga in Samar as military operations in their areas and clashes with rebels intensified. Leyte Center for Development (LCDE), Inc., a non-government organization and Citizens' Disaster Response Center (CDRC) regional partner based in Tacloban City report of having documented at least 247 families (as of May 8, 2005) that were forced to

leave due to the on-going military clearing operations. The clearing operations against the NPA operating in the area are being conducted by soldiers belonging to the 62 nd IB of the Philippine Army's 8 th ID under the overall command of Maj. General Jovito Palparan. Most of those internally displaced by the armed confrontations are peasants. The affected areas include barangays Caamlongan, Tono, Guimbanga, Binanggaran, Hindang, Bulwan and Literon." (CDRC, 16 May 2005)

"A total of two hundred thirty-four (234) families composed of 1,363 persons were evacuated from the Municipality of Calbiga, Samar.

All evacuated families have already returned to their places of origin after situation has been normalized." (DSDW-DROMIC, 5 July 2005)

3,900 people displaced in Surigao del Sur (May)

"On 28 April 2005, military forces involving elements of the 58th Infantry Battalion, Philippine Army and the 6th Scout Rangers Company, intensified their counter-insurgency operation in the remote areas of Lianga, San Agustin, Marihatag and Cagwait, in the province of Surigao del Sur." (AHRC, 26 May 2005)

"In Surigao del Sur, around 2,600 families (Philippine Daily Inquirer, 15 May 2005) were reportedly displaced by constant military ground and aerial bombings in suspected NPA camps and lairs. A human rights group also claims of seven farmers missing since the clashes erupted the previous week.

The DSWD reports that in a clash between NPA rebels and AFP troops on May 4 in the Municipality of San Agustin , 232 persons or 48 families were adversely affected and were forced to evacuate to the nearby municipality of Lianga . These affected persons came from two barangays in San Agustin." (CDRC, 16 May 2005)

"A total of 650 families composed of 3,900 persons were adversely affected coming from the five (5) barangays of the municipalities affected." (DSDW-DROMIC, 26 May 2005)

More than 7,000 people displaced in Maguindanao (July 2005)

"The skirmishes erupted in the afternoon of July 11 when elements of the 6th Infantry Brigade of Philippine Army's 6th Infantry Division were pursuing heavily armed groups reportedly belonging to the ASG in Sitio Badak, Barangay Tenongos of Datu Odin Sinsuat town.

The armed confrontation lasted until the evening resulting in the evacuation of affected families to nearby barangays of Datu Odin Sinsuat, including the towns of Guindulungan, South Upi and Talayan." (MEDCo, 26 July 2005)

"The on-going military operation in the hinterlands of Talayan, Guindulungan, Datu Odin, and Upi municipalities has displaced thousand of civilians. In Talayan and Guindulungan alone, 5 barangays were affected. Residents of the said barangay can be located in nearby barangays and some are in the town proper of Guindulungan and in Talayan. According to Col. Dixon Hermoso, GRP-CCCH, a total of 1,700 families were affected in the four towns in which 1,020 families are coming from the five barangays of Guindulungan and Talayan." (Bantay Ceasefire, 28 July 2005)

1,270 people displaced in Basey, Samar by military operations against NPA rebels (July)

"BASEY, Samar-The town's unfinished gymnasium has been turned into a refugee camp for over a thousand residents from three interior villages who fled their homes due to intensified operations by the military against the communist rebels.

The residents of Barangays Cogon, Cancaiyas and Bulao started their seven-kilometer trek to the town proper on Tuesday afternoon out of fear that they might be caught in the crossfire.

Some arrived on Tuesday night after walking for three to four hours. Others reached the town proper in the morning. They decided to stay in the gymnasium, a few meters from the municipal hall, because it was open to the public.

(...)

Based on the records of the peasant group, Samahan Han Gugti Nga Mag-uruma (Sagupa), there were about 254 families or 1,270 persons displaced due to the intensified military operations in the three villages." (Philippines Daily Inquirer, 22 July 2005)

5,000 people displaced in Midsayap, North Cotabato by MNLF-MILF family feud (August)

"Some 5,000 people, mostly elderly and children, evacuated from five barangays in the town of Midsayap, North Cotabato following clashes between members of the Moro Islamic Liberation Front (MILF) and the Moro National Liberation Front (MILF) last week.

But MILF spokesman Eid Kabalu explained that the clashes were not a war between the MILF and the MNLF, but was triggered by a family feud. It just happened that one camp belongs to the MNLF, and the other a former MILF commander who left the rebels' ranks long ago to join lawless elements.

Zaida Jubilan-Rensulat, provincial social welfare and development officer, said that 38 houses were burned down after the 30-minute gun battle between the two groups.

Two were killed while seven cases of cattle rustling were also reported to the local police station in Midsayap after the incident.

Affected areas include sitio Macantal of barangay Macantal and barangays Makalawag, Kadigasan, Kadilingan, Ulandang and Makasindeg." (Mindanews, 11 August 2005)

500 people displaced by military operation against NPA rebels in Sultan Kudarat (September)

"Farmers in six villages of Columbio town in Sultan Kudarat have abandoned their farms for fear of getting caught in the crossfire as the military continues to track down suspected members of the New Peoples Army in the area.

Cumbio Mayor Edwin Bermudez told dxND Radio for Peace that some 500 farmers have evacuated in their respective villages last week and stayed in their relatives in safer places like in Barangay poblacion

(...)

The mayor said the evacuees might suffer hunger if military operations in the area would worsen in the next days." (Mindanews, 11 September 2005)

Other causes of conflict and displacement in Mindanao: banditry, clan conflict and the communist insurgency

- In addition to Muslim/Christian communal or Islamic separatist groups, banditry, communist rebels and clan conflict also contribute to violence in Mindanao.
- The Abu Sayyaf group and the Pentagon gang are the most visible kidnap-for-ransom groups active in Mindanao. Military operations against these groups often endanger ceasefires with the MILF.

- Communists NPA rebels are only active in some areas of Mindanao, mostly in areas with little Muslim presence.
- Clan conflicts (or 'rido') are a constant feature of life in Mindanao. These clashes have the potential of triggering ethnic conflict and even military confrontation.

"The conflict situation in Mindanao is quite complex. To understand the effect of civil society's efforts to end the long-running separatist war, we need to sketch this situation. It must be remembered that violent conflict in the southern Philippines is not only of the Muslim/Christian communal or Islamic separatist varieties (though they are the focus of this study). There is banditry (focusing on kidnapping), a communist insurgency, and endemic clan conflict. All three impinge on efforts to resolve the long-running separatist insurgency.

Kidnapping, in fact, plagues many places in the Philippines, and the Filipino-Chinese community is the most frequent target. The phenomenon came to international attention with two kidnappings of foreign tourists—first from the Malaysian island of Sipadan and then from a Filipino resort in the province of Palawan. The notoriety, resources, and reaction these exploits brought to the Abu Sayyaf (including the dispatch of American troops to train Filipinos pursuing the kidnappers) overshadowed a history of kidnapping that has occurred regularly in Mindanao, often linked to "lost commands" (military or insurgent units no longer under the control of their nominal superiors). Foremost among these is the "Pentagon Gang," which operates in localities that are also part of the base of the Moro Islamic Liberation Front. Operations by the Philippine government's security forces against this gang often endangered cease-fires with the MILF given their forced entry into communities hosting MILF forces. In May 2002, the government and the MILF signed an overall agreement to handle the pursuit of criminal gangs—an agreement that has yet to be fully operationalized. Still, when the leader of the Pentagon Gang, Tahir Alonto, was killed in military operations in August 2004, the operation had been signaled beforehand to the coordinating committees on the cessation of hostilities—and the MILF had interposed no objection (Mindanews: August 14, 2004; August 19, 2004).

The communist New People's Army (NPA) is active in Mindanao, as it is in many parts of the Philippines, though its areas of operations are more often in Christian or Lumad (indigenous peoples) communities than in areas occupied by Muslims. There are some overlaps—Tulunán, in North Cotabato, for instance, is a peace zone formed after an NPA raid that has also persuaded the MILF not to establish a presence (Rodil 2000: 146–47). The Philippine military on occasion asserts that there are joint operations between the MILF and the NPA (Mindanews: February 9, 2004). The NPA itself refers to an operational agreement with the MILF stipulating they do not operate in each other's territory (Sindapan 2003). Though the MILF has repeatedly denied any link to "terrorist organizations" (meaning Jemaah Islamiyah and al-Qaeda), it has been quoted as admitting an understanding with the NPA (Villaviray 2003). Whatever the degree of interaction between the NPA and MILF armed components, the presence of a long-running leftist opposition to the Philippine government has effects on the politics of civil society and conflict management. The National Democratic Front supports the "selfdetermination of the Bangsamoro People" (Muslims) and their direct involvement in all forms of decision making affecting their interests. (It does not support an independent state for Muslims.) Civil society groups in Mindanao sympathetic to "national democratic" analyses of the Philippines tend to use oppression of the Bangsamoro as one bone of contention with the Philippine government. Government policy, along with military operations and alleged human rights violations in Muslim areas, are subjects for political statements and targets for continued mobilization by these groups. The issue of political coloring of civil society activities recurs throughout this study.

Another widespread form of conflict is intracommunity clan conflict. Again not unknown in other parts of the Philippines, this phenomenon remains important as the Philippine government has not been able to enforce laws and maintain order. Thus civilians take disputes into their own hands. Feuds between families often lead to tit-for-tat retaliation organized along family lines.

(...)

To complicate matters, endemic clan conflict sometimes triggers ethnic conflict and even military confrontation. What begins as a dispute between families can end with organized armed forces clashing as parties to the dispute persuade others to become involved—or the Philippine military may mistake a clan clash for a separatist operation and intervene on its own. Consequently, community-level peacemaking must address clan conflict along with ethnic violence. One of the most famous examples of community peacemaking, in the barangay of Maladeg, Sultan Gumander, Lanao del Sur, has expended since the late 1990s at least as much energy on rido (clan conflict) as on Muslim/Christian animosities. Even with these caveats, the fact remains that conflicts due to Muslim separatism form the main challenge to peace and development in Mindanao. There is no evidence, for example, that clan or family conflict was any less prevalent in the past than it is now—yet times of relative peace on the separatist (or communal) front have yielded economic growth in Mindanao. The communist armed threat is not insignificant, but the Muslim threat is geographically concentrated and thus has a greater impact on the areas of central and western Mindanao than does the NPA threat elsewhere in the country." (East-West Washington Center, 2005, pp. 4-7)

Peace efforts

Peace negotiations between the government and the Moro rebels (1970-2005)

- The 1976 Tripoli Agreement between MNLF and government provided for a ceasefire and the creation of a Muslim autonomous region, which only started to be implemented 9 years later.
- 1996 peace accord between MNLF and government put an end to the armed struggle of the MNLF and allowed for the implementation of the Tripoli agreement, namely the creation of a Muslim autonomous region. A Southern Philippine Council for Peace and Development (SPCPD), headed by the MNLF leader, was created to oversee the Special Zone for Peace and Development (SZOPAD).
- In April 2000, the government declared an all-out war on the MILF, a breakaway group from the MNLF, which resulted in the displacement of nearly 1 million people.
- New president, Arroyo first showed peaceful intentions with the MILF, but resumed with a militaristic approach when, in February 2003, MILF camps were assaulted in central Mindanao.
- Since the July 2003 ceasefire, MILF and government have held several rounds of exploratory talks and agreed on several confidence-building measures to maintain the ceasefire.

"Successive Philippine political administrations starting from then President Ferdinand Marcos have attempted to forge a negotiated peace settlement of the conflict with the Moro rebels realizing that a purely military solution to the problem was not feasible. At the height of the MNLF rebellion in the 1970s, the Marcos regime sought the intercession of Libya in the signing of the 1976 Tripoli Agreement with the MNLF. The accord provided for an immediate cessation of armed hostilities between the two parties and established the framework for an autonomous region for the Muslims in Mindanao. However, the provision on autonomy was not implemented by Marcos because it meant carving out 13 provinces from Mindanao to constitute the autonomous region. It was not until President Corazon Aquino came into power in 1986 that this provision was fulfilled, but with the crucial condition that it should follow the Constitutional process of holding a plebiscite to determine which among the provinces specified in the Tripoli Agreement would opt to become part of the autonomous region. Expectedly, only 4 of the 13 provinces, where the Muslims are a majority, decided to join the autonomous region. The MNLF accused the government of violating the Tripoli Agreement and continued its armed struggle, although on a much smaller scale due to its, by then, waning influence.

President Fidel Ramos continued the policy of his predecessor and met success with his peace initiative when the MNLF leadership, under Chairman Nur Misuari, signed a peace accord with the government in September 1996. The Agreement provided for the establishment of an interim institution called the Southern Philippine Council for Peace and Development (SPCPD), to be headed by Chairman Misuari, which would be responsible for supervising and coordinating development projects in an area designated as the Special Zone for Peace and Development (SZOPAD). SZOPAD covered all the provinces specified in the Tripoli Agreement. After three years, a plebiscite would again be conducted asking the provinces in the SZOPAD whether they would like to join the “expanded” autonomous region for the Muslims. However, due in part to the disappointing performance of the SPCPD, only one additional province and one additional city joined the autonomous region—leaving the problem to fester in the other provinces.

By the time of President Joseph Estrada’s election in 1998, the threat was no longer emanating from the MNLF as most of its leading officials had joined government or were elected local government officials with tacit support from the central administration. The new challenge was emanating from the MILF, a breakaway group from the MNLF, headed by Hashim Salamat and operating largely in Central Mindanao. With little understanding of the peace initiatives of his predecessors, and in response to alleged atrocities committed by the MILF, President Estrada declared an “all-out war policy” in April 2000 and mobilized a large military contingent to capture several MILF camps, including its main headquarters in Camp Abubakar. Although the assault was successful on the surface, it failed to crush the MILF which chose to avoid direct confrontation by splintering into smaller groups and hiding in the remote areas of the region.

In contrast, the administration of President Gloria Macapagal-Arroyo initially declared an “all-out-peace” policy toward the MILF but was forced to temporarily abandon it when the military launched another assault of MILF-controlled territories in February 2003 in pursuit of “criminal elements” operating there. By the middle of that year, peace was again restored when the new and more pragmatic leadership of the MILF under Chairman Murad Ebrahim, who succeeded the late Hashim Salamat, forged a ceasefire agreement with the government. Exploratory talks between representatives of the government and the MILF were immediately held under the auspices of the Malaysian government. The Government-MILF Joint Ceasefire Coordinating Committee on the Cessation of Hostilities (JCCCH) was tasked to monitor any violation of the ceasefire agreement. It was also agreed during the exploratory talks to welcome an International Monitoring Team, led by Malaysia, to complement the work of the JCCCH and strengthen the peace process at the ground level. The formal peace talks are expected to resume soon. At their center, as in the past, will be the strong desire of the Moros for a geographical area where they can promote their culture, religion and way of life.” (WB, February 2005, pp. 2-3)

MNLF-AFP combats in Sulu and ARMM elections is putting GRP-MNLF Peace Process at risk (September 2005)

- Peace process between the GRP and the MNLF started in 1976. A peace agreement was signed in 1996.
- The government’s position is that it has complied with the GRP-MNLF Peace Agreement.
- GRP policy has subsequently been to recognize ARMM and its governor as the sole representatives of the Bangsamoro people
- The two principal MNLF factions are not in agreement with the decision to declare the formal, interactive first phase of the peace process finalized.
- The faction loyal to Nur Misuari has a confrontational position in relation to the government, and it considers itself to be completely excluded from the peace process.
- The EC-15, recognized by the GRP as the leadership of the MNLF, questions R.A. 9054 and the August 14th plebiscite, and it also requested the postponement of the elections.

- Election of a non-MNLF leader as ARMM governor in August 2005 and the lack of development in ARMM region has further undermined 1996 peace deal with MNLF leaders sending signals that they might resume armed struggle.

"The peace process between the GRP and the MNLF spans a quarter of a century having began in 1976. Six years of implementation processes have now elapsed since the 1996 Peace Agreement. The GRP is now declaring that it has complied with the terms of the peace agreement, thus finalizing "Phase One" of the process. This position is not shared by any of the factions into which the MNLF is divided. The Organization of Islamic Conference (OIC) has yet to pronounce on the issue.

The government's position is that it has complied with the GRP-MNLF Peace Agreement with the passage of Republic Act 9054 "An Act to Strengthen and Expand the Organic Act for the Autonomous Regional in Muslim Mindanano" on February 7, 2001 which lapsed into law on March 31, 2001 without the signature of the President, in accordance with Article VI, Section 27 (1) of the Constitution.

The GRP also holds that it complied with the agreements through the holding of the plebiscite on the "Expanded Autonomous Region" per Article II Section 1 and Section 2 of the Republic Act 9054 on August 14th 2001. The results of the plebiscite were certified by the Commission on Elections (COMELEC) in its resolution No. 4561 of 28th August 2002. On the question of acceptance of the amendments to Republic Act No. RA 9054 by the existing ARMM provinces, including the question of the expansion of ARMM, the vote was overwhelmingly positive in all four provinces.

On the issue of ARMM expansion only the province of Basilan and Marawi City voted to join the expanded ARMM, while even the provisional capital and non-ARMM enclave of Cotabato City and Isabela City, the capital of Basilan, voted negatively. The two closest provinces in the vote, Lanao del Norte and North Cotabato, voted 5 x 1 and 10 x 1, against inclusion. All other provinces and cities voted over 10 x 1 against inclusion with the extreme cases of rejection being with votes of over 100 x 1 negative.²³

The GRP also holds that it has completed the GRP-MNLF peace process by holding elections for Governor, Vice Governor, and the ARMM Assembly subsequent to the plebiscite on November 26th 2002. The elections demonstrated a bipolar tendency with only two candidates for governor and vice governor receiving an overwhelming majority of the votes. Even the third candidate has only a nominal vote for each of the two posts:

On the basis of Article XVIII, Section 16 of R.A. No. 9054 that provides that the Special Zone of Peace and Development (SZOPAD), the Southern Philippines Council for Peace and Development (SPCD) and the Consultative Assembly are deemed to be abolished and should cease to exist as of the date of the approval of R.A. 9054 in a plebiscite, Malacañang issued Executive Order No. 80 of March 11th, 2002. It orders the abolition and winding up of the aforementioned entities, transfer of the functions, responsibilities, and qualified staff to ARMM and SPDA.

GRP policy has subsequently been to recognize ARMM and its governor as the sole representatives of the Bansamoro people (replacing in that role the MNLF per the 1996 peace agreement). It also will channel all developmental assistance through ARMM in its jurisdiction and to SPDA outside of the ARMM area, as well as through foundations and cooperatives.

There is no doubt about the legality of the GRP position in relation to formal compliance with the 1996 Peace Agreements. This consists of generating a new ARMM law, holding a plebiscite and a new ARMM election, or abolishing SZOPAD, SPCPD, and the Consultative Council as a result of the new election. There is also no doubt that it can channel further assistance to former Muslim insurgents from both the MNLF and MILF through ARMM, SPDA, and a group of foundations and cooperatives to be founded for this purpose. Legally and administratively the situation is clear.

The issue raised, however, is not legal or administrative. It is rather whether a peace process can be successful if the other party to the accord is not in agreement with the decision to declare the formal, interactive first phase of the peace process finalized. This question is further complicated by the fact that the MNLF is no longer unified but clearly divided into different factions. However, none of those factions is in agreement with the actions taken by GRP without the consent of the MNLF. The positions of the two principal MNLF factions are now described.

The MNLF under Chairman Nur Misuari rejects Republic Act 9054, the plebiscite held under it, and the ARMM elections. Indeed, Misuari led some of his forces into rebellion in Jolo and Zamboanga City in November 2001 in an apparent attempt to disrupt the electoral process. He was destituted as governor, became a fugitive, was subsequently captured, and is currently on trial as a result of this chain of events. This faction now has a confrontational position in relation to the government, and it considers itself to be completely excluded from the peace process.

The MNLF Executive Council of 15 named Governor Misuari "Chairman Emeritus" after a critique of his leadership style and assumed control of the organization. The GRP recognized the EC-15 as the leadership of the MNLF. The EC-15 has chosen Mr. Hatamil Hassan as Interim Chairperson. The EC-15 like the rest of the MNLF questions R.A. 9054 and the August 14th plebiscite, and it also requested the postponement of the elections. EC-15 MNLF Secretary General. Mayor Muslimin Sema of Cotabato City was the initial favorite for the post of ARMM Governor but after the negative vote of Cotabato city for inclusion in ARMM his candidacy was no longer viable.

Finally, MNLF Foreign Minister and EC-15 member Parouk Hussin was elected governor. However, the MNLF has a marginal position in both the MNLF ARMM assembly with 1 out of 24 seats. Likewise, in the Cabinet, the MNLF has three seats with the Governor assuming the post of Regional Secretary of Public Works, while other MNLF members have the posts of Regional Secretary of Interior and Local Government, Regional Secretary of Science and Technology and Regional Secretary Social Welfare.

Given this situation described the EC-15 faction of the MNLF feels marginalized from ARMM despite the governorship. This sense of marginalization is due in part to Governor Parouk Hussin having wisely (in the view of the author) decided to form a balanced government that reflects the political realities of the ARMM region and Assembly. He has also correctly decided to govern as the representative of all of the citizens of ARMM and not just those of one politico-military force.

The sense of marginalization throughout the MNLF is also due in part to the fact that the MNLF has not recreated itself opportunely. It has been apparent for several years that the MNLF must undergo a metamorphosis and convert itself into a political party and/or civil society movement and/or cooperative movement, and preferably all of the above. The same holds for MILF as its peace process proceeds. The lack of organization as a political party limits the capacity of MNLF to participate in elections and negatively conditions the results achieved. The GRP supports the process of formation of political parties, foundations, and cooperatives by the politico-military organizations as part of the full integration of ex-combatants. The transition from being a politico-military organization to the other organizational forms is a task that the MNLF has postponed too long, and for which it is paying a high political and administrative price.

Both of the major MNLF factions opposed the abolition of the Southern Philippines Council on Peace and Development (SPCPD). However, one of its members and former SPCPD Director, Mayor Muslimin Sema of Cotabato City, has been named to the post of Chairman of the Board of the entity that has assumed SPCPD functions outside of ARMM, the Southern Philippines Development Authority (SPDA), a statutory entity. Both of the faction of the MNLF that opposes the government, and the faction that the government supports, opposed RA 9054 as violating the "spirit and letter of the 1996 peace agreement". Consequently both opposed the timing of the plebiscite, and both asked for the postponement of the elections." (UNDP 23 September 2002, pp. 22-25)

Victory of government-supported candidate in ARMM elections undermines 1996 Peace deal

"Filipinos in an autonomous Muslim region have a new governor in Zhaldy Datu Puti Ampatuan, the favourite from a powerful political clan who was backed in Monday's elections by the national government in Manila.

(...)

Arroyo's perceived support for Ampatuan, a town mayor and son of an influential provincial governor, angered former Muslim rebels from the Moro National Liberation Front (MNLF) who had held the governor position since signing a peace deal in 1996.

(...)

The Moro Islamic Liberation Front (MILF), an offshoot of the MNLF that kept up its fight against the government, said it boycotted Monday's polls because they were "meaningless".

The MILF, which is in peace talks with the government, said it would continue to seek genuine Muslim self-rule in the mostly Roman Catholic country.

Nearly two decades after the government in Manila created the Autonomous Region in Muslim Mindanao, its five provinces remain among the poorest in the country. " (Reuters, 12 August 2005)

MNLF leader and ousted ARMM governor said government's failed promises has put peace deal at risk

"The Philippines has put a nine-year-old peace deal with separatist Muslims at risk, a former guerrilla leader said on Tuesday, accusing the government of failing to implement genuine self-rule in the south.

Parouk Hussin, outgoing governor of the Autonomous Region in Muslim Mindanao (ARMM) and a leader of the Moro National Liberation Front (MNLF), warned that Muslims might carry on their struggle for self-determination.

"The peace agreement is now in serious jeopardy," Hussin told a forum in Manila on democratisation in Muslim communities in Southeast Asia attended by politicians, academics and civil society leaders.

Muslim rebels from the secular MNLF say Muslim autonomy in the southern Philippines was a product of a peace deal in 1996.

They expected the government to help them keep control over parts of the region and were hurt when President Gloria Macapagal Arroyo decided not to support MNLF candidates in last month's regional election.

A doctor by profession, Hussin said the experiment with autonomy for the Muslim minority was a failure because the government of the mainly Roman Catholic nation failed to provide adequate resources to develop conflict areas in the south." (Reuters, 13 September 2005)

See also:

"Peace and Development: The MNLF and the SPCPD Experience", November 1998

"Priority Issues and Concerns about the Implementation of the 1996 GRP-MNLF Peace Accord", November 1998

"The Highlights of Implementation of the Final Peace Agreement", August 1998

GRP-MILF Peace Process (September 2005)

- The "Agreement on Peace" signed by the MILF and the government in June 2001 is currently in the process of operationalization. Two complementing documents were agreed upon since: 1) the 'Implementing guidelines on the security aspects of the Tripoli peace agreement of 2001' signed in August 2001 and 2) 'Implementing guidelines on the humanitarian, rehabilitation, and development aspects' signed in May 2002.
- The May 2002 agreement stipulates that it will safeguard the observance of international humanitarian law, respect for internationally recognized human rights, and fundamental freedoms for all persons.
- the major pending agenda items between the GRP and the MILF are the questions of ancestral domain and the disposition of arms and forces.
- the GRP agrees to relieve the evacuee situation and allow a return to the places occupied prior to 'All Out War', as well as to pay reparations for properties lost and damages sustained. In sum, a reversal of the effects on the population of the 'All Out War'.
- The MILF accepts working with ARMM in its area and other government agencies outside of ARMM (SPDA in effect), through MILF civil society organizations, including the MILF-led Bangsamoro Development Agency (BDA).
- From November 2002 to June 2003, resumption of war in Mindanao put the peace process on hold. As of July 19, 2003, government and MILF agreed on a mutual cessation of hostilities.
- During 2004 and 2005, both parties agreed that Malaysia play a facilitating role in the peace process, hosting the successive exploratory talks, but also leading an international team tasked with monitoring the ceasefire.
- Both parties met in September 2005 for the 9th exploratory talks seen as successful. The issue of ancestral domain and the related issue of governance in the Muslim-populated areas of Mindanao remain the main stumbling block.

"The GRP-MILF peace process began in 1997 and reached a breakthrough with the 'Agreement on Peace' of June 22nd, 2001 signed at Tripoli, Libya. That agreement is currently in the process of operationalization. First there was the 'Implementing Guidelines on the Security Aspect of the Tripoli Peace Agreement of 2001' signed August 7th, 2001 at Putrajaya, Malaysia. More recently there was the agreement 'Implementing Guidelines on the Humanitarian, Rehabilitation, and Development Aspects of the GRP-MILF Tripoli Agreement of Peace of 2001' signed May 7th, 2002 at Putrajaya, Malaysia.

The latest agreement on humanitarian, rehabilitation, and development issues stipulates that it will safeguard the observance of international humanitarian law, respect for internationally recognized human rights, and fundamental freedoms for all persons. These are the criteria and standards that should guide the monitoring mechanism of Article VI of the agreement to be undertaken by the joint Coordinating Committee on the Cessation of Hostilities (CCCH).

The agreement also assures full access for the International Committee of the Red Cross (ICRC) 'in accordance with ICRC's standard operating procedures'. It stipulates that 'in conformity with international humanitarian law, each party shall provide information, through the tracing mechanism of the ICRC, to families of all persons who are unaccounted for.'

They also agree that the 'parties shall pave the way for the immediate return of evacuees to their places of origin and provide all necessary financial/material and technical assistance to those evacuated for them to begin a new life. The GRP shall award reparations for the properties lost or destroyed by reasons of the conflict upon reasonable proof thereon as mutually verified and acknowledged by both parties.' (Article V, Numeral 3).

The only political and institutional issues deal primarily with project implementation and monitoring modalities. The MILF 'will establish a project implementing body, which will have the power and function to receive and disburse private and GRP funds.' (Article V, Numeral 1). The MILF also recognizes established institutions for project management, as per GRP policy:

'Consistent with GRP's resolve to task the Autonomous Region of Muslim Mindanao (ARMM) as its primary implementing agency for development, the ARMM shall enter into contractual relations within its charter, pertaining to rehabilitation and development with the MILF project implementing body. Likewise, with other government development agencies outside ARMM areas.' 19 (Article V, Numeral 2).

In a second agreement known as the 'Joint Communique Between the GRP and the MILF' signed May 6th 2002 at Cyberjaya, Malaysia, the two sides agreed to 'the isolation and interdiction of all criminal syndicates and kidnap-for-ransom gangs, including so called 'lost commands' operating in Mindanao.'

Given these agreements, the major pending agenda items between the GRP and the MILF are the questions of ancestral domain and the disposition of arms and forces. The question of the ancestral domains of Muslim communities is complex and difficult, especially in light of conflicting interests and claims between indigenous and Muslim small holders, large Muslim landowners, Christian settlers, plantation agriculture corporations, timber and mining interests, and oil and gas exploration groups. The legal rights of indigenous peoples contained in Republic Act 8371 'Indigenous Peoples Rights Act of 1997' have already been guaranteed by law and should not suffer a roll-back in the subsequent negotiation process to guarantee other groups their rights as well. An MNLF policy statement maintains that both the MILF and the MNLF agree that RA8731 on indigenous ancestral domain should also apply to the Bangsamoro people. The government has yet to pronounce on this claim.

If the security, humanitarian, rehabilitation, development, and ancestral domain aspects of the GRP-MILF Tripoli Agreement on Peace of 2001 are successfully concluded, the disposition of MILF arms and forces should not present major difficulties. However, if the policy and institutional arrangements on these issues do not prove effective, and especially if the ancestral domain issue leads to acute conflicts over land, the demobilization of MILF combatant could prove very difficult.

In sum, both the GRP and the MILF have demonstrated political will and flexibility. This has translated into the capacity to rapidly reach 'implementing guideline' agreements. On one side the MILF has restricted its agenda to economic and social issues and demands feasible relief, rehabilitation, and development projects. The institutional arrangements are those necessary to implement the projects. The MILF accepts working with ARMM in its area and other government agencies outside of ARMM (SPDA in effect), through MILF civil society organizations, including a foundation, the recently founded Bangsamoro Development Agency. It has also agreed to collaborate with the government in the persecution of criminal elements that inhabit the same inaccessible areas utilized by the MILF, especially in the Maguindanao marsh areas.

On the other side the GRP agrees to relieve the evacuee situation and allow a return to the places occupied prior to 'All Out War', as well as to pay reparations for properties lost and damages sustained. In sum, a reversal of the effects on the population of the 'All Out War'. Of course, the MILF as an organization would not return to the situation 'antebellum' in that there would be no resurrection of the armed camps, exclusion of the State, and MILF territorial control.

The MILF and GRP are moving into a new relationship based on collaboration in relief, rehabilitation, and development, as well as in the improvement of the law and order situation in Mindanao. The MILF is demonstrating more interest in economic and social development than in political institutions." (UNDP 23 September 2002, pp. 19-21)

In February 2003, talks were suspended when fighting and displacement resumed in Mindanao. The Mutual cessation of hostilities was signed on 19 July 2003. A downgrading of the actions of the military as well as the lifting of the warrants for the capture of MILF officials was ordered by the government. Malaysia was invited to facilitate the peace talks and oversee the monitoring of the ceasefire (Mindanews, 18 July 2003)

In September 2004, the government and MILF agreed to establish a Malaysian-led peacekeeping force (IMT) to oversee the implementation of the ceasefire in Maguindanao (Mindanews, 6 September 2004). The first contingent of the IMT arrived eight months later in October 2004.

In December 2004, during the 6th round of exploratory talks, both sides agreed a a certain number of points:

"1. The 6th round of Exploratory Talks held in KL last December 20-21, 2004 reflects the steady momentum of the Government's peace process with the MILF.

2. Among the highlights of the informal talks include the adoption of the interim guidelines to operationalize the Ad Hoc Joint Action Group (AHJAG) pursuant to the GRP-MILF Joint Communiqué of May 6, 2002. This Mechanism is tasked in the interdiction and isolation of criminal and lawless elements found within MILF communities.

3. The Panels also adopt Guidelines for Observers in the GRP-MILF Formal Talks outlining the general role and conduct of accredited observers who will participate in the formal peace negotiations.

4. Both sides acknowledge the formal completion of two (2) major confidence building measures for the resumption of the talks, namely: (a) the phased redeployment of AFP troops from the Buliok area, and (b) the dropping of charges filed against several MILF leaders and members implicated in the Davao City bombings of 2003." (Government of the Philippines, February 2005)

In April 2005, MILF and government met or exploratory talks where the issue of ancestral domain was high on the agenda (Mindanews, 20 April 2005). Both sides agreed to meet again to further discuss a negotiated settlement in the coming months.

Postponed in July 2005, exploratory talks between MILF and government held in September 2005 were deemed as highly successful

"The two-day exploratory talks in Kuala Lumpur between the government and Moro Islamic Liberation Front (MILF) ended Friday with a "breakthrough" on governance, the last topic on the ancestral domain agenda.

"We scored a breakthrough in governance," MILF peace panel chair Mohagher Iqbal said in response to a query sent by MindaNews through text (SMS). No other details were immediately available.

(...)

Iqbal in an interview in early May this year, said the MILF was considering four governance possibilities in reaching a negotiated political settlement: federal, commonwealth, association of free states and independence.

Iqbal said at the time that they had not presented to the government peace panel their "exact position" on any of the four possibilities but ruled out autonomy as an option. "That's out of the question. We will not discuss autonomy. It's a failure," he said.

(...)

The discussions on ancestral domain, the last of the three major agenda items aside from security and rehabilitation, were earlier divided into four strands – concept, territory, resources and governance. A breakthrough on the first three strands happened in the 7th round of exploratory talks in April.

The Joint Statement said the addition of the ancestral domain agreement to the two previous agreements signed – Security in 2001 and Rehabilitation in 2002 – 'completes the requirement of the Tripoli Agreement on Peace of 2001.' "(Mindanews, 16 September 2005)

See also:

[Status of the GRP-MILF Peace Process, 8 February 2005](#)

[The Mindanao Peace Talks: Another Opportunity to resolve the Moro Conflict in the Philippines, USIP, 31 January 2005](#)

[Status of the GRP-MILF Peace Process, 8 February 2005](#)

[Joint Statement 15th CCCH Meeting, Mindanews 8 February 2004](#)

[August 09, 2003: Joint Statement, Mindanews](#)

["The GRP-MILF agreements 2001-2003: 'To honor, respect and implement' ", Mindanews, 3 June 2003](#)

Conflict map prepared by CFSI, July 2002

Full text of the "Implementing Guidelines on the Humanitarian, Rehabilitation and Development Aspects of the GRP-MILF Tripoli Agreement on Peace of 2001"

"SZOPAD Coverage Areas", NEDA-SPCPD, 1995

GRP-CPP/NPA/NDF Peace Process (September 2005)

- NPA/NDF remains a serious armed threat to the government with an estimated strength of around 12,000 members (as of September 2002).
- Through four Presidencies, the Government of the Republic of the Philippines (GRP) has undertaken various peace initiatives geared at peaceful settlement of the armed conflicts in the country, including the Communist insurgency.
- The Estrada term saw the collapse of the talks with the NDF. In May 1999, the NDF unilaterally withdrew from the talks following the ratification by the Philippine Senate of the RP-US Visiting Forces Agreement.
- Under the Macapagal-Arroyo administration, peace negotiations between the GRP and the NDF were resumed on April 2001 in Oslo, Norway.
- The talks continue on "recess" status. Informal meetings in May and June 2002 have centered on a possible mutually acceptable formulation for the final peace accord. Despite the US government's designation of the CPP-NPA-NDF as a foreign terrorist organization, the Peace Panels of both parties maintain open lines of communication geared at agreement on measures to facilitate the resumption of the talks.
- During 2004 and 2005, little progress was made but in September 2005, both sides agreed to resume the talks.

"The Communist insurgency - led by the Communist Party of the Philippines (CPP), its armed group, the New People's Army (NPA), and its political arm, the National Democratic Front (NDF), or the CPP-NPA-

NDF – has been the most enduring of the Philippines’ armed rebellions, and remains the most serious threat to national security. It finds its roots in a colonial past and a system of unjust and unequal socioeconomic and political conditions that has perpetuated an elite few while the majority of Filipinos continue to live in poverty. From a small group of less than a hundred when it was founded in 1968, the movement’s strength peaked to an estimated 25, 000 members nationwide in 1987. Political repression and worsening economic conditions had fueled its rapid growth during the Martial Law regime under Ferdinand Marcos; the period of political transition when democracy was restored under Corazon Aquino also saw a growth in the NPA’s strength. Although it had declined to about 6,000 members in 1995, it has been steadily increasing to reach a current (September 2002) estimated strength of around 12,000 members.

Through four Presidencies, the Government of the Republic of the Philippines (GRP) has undertaken various peace initiatives geared at peaceful settlement of the armed conflicts in the country, including the Communist insurgency. Corazon Aquino pursued shortlived negotiations towards a peaceful negotiated settlement with the CPP-NPA-NDF. A 60-day ceasefire was signed effective 10 December 1986, but talks collapsed on 22 January 1987, amid accusations of ceasefire violations and disagreements over the negotiation framework. Fidel Ramos embarked on a comprehensive peace process (The “Six Paths to Peace”) which included, among others, the active pursuit of peace negotiations with the armed opposition groups.

During the Ramos administration, the CPP was legalized to set the stage for the resumption of peace negotiations. Negotiations began with the Utrecht-based NDF leadership in August 1992, resulting in the signing of the Hague Declaration in September 1992 which provided the basic framework for formal negotiations. A joint communiqué was signed outlining four substantive agenda for the talks: human rights and international humanitarian law; social and economic reforms; political and constitutional reforms, and end of hostilities and disposition of forces.

Following the Hague talks, GRP-NDF meetings were held erratically over a two and a half year period, with efforts focused on forging agreement on terms and processes for the conduct of formal negotiations. Three agreements were forged during this period: 1) the Breukelen Joint Statement of June 1994, which documented areas of agreement, disagreement and issues requiring further discussion; 2) the Joint Agreement on Safety and Immunity Guarantees (JASIG) of February 1995, which provides safety and immunity guarantees to all NDF duly accredited holders of documents of identification; and 3) the Joint Agreement on the Ground Rules of Formal Meetings (also February 1995).

Between June 1995 to March 1998, a total of six rounds of formal talks and six rounds of discrete and informal talks were conducted. The talks were invariably suspended or recessed over this period, due to issues relating to sovereignty and JASIG implementation. These series of formal and informal talks paved the way for the completion of the Comprehensive Agreement on Respect for Human Rights and International Humanitarian Law (CAR-HR/IHL), which was signed by both Panels on 16 March 1998 in The Hague.

The Estrada term saw the collapse of the talks with the NDF. Talks were stalemated when the NDF rejected the mode of implementation of the CAR-HR/IHL stipulated by President Estrada, that it be in accordance with the Republic’s constitutional and legal processes. In May 1999, the NDF unilaterally withdrew from the talks following the ratification by the Philippine Senate of the RP-US Visiting Forces Agreement. With the termination of the peace talks, Estrada issued Executive Order # 115 in June 1999, localizing the peace talks with the communist insurgents.

Under the Macapagal-Arroyo administration, peace negotiations between the GRP and the NDF were resumed on April 2001 in Oslo, Norway. Confidence-building measures were discussed, as well as the modality of implementation of the CAR-HR/IHL implementation, and the mechanics for conducting negotiations on the Comprehensive Agreement on Socio Economic Reform (CASER). A second round of talks in Oslo in June 2001 was suspended following a protest by the GRP on the NDF’s issuance of a

congratulatory note to the NPA's Fortunato Camus Command after the political assassination of Cagayan Congressman Rodolfo Aguinaldo during the conduct of the talks.

Since the recess of the talks in June 2001, back-channel talks have been conducted by GRP Panel Chair Silvestre Bello, Speaker de Venecia, Presidential Peace Advisor Eduardo Ermita, and Presidential Management Staff Silvestre Afable Jr with the NDF leadership. In a meeting in the Netherlands and Norway on November 29 - December 3, 2001, both sides agreed on an accelerated negotiation process, from an 18-24 month timeframe to 4-6 months completion period for the negotiations. However, the GRP Panel was instructed by the President to obtain NDF agreement to its proposal for a final, comprehensive peace accord. In line with the President's directive, the GRP Panel proposed an enhanced process whereby both Panels will complete a final peace agreement that will contain the remaining substantive agenda for the talks, within end in view of bringing logical conclusion to the negotiations towards the attainment of a just and lasting peace. On April 15 2002, the NDF sent a letter rejecting the GRP's proposal.

The talks continue on "recess" status. Informal meetings in May and June 2002 have centered on a possible mutually acceptable formulation for the final peace accord. Despite the US government's designation of the CPP-NPA-NDF as a foreign terrorist organization, the Peace Panels of both parties maintain open lines of communication geared at agreement on measures to facilitate the resumption of the talks." (UNDP 23 September 2002, pp. 27-29)

Peace process revived in February 2004

"In February 2004, the peace process was revived with representatives of the NPA meeting government officials in the Norwegian capital Oslo.

The two sides agreed a series of measures to move towards a formal peace deal. They included setting up a joint commission to examine human rights abuses on both sides, and working together for the removal of the NPA from the US and EU's list of terror organisations." (BBC 30 March 2004)

Government and communist rebels agree to resume pace talks (September 2005)

"The Philippines and communist rebels have agreed to resume formal peace negotiations next month, but no specific dates were set for the talks, a government statement said Wednesday.

The statement said both sides have also "agreed to a nationwide ceasefire during, and in connection with, the days when formal peace negotiations are held".

"The resumption of the formal peace negotiations was reached after a cordial exchange of letters between the parties following informal talks in Oslo, Norway," said the statement from the office of presidential adviser on the peace process.

Two Norwegian officials visited Manila last month and urged the government to explore the possibility of resuming peace negotiations with the communist rebels.

Norway has been brokering the peace negotiations between the government and the communist rebels since 2004.

But the peace negotiations bogged down in August last year, after the rebels unilaterally postponed a scheduled round of formal talks due to the refusal of the United States to remove the guerrillas from its terrorist list." (DPA, 7 September 2005)

See also:

The second Oslo Statement, 3 April 2004, Mindanews

Oslo Joint Statement, 14 February 2004, Mindanews

Comprehensive Agreement on Respect for Human Rights and International Humanitarian Law between the Government of the Republic of the Philippines and the National Democratic Front of the Philippines, 16 March 1998, Mindanews

Terrorism and the peace process (February 2005)

- Reported links between the MILF and the Jemaah Islamiyah (JI) put the peace process at risk.
- Following the 2000 war and the MILF's leader's death in July 2003, the MILF units became more independent and loose-knit, making it difficult to establish clear links between its leadership and terrorist groups. Links may only be at the local/personal level with the leadership unaware of these links.
- ICG suggests that, either the MILF leadership is really unaware of the extent of the links with JI or they don't want to know, which in both cases means that they have insufficient control over their troops to implement peace, or the MILF is aware of the ties and this is part of a "fight and talk" strategy. In which case, ICG claims that their good faith is called into question.

"Persistent reports of links between the separatist Moro Islamic Liberation Front (MILF) and the Jemaah Islamiyah (JI) terror network overshadow and put at risk the peace process between the MILF and the Philippine government. While the MILF leadership continues to deny any ties, all evidence points to ongoing operational and training links. What is uncertain is whether top leaders are aware of the activity and unwilling to admit it, or whether members of JI and other like-minded jihadist groups have established their own personal ties to individual MILF commanders without the knowledge of the MILF leadership.

JI, now notorious for its activities especially in Indonesia, established a foothold in the southern Philippines in 1994, building on ties formed with the secessionist MILF in Afghanistan in the 1980s. Personal relationships between founding MILF chairman Salamat Hashim and JI leaders like Abdullah Sungkar and Zulkarnaen allowed it to set up training camps under MILF protection, replicating the Afghan camp system in which the organisation first took shape, and transferring deadly skills to a new generation of operatives.

As well as replenishing JI ranks in Indonesia depleted by post-Bali arrests, some of these graduates have carried out terror attacks in the Philippines in concert with local elements from the MILF and the Abu Sayyaf Group. ICG information suggests that the architect of many of these recent attacks was a Javanese graduate of the Mindanao camps, named Zulkifli. He was captured in Malaysia in late 2003, but not before overseeing the Davao

bombings of March and April 2003, which killed 38 and remain a major obstacle to the peace talks.

The JI-MILF relationship is clearly continuing, but in a much more decentralised fashion. Since the Philippine army overran major MILF camps in 2000, MILF forces have been dispersed into smaller, more autonomous units, sometimes disavowed by the MILF leadership as "lost commands". The MILF has always been loose-knit, but its units became more independent following the offensive of 2000 and after Salamat Hashim's death in July 2003.

It is unclear at this stage how the new MILF leadership around Hashim's successor, Al-Haj Murad, regards the ties to JI. The MILF officially disavows terrorism. Given what is now known about JI-MILF ties, therefore, there are three possible interpretations of this official stance, all of which bode ill for the peace process. If top MILF leaders engaged in peace negotiations are unaware of local level cooperation with JI or if they follow a "don't ask, don't tell" policy that leaves local commanders to their own devices, the lack of central control suggests it might not be possible to implement an agreement. If at least some top MILF officials are not only aware of JI ties, but see them as a crucial element of a "fight and talk" strategy, the

good faith necessary for successful negotiations would be called into question. All three possibilities may be related to factional divisions within the MILF that appear to have deepened since Salamat Hashim's death." (ICG, 13 July 2004, p. i)

"The anti-terror bill, the national ID and the Abu Sayyaf connection

It must be remembered that on February 14, at the height of the fighting in Sulu, a series of bombings occurred in General Santos City, Davao City and Makati City in Manila that killed and wounded scores of innocent civilians. The Abu Sayyaf quickly claimed responsibility for the mayhem through a radio interview with a certain Abu Solaiman. On February 22, 2005 the police claimed to have arrested the perpetrators.

Whether this Abu Solaiman is real or whether the Abu Sayyaf claim that the mayhem is true, the reality is it played up favorably to the government's long dream of legally instituting repressive actions and measures such as the implementation of a National Identification System (National ID) and the legislation of an Anti Terror Bill. With a long notorious record of the police on arresting any Tom, Dick and Harry or any Jafar, Mustif and Susukan or anyone with an Arabic sounding name, even on unfounded evidence, these measures send a chilling message not only to the Moro people but to every sensible Filipino.

One cannot help but to think that whenever the government intends to make a very unpopular move or whenever it finds itself in a thick of a political crisis, the public would always wake up to the scare of a terrorist bombing. In 1999 for example, before the military's all-out offensives against the MILF's Camp Abubakar, a series of bombing rocked several malls and parks of Manila. This was aggravated by the Sipadan kidnapping of foreigners by the criminal elements being led then by Kumander Robot. In year 2000, at the height of the impeachment trial of then President Estrada, a commuter train in Manila was bombed, killing a number of civilians. In April 2003, after Davao City Mayor publicly announced that Davao is a terrorist-free city and thus U.S. troops were an unnecessary addition to the place, Davao Sasa wharf and Davao Airport were bombed. At the end of the day, Duterte made a turnaround on his position.

One can't help asking that while the government has long proclaimed its victory against the Abu Sayyaf --- for the capture of Robot, the killing of its top leaders including Abu Sabaya, the arrest of more than a hundred alleged Abu Sayyaf in Basilan --- why does the government and the military still conveniently use the bandit group as an invincible bogeyman to the people? And while everyone knows that genuine Islam has a strong teaching against harming civilians, persons like Abu Solaiman would come out of nowhere using Islam as the pretext to committing a deplorable deed?

And one can't help thinking again that while the war rages only in Sulu, the government would want to introduce draconian measures in the form of a national ID and an Anti Terror Law for all the people in the Philippine archipelago. And this has been the government's idea since the time of President Ramos. It has been an open secret that the Abu Sayyaf was at the AFP's employ when it was demonizing the MNLF in the 1970's. But we all know that that was long ago. Or so we all thought." (NCCP & MCPA, 21 February 2005, pp. 9-10)

POPULATION FIGURES AND PROFILE

General

General demographics in ARRM and conflict-affected areas (2003)

- As a result of colonial and post-colonial state policy, Muslim population in Mindanao between 1903 and 1999 declined from 76 to only 19 percent.
- Muslim ethnic groups of Mindanao have been largely marginalized by the pace and form of development.
- Tausug and the Maguindanao have been the most politically dominant ethnic groups. Tausug inhabit the volcanic island comprising the Sulu province while the Manguindanaoans live in the often inundated plains of the Cotabato provinces along the Rio Grande of Maguindanao.
- The conflict-affected areas in Mindanao are the poorest among the 77 provinces of the Philippines.
- The highest levels of dissatisfaction with government services are found in Mindanao, especially in the conflict-affected areas.

"Muslims and the influx of Settlers

From making up 76 percent of the population in 1903, the Muslim population in Mindanao had declined to only 19 percent by 1990. This is a direct result of colonial and post-colonial state policy of opening Mindanao to settlers from the islands of Luzon and the Visayas. There is multi-ethnicity at the regional, provincial and municipal levels but at the village level one will mostly find homogenous ethnic communities. Muslim ethnic groups in Mindanao speak related languages, and practice many customs that are similar. Many Muslim ethnic communities-also collectively called Moros –live in close proximity to Christian and other non-Muslim Filipino groups. However, these Muslim ethnic groups remain separate from the “majority” in the Philippine nation-state not only by religion but also by the presence of political movements animated by the idea of belonging to a “Bangsa Moro”- a separate Moro nation. This distinction is enhanced by an imbalance in economic development. The Muslim ethnic groups of Mindanao have been largely marginalized by the pace and form of development carried out by the colonial governments and during the republic’s post-colonial period.

Muslim Ethnic Affiliations

Of the 13 Moro ethnic groups, the Tausug and the Maguindanao have been the most politically dominant for it is from them that the Mindanao Sultanates emerged. The spheres of influence of their early sultanates extended over the communities of the other Moro groups and the Lumads or non-Muslim indigenous groups. The smaller groups are: the Samal, Yakan, Badjao, and the Jama Mapun, of the Sulu archipelago who were once subject peoples of the (Tausug) Sulu sultanate; the Kalangan, Sangil, Kalibugan and Iranun whose settlements were once under the sphere of influence of the Maguindanao sultans; and the Palawani and Molbog of South Palawan.

The Tausug inhabit the volcanic island comprising the Sulu province while the Manguindanaoans live in the often inundated plains of the Cotabato provinces along the Rio Grande of Maguindanao. The Maranao comprise the largest Moro group in terms of population. They live in the plains around Lake Lanao. The

smaller groups occupy more or less distinct territories scattered in Mindnao and the Sulu islands, though in some instances their living spaces are penetrated by families belonging to the larger groups.

Approximately five percent of the total population of the region, the Lumad groups are individually known, as: Ata (or Ata Manobo), Bagobo, Banua-on, Batak, Bla-an, Bukidnon, Dibabawon, Higaunon, Mamanwa, Mandaya, Mangguwangan, Manobo, Mansaka, Matigsalug, Pala'wan, Subanen, Tagagkoalo, Tagbanua, T'boli, Teduray and Ubo.

Poverty in ARRM and the Conflict-Affected Areas

The conflict-affected areas in Mindanao are the poorest among the 77 provinces of the Philippines. These are also the poorest provinces in Mindanao. With the exception of North Cotabato and Davao del Norte, the incidence of people falling below the poverty line and depth of poverty in these provinces rose dramatically from 1997 to the year 2000. The El Nino phenomenon and the fall in the price of copra and rubber contributed to the worsening of poverty in the region.

Without exception, all the conflict-affected areas fall in average per capita incomes from 1997 to 2000. The fall in averages incomes of both the poor and the non-poor populations was most severe in Basilan and Tawi-Tawi.

The Annual Poverty Indicator Survey conducted in October 1999 shows that social services coverage in the conflict-affected provinces of Mindanao compare unfavorably with the typical or median province in the country. The recently completed Filipino Report Card found the highest levels of dissatisfaction with government services in Mindanao, especially in the conflict-affected areas." (WB 3 March 2003, pp. 9-11)

The majority of the displaced are Muslim (March 2003)

- Oxfam estimates that 85 percent of those affected by conflict were Muslims, 17 percent were Christians and 7 percent were from non-Muslim indigenous populations.
- Most of the fighting between the military and the MILF were in camps that were located in towns that had predominantly Muslim populations.
- The ethnic composition of the displaced population is more or less reflective of the overall ethnic composition of the areas directly affected by the armed conflict.
- 60-70 % of the population in affected barangays is Muslim and they tend to stay longer.

"Majority of people who were displaced as a result of the conflict in Mindanao that erupted in 2000 were Muslims. Oxfam estimates that 85 percent of those affected by conflict were Muslims, 17 percent were Christians and 7 percent were from non-Muslim indigenous populations. The reason for this pattern is that much of the fighting between the Philippine troops and the Moro Islamic Liberation Front (MILF) were in camps that were located in towns that had predominantly Muslim populations. The displacement by Philippine military personnel of communities has also created a new kind of tension and is one reason why Muslims find it hard to return to their homes. There are also Christians that stayed in government evacuation centers, but they were able to return to their homes more easily. This is partly because the evacuation centers had to be located further away from Muslim communities and were logically nearer the Christian settlements." (WB 3 March 2003, pp. 12-13)

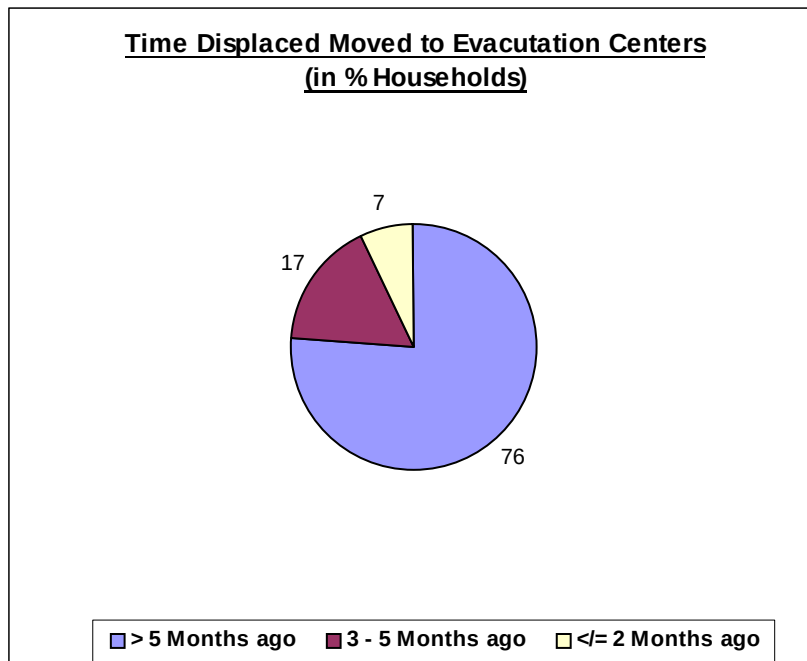
"Of Mindanao's 17 million population, 64 % are Christians, 23 % Muslims and 18 % Lumads. Ethnic preponderance varies in former Moro provinces where Christians have migrated. In Maguindanao, Muslims (60%) predominate over Christians. In Cotabato, Christians (71%) predominate over Muslims (18%) and Lumads. Armed skirmishes, aerial bombing and artillery fires usually occur in interior villages where Muslims and Lumads predominate. The ethnic composition of the displaced population is more or less reflective of the overall ethnic composition of the areas directly affected by the armed conflict.

However, more Muslim evacuees tend to go into and stay longer in evacuation centers than Christians. A social worker from the Pikit MSWDO observes that Muslims preponderate among the evacuees, reflecting the fact that 60-70 % of the population in affected barangays is Muslim and they tend to stay longer. Most Christian evacuees, on the other hand, do not stay very long in the evacuation centers because they usually come from barangays closer to the locations where the hostilities are not so drawn-out. [...]

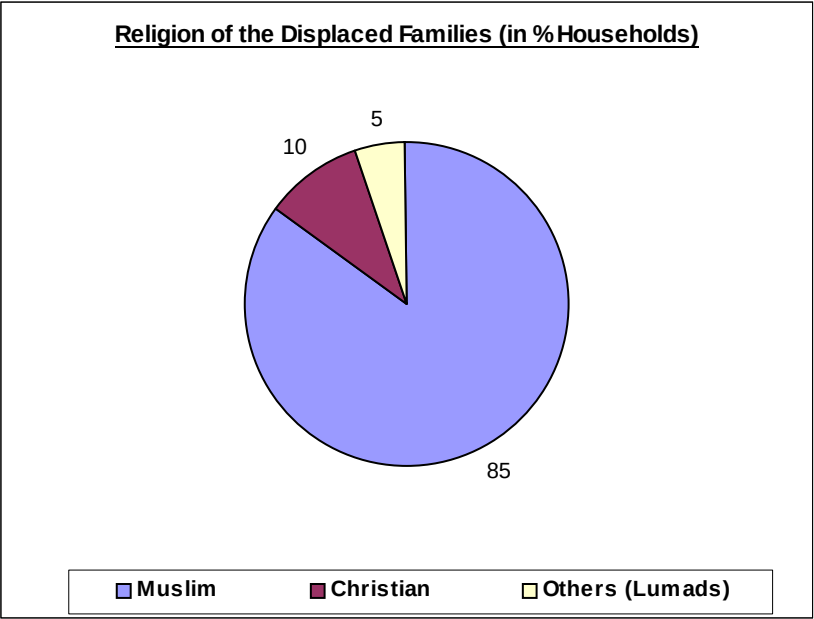
Lumads are also severely affected by the displacement resulting from the armed conflict. This is exemplified by the case of the evacuees in the Macatactac evacuation center (barangay Liliongan, Carmen municipality) – comprising of around 300 families all belonging to the Aromanon Manobo tribe. These evacuees have been in the said evacuation center for one year already." (Oxfam January 2001, pp. 19-20)

The following figures and graphs are taken from a Oxfam G-B survey among displaced families in Central Mindanao in November 2000. The target population was IDPs residing in evacuation centers in Oxfam program area: Maguindanao, North Cotabato and Sultan Kudrat provinces.

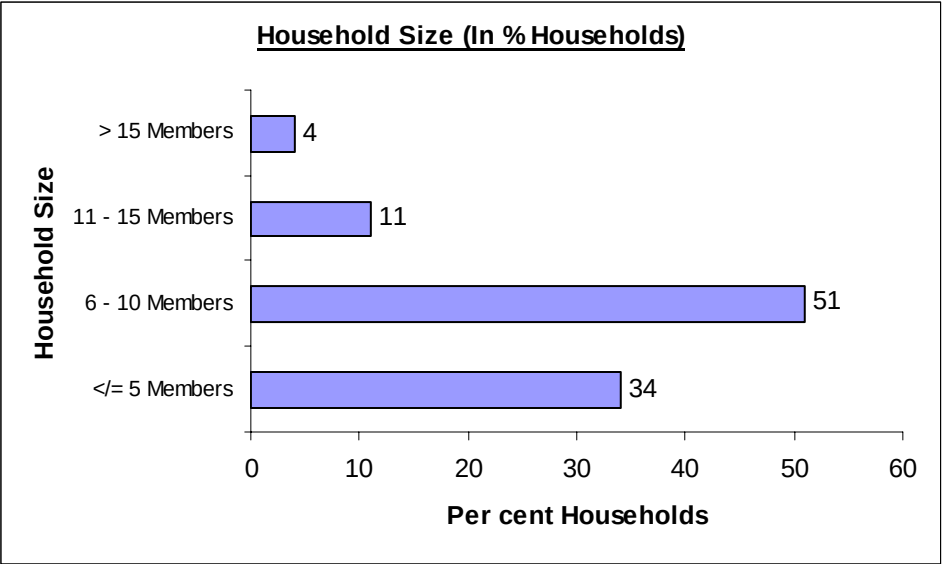
When did the displaced migrate into the Evacuation Centers ?



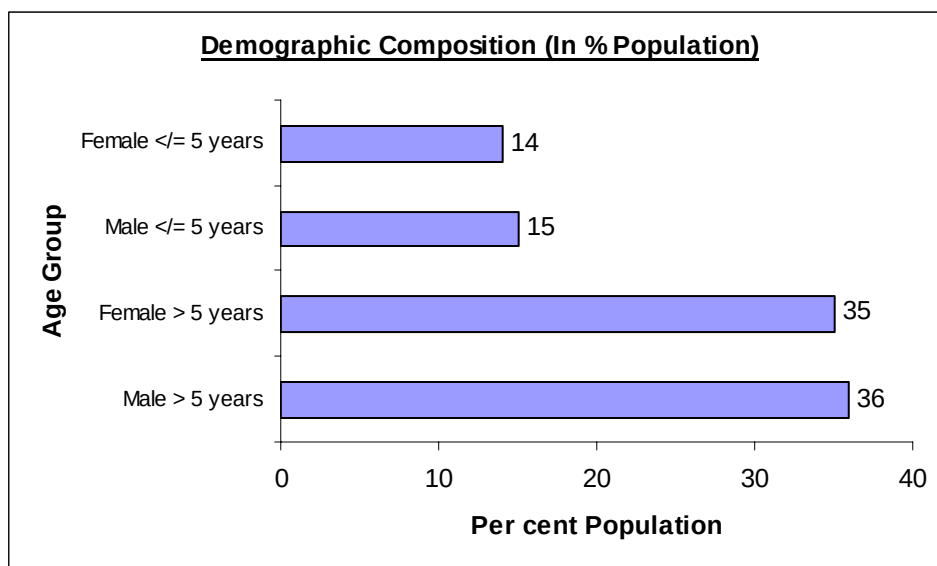
Religion of the Displaced



Household size



Demographic composition



(Oxfam November 2000, p. 9)

Global figures

An estimated 60,000 people remain displaced in the Philippines (September 2005)

- As of September 2005, it is estimated that 60,000 people remain displaced in the Philippines due to conflict.
- This figure includes people displaced during 2005 as well as those displaced in previous years (mainly 2000 and 2003).
- A total of 158,000 were displaced during January and September 2005, the majority returning home in the days or weeks after.

According to the United Nations Development Programme (UNDP), the UN lead agency in the response to the needs of the displaced population in the Philippines, as of August 2005, there were some 10,000 families or 60,000 individuals still displaced from their homes in Mindanao (UNDP, 31 August 2005).

A total of 158,000 people have reportedly been displaced by conflicts in the Philippines between January and September 2005. The majority of the incidents have taken place in Mindanao and led to short term displacements with the majority of the displaced returning after a few weeks. The estimated 60,000 people currently displaced, mainly in the ARMM region, includes people who were displaced by the 2000 and 2003 wars (GIDPP, 15 September 2005)

More detailed information about the profile, location and needs of the displaced would be made available upon completion of an IDP baseline study conducted in 2004, but not yet available. The majority of the displaced are located in the Muslim-populated areas of the ARMM region and in Central Mindanao.

Sulu combats displace an estimated 85,000 people between February and April 2005

"Reports gathered from the Department of Social Welfare and Development (DSWD) and Philippine National Red Cross (PNRC) – Sulu Chapter revealed that as of March 24, 2005, the internally displaced persons (IDPs) affected by the Sulu war was 9,879 families or about 57, 900 persons. This number is slightly reduced from the reported 15% of the total population (536,000) who rushed to safety during the height of the fighting in early February.

The DSWD admitted that at least 10,000 IDPs, who did not go to designated evacuation centers and instead sought refuge with their families and relatives are yet to receive assistance from the government. On this note, comes the impression that the data on the actual number of the IDPs may have been uncertain or inaccurate, in any case understated.

The largest number of the reported IDPs came from the municipality of Indanan, with 2, 963 families or 17, 778 persons; followed by Patikul with 606 families or 5, 611 persons; and then Panglima Estino with 956 families or 4, 577 persons. The biggest evacuation center in Sulu is in the elementary school of Panglima Mamah, which has no water source. The rest of the IDPs are from Panamao, Jolo, Parang, Kalingalan Caluang, Luuk and Maimbung towns." (Mindanao Peaceweavers, April 2005, p. 14)

"Thirteen thousand four hundred forty (13,440) families composed of 85,532 persons were affected.

A total of 1,601 families composed of 8,475 individuals are still being served inside and outside of the evacuation center.

To date, one (1) evacuation center remained open at Timbangan, Indanan sheltering 15 families composed of 68 individuals while 1,586 families composed of 8,407 individuals are still being served outside." (DSDW-DROMIC, 9 June 2005)

60,000 people still displaced in Mindanao at the end of 2004

- It is estimated that 60,000 people remained displaced in the Philippines at the end of 2004.
- The vast majority were located in the Muslim-populated areas of the ARMM region.
- From January to December 2004, a total of 63,000 people were displaced due to conflict. 40,000 were displaced in the ARMM region and 20,000 fled their homes in region XII (or SOCCSKSARGEN region) in central Mindanao.

According to the United Nations Development Programme (UNDP), the UN lead agency in the response to the needs of the displaced population in the Philippines, as of the end of 2004, there were some 10,000 families or 60,000 individuals still displaced from their homes in Mindanao. More detailed information about the profile, location and needs of the displaced would be made available upon completion of an IDP baseline study conducted in 2004, but not yet available. The majority of the displaced are located in the Muslim-populated areas of the ARMM region and in Central Mindanao.

In addition, as of early February 2005, some 2,000 people remained displaced in the province of Maguindanao following fighting between the MILF and the military in early January 2005.

For more details, see GOP-UNDP Programme on Rehabilitating IDPs and Communities in Southern Philippines, UNDP, 21 September 2004 [[Internet](#)]

A total of 63,000 people fled their homes in Mindanao as a result of armed confrontation (DSWD, 9 February 2005)

"In Mindanao, thousands of IDPs still languish in evacuation camps despite government pronouncements that there are no more such camps, Fr. Bert Layson, OMI, Pikit Project Immaculate Concepcion said."(PRWeb 9 March 2004)

"Close to 3,000 families displaced by last year's war between the military and the Moro Islamic Liberation Front have remained homeless even as the government is yet to finish rebuilding the houses of people affected by ousted president Joseph Estrada's all-out war in 2000, a senior official of the Department of Social Welfare and Development today said.

Citing the department's 2003 year-end report, Vilma Cabrera, DSWD Program Management Bureau director, said that of the targeted 5,816 core shelter units for last year's war in several parts of Mindanao, only 2,935 houses were completed, or just a little over 50 percent." (Mindanews 28 January 2004)

Between 60,000 and 88,000 people remained displaced at the end of 2003

- Of the 438,000 (415,000 + 23,000) people displaced from their homes during 2003 in Mindanao, it is estimated that between 60,000 and 88,000 remained unable to return by the end of the year.
- In early 2004, a DSWD official acknowledged that some 3,000 housing units had yet to be completed and that a similar number of families were thus still homeless.
- Other sources, including NGOs and media claim that although the evacuation sites are all officially closed and assistance has stopped there are still people living there, unable or unwilling to return for various reasons. In addition there might be more displaced accommodated by friends and relatives (the majority stayed outside evacuation centers) who are still unable to return.

People displaced by the February 2003 war

According to the Department of Social Welfare and Development (DSWD) , of the estimated 411,000 people displaced from their homes by the resurgence of the conflict between the government forces and the MILF in February 2003, some 65,000 people remained displaced as of October 2003. Of this number, some 56,000 were staying outside evacuation centers, mainly with friends and family.

The vast majority (58,000) of the remaining IDPs were located in the Muslim-populated areas of the ARMM region. The rest (4,200) was displaced in region X.

An unknown number of these IDPs managed to return home between October and December 2003.

At the end of November 2003, the Mindanao Times Online reported that Social Welfare Secretary Corazon "Dingky" Soliman, acknowledged that "(...) there are at least 13,000 homeless families in Mindanao, particularly in the Autonomous Region for Muslim Mindanao" (Mindanao Times Online 27 November 2003)

"The series of armed confrontations between the Moro Islamic Liberation Front and the military forces of the Government of the Philippines in the first quarter of 2003 resulted to an astounding 415,233 persons or 82,012 families affected The term "affected" refers to those persons who have lost their homes and livelihood, displaced, fallen as casualties to the war (killed, etc.), or other persons directly affected in any other way, as defined by the DSWD., as accounted by the Department of Social Welfare and Development (DSWD) in its status report dated October 9, 2003. Of this figure, 636 persons or 132 families are from the

Southern Mindanao Region; 12,875 persons or 2,479 families come from Western Mindanao Region, 36,420 persons or 6,970 families from the Northern Mindanao Region, 143,654 persons or 28,520 families are from the Central Mindanao Region, while the largest affected population is from the Autonomous Region of Muslim Mindanao, with 221,648 persons or 43,893 families affected.

At the height of the war, armed conflicts spread into more than 367 Barangays or communities in 83 municipalities and cities in 12 provinces in the south. Among the number of affected and displaced people, almost 200,00 persons sought refuge in 275 official government evacuation center while more than this number (243,571) sought refuge from other places like friends' or relatives' houses. Still, many others remain undocumented.

As of the moment, there is no available complete report from the authorities on how many displaced people have already returned home. While there are official evacuation centers being closed, it is not assured that the families return to their place of origin.

People displaced by the December 2003 clashes

Following clashes in Maguindanao province in December 2003, an additional 23,000 people (believed to be sometimes the same as those who were displaced earlier in the year) were displaced from their homes. Most IDPs (14,415) sought refuge in some 17 evacuation centers, 9 of which were located in Datu Saudi municipality.

In December 14, 2003, however, after the proclamation of bilateral ceasefire in July, another armed confrontation between the GRP and the MILF took place in the Autonomous Region of Muslim Mindanao affecting 21 Barangays. In this new disaster, 21,235 persons or 4,247 families were affected, which is highly possible are the same people affected during the first quarter conflict who may have returned home after the declaration of ceasefire.

Of this number of affected, 14,465 persons were reported to have sought refuge in 17 government evacuation centers while 5,740 persons were reported to have gone to their friends or relatives' houses in other municipalities to avoid being caught in the armed conflict in their villages.

" (Balay January 2004)

(According to DSWD figures, as of March 2004, all evacuation centers were closed and all the 23,000 people displaced by the December 2003 fighting had returned home)

For more information, see:

Mindanao armed conflict, ARMM region, Statistical report, DSWD-DROMIC, 25 March 2004 (excel file)

At least 45,000 people displaced in Mindanao at the end of 2002

- At least 45,000 people still displaced at the end of 2002.

- Some 95,000 persons were displaced by armed conflict between January and November 2002.
- As of January 2002, the government estimated that 67,000 persons were displaced, most of them outside evacuation centers.

As of the end of September, the DSWD of the ARMM region stated that there were still some 45,539 IDPs living in evacuation centers. With persistent fighting and renewed displacement occurring up to the end of the year throughout Mindanao, it is very difficult to provide a realistic estimate of the total number of people displaced (inside and outside evacuation centers), and the figure of 45,000 should be considered as a conservative estimate.

Source: DSWD-ARMM, 8 November 2002

Number of people displaced during 2002

According to the Philippine NGO Ecumenical Commission for Displaced Families and Communities (ECDFC), some 85,000 people were displaced by armed conflict between January and August 2002. Since then additional fighting has displaced at least 10,000 persons in the provinces of Lanao del Sur and Maguindanao (Mindanews 28 October 2002), putting the total number around 95,000. Out of these 95,000 persons the majority has been able to return once the fighting subsided, but an unknown number, mainly in Sulu and Basilan (where figures are difficult to obtain), are probably still displaced.

For details on the displacement incidents see:

[-Review of conflict-related displacement incidents during 2002 \(August 2002\)](#)

IDPs in evacuation centers (as of June 2002)

"The number of IDPs who remained at the evacuation centers that had a count of 1,033 families (5,165 persons) as of 31 March 2002 further decreased to 567 families (2,764 persons) as of 30 June 2002. From fourteen (14) evacuation centers that unofficially continued to shelter IDP families at the beginning of the reporting period, only ten (10) evacuation centers remained with IDPs by the end of the period. Many IDPs in the evacuation centers in Carmen and Pagalungan were finally able to go home as the security situation in their communities of origin significantly improved. The availability of shelter and livelihood assistance at the communities of origin further encouraged their return. However, no movements were recorded among the IDP families that continued to remain in the evacuation centers in Pagagawan municipality." (CSFI July 2002, p. 2)

Source: CFSI June 2002

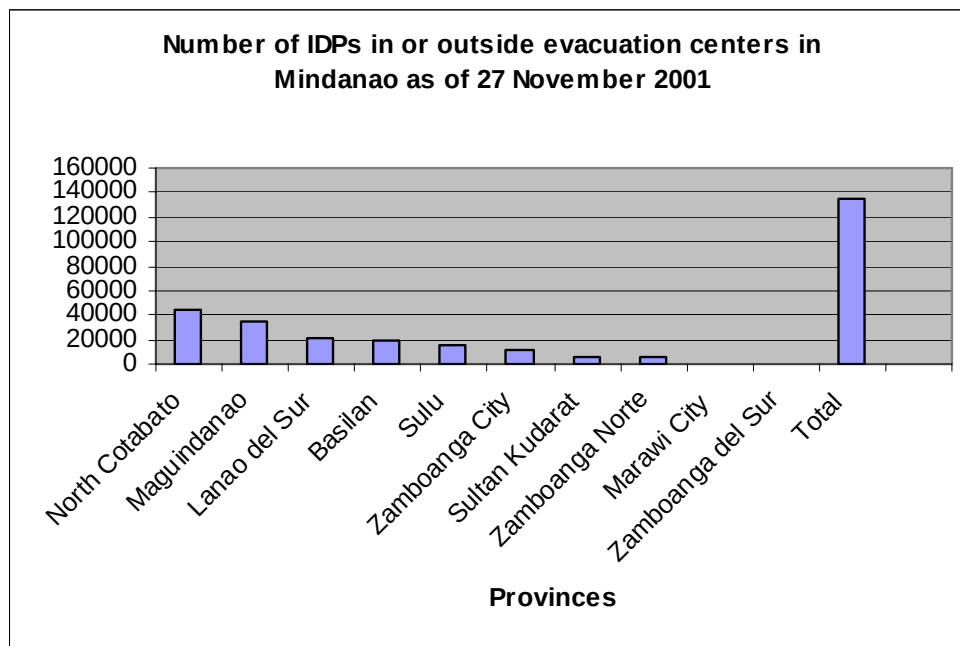
Number and location of displaced people as of January 2002

Over 135,000 persons still displaced in Mindanao at the end of 2001

The total number of persons displaced in Mindanao as of November 27, 2001 is estimated to be between 135,000 and 150,000.

The total number of persons still displaced by the fighting that started in Mindanao in March 2000 between the AFP (government security forces) and the MILF is estimated to be between 80,000 and 100,000. These figures are to be taken with caution as government figures include those "affected" by the Mindanao conflict and who have sought assistance from the government and exclude those displaced who didn't seek government's assistance. (USCR June 2001)

In addition, a total of 28,717 families have been displaced by conflict-related incidents between January and November 2001 (ECDFC 23 November 2001; Balay 27 November 2001). Most of the 2001-displaced have returned since but there are still an estimated 9,573 families (or 52,651 persons) displaced in November 2001 who have yet not been able to return. The 25,000 persons displaced by the fighting between the AFP and a kidnapper group on November 17 are staying in warehouses or gymnastic houses in Pikit (North Cotabato province) while the 15,790 persons displaced by the fighting between the AFP and the MNLF on November 18 are housed in 10 evacuation centers in Jolo (ECDFC 23 November 2001). The most recent displacement took place on November 27, 2001 following renewed fighting between the MNLF and the government forces around Zamboanga City forcing an estimated 2,000 families (or 11,000 persons) to flee their homes. (Balay 27 November 2001)



Philippine Government figures

According to figures provided by the Department of Social Welfare and Development (DSWD) there are still an estimated 83,038 IDPs in Mindanao as of 5 November 2001, most of them (73,093) accommodated outside evacuation centers .

33% of are in Maguindanao province (ARMM region)

19% are in Lanao del Sur province (ARMM region)
 19% are in Basilan province (region IX)
 18% are in North Cotabato province (region XII)
 6% are in Zamboanga Norte province (region IX)
 5% are in Sulu province (ARMM region)

PROVINCES	Number of IDPs
Maguindanao	34,545 (6,154)*
Lanao del Sur	20,460 (804)*
Basilan	19,896 (0)*
North Cotabato	18,612 (2,678)*
Sultan Kudarat	6,029 (1,023)*
Zamboanga Norte	4,901 (0)*
Sulu	522 (0)*
Marawi City	309 (309)*
Zamboanga del Sur	257 (0)*
Zamboanga City	17 (0)*
TOTAL	83,038 (9,945)*

*The figures between brackets show the number of IDPs still sheltered in evacuation centers
 Source: DSWD/DROMIC, 5 November 2001

Fighting between AFP and MILF displaced nearly 1 million person during 2000

- Nearly 1 million people displaced during the 2000 war between MILF and AFP, 6,000 houses destroyed, more civilians than combatants killed.
- As of November 2001, 90% of the displaced had returned or relocated.
- The type of displacement produced was qualitatively different from those seen in recent years, with a tendency toward longer-term displacements.

"The most significant displacement was recorded in Maguindanao, Sulu, Lanao del Norte, North Cotabato and Marawi City. In November 2001, the Department of Social Work and Development (DSWD) reported that 71 percent of the displaced were in these areas of Region 12 and the Autonomous Region in Muslim Mindanao (ARMM). At that time 90 percent or 849,000 of the estimated 932,000 people displaced by the conflict have already either returned to their homes or moved to other places of relocation." (WB 3 March 2003)

"Increased militarization has led to more civilian than military fatalities. In the period of maximum combat in the year 2000 (January-August), there were 218 soldiers and militiamen killed and 354 civilian fatalities, as well as 457 MILF killed. The government also reports that more civilians died in the evacuee centers than in combat. That figure of over 700 civilian deaths in combat or in evacuee centers is greater than the combined soldier, militia, and MILF losses of 677 in the same period.

Increased militarization has also led to the destruction of over 6000 homes and the internal displacement of nearly one million persons, 300,000 of whom were in that status in October 2000.

The National Peace Forum identified two cases that they consider to constitute intentional destruction of housing by the Army (Nalapoan Pikit, North Cotabato and Matanog, Maguindanao). The same representatives point out that this should not be considered a pattern in that other cases have not been identified. However, the tactics employed did objectively lead to a large number of houses destroyed and a massive displacement of civilian population. The type of displacement produced is also qualitatively different from those seen in recent years. There now exists a tendency toward longer-term displacements for the first time since the 1970's. Only 10% of the persons whose homes have been destroyed desire to return to their place of origin as of October, 2000. In some cases relocation is being undertaken. The displaced persons do not wish to return to the locations of their previous homes due to the presence of the military, not because they fear the soldiers, but rather because stationary or in transit military draw MILF attacks that frequently place civilians in cross-fire situations. The net result is that human security in the areas affected has deteriorated as a result of militarization." UNDP 13 November 2000, p. 4)

PATTERNS OF DISPLACEMENT

General

Occasional cooperation between military and MILF allows for better-coordinated evacuations of civilians (August 2005)

- During 2004 and 2005, improved communication between MILF and government has allowed for better planned and coordinated evacuation of civilians, although the latter have remained at risk of sudden displacement.
- During 2003, people have generally fled the fighting between the government troops and the MILF.
- Villagers are sometimes ordered by the military to leave their villages to allow elbow room for troop maneuvers, or villagers are driven out by the fear of being caught in the crossfire, or the terror of being accused as sympathizers in whichever side of the current conflict.

Enhanced cooperation between military and MILF allows for better planned evacuations of civilians (August 2005)

"Since July 1, the Philippine Army has been trying to find and attack a band of the Abu Sayyaf Group or ASG who are reportedly in Maguindanao. Under harassment by continuing AFP operations, the ASG has split into small groups.

Not to endanger the peace process and the ceasefire, the MILF and the government agreed to cooperate in the evacuation of more than 1,500 civilians in the affected barangays in Guindolongan (Brgy. Ahan, Upper Muti, Datal Pandan and Lambayo) and Talayan (Brgys. Pukol, Marader, Timar).

The MILF meanwhile has agreed to temporarily move out from two of their camps in Maguindanao, Camp Badar and Camp Omar, to give government troops the leeway to operate in their areas. The MILF fighters move out under a guarantee of security by the government. A search operation, planned first for 72 hours, is extended several times when the army is still unable to make contact with the group of terrorists.

(...)

Some of the evacuees have been allowed to enter the area of search operations on the west side of the Ahan river. But they are only allowed in the area from 7 a.m. to 3 p.m., a mechanism agreed on between the MILF and GRP. Eight hours. But it already takes the farmers some six hours just to reach their farms! Six hours from the allowed eight!

(...)

Some farmers return to their farms and stay there overnight, accepting the risk to remain in an area that has not been declared "cleared" of terrorist elements. We talk about the security question for the evacuees—how will their security be ensured? It is a difficult question: Have you ever chosen between your personal security and the necessity to be able to feed your family in the coming months?" (Mindanews, 19 August 2005)

Without prior warning, people in Maguindanao leave their homes to the sound of the air strikes and bombs (January 2005)

"At around 9:00 o'clock in the morning, January 27, 2005, residents of barangay Tee, Andabit and nearby barangays were shock when an OB-10 bombers, helicopter gunship suddenly open fire and dropped several

rounds of bombs in their place. According to one of the resident, she was fishing that time when incidents happen. She jumps from her little “banka” and hide in thick “baumbong” a tall grass for safety. When the bomber planes left she hurriedly went home and carried all her siblings to barangay Butalo. She don’t even know if there were houses being burn or destroyed because she left at that moment for fear if the bomber planes will return.

According to Barangay Captain Marcus Manunggal of Barangay Tee, an estimated of 400 families from his barangay were displaced. He could not ascertain how many houses and properties being destroyed when the air strike hit the area because they left their villages at the height of the bombing. Barangay Captain Dimalon Silvando of Barangay Andabit also said that more than 100 families were affected from his barangay. Barangay Captain Silvando added that a 14-year-old child and four (4) adults was wounded in the attack." (Batay Ceasefire, IMT, GRP-MILF CCCH, 28 January 2005, p. 1)

Evacuees usually leave their homes before fighting either because they are encouraged to do so by the military or out of fear of being caught in the crossfire

"Some 4,000 families or 20,000 residents, most of them Muslims, have fled 11 villages in Pikit, North Cotabato since Saturday afternoon, fearing a crossfire between government forces and the Moro Islamic Liberation Front (MILF).

As of 5 p.m. today (Sunday), 22 truckloads of Marine troopers have arrived in Pikit, Fr. Roberto Layson, OMI, Pikit parish priest, said. Armored personnel carriers rolled into Pikit Friday night, he said.

(...)

Fr. Layson the evacuees from Barangay Rajamuda and 10 other villages along or near the Pulangui River, are now in the poblacion of Pikit or neighboring towns of SK Pendatun and Pagalungan in Maguindanao.

The deployment of “25 battalions” according to the Moro Islamic Liberation Front in Maguindanao, and the arrival of armored personnel carriers in Pikit Friday night, have evoked a war scenario here last seen in June 2000.

But Major Julieto Ando, spokesperson of the Army’s 6th Infantry Division, said the evacuees fled their villages after seeing “some 2,000 MILF” (Moro Islamic Liberation Front) forces massing up in Barangays Buliok and Cabasalan." (Mindanews, 9 February 2003)

"Many regions in the Philippines are today highly militarized, and with increased military presence, the number of reported human rights violations has risen.

(...)

Military campaigns are usually followed by massive displacement of communities. Villagers are sometimes ordered by the military to leave their villages to allow elbow room for troop maneuvers, or villagers are driven out by the fear of being caught in the crossfire, or the terror of being accused as sympathizers in whichever side of the current conflict." (TFDP, July 2002)

IDPs are generally moved from one camp to another, many end up staying there permanently (January 2004)

- Most displacements caused by the fighting between the rebel MILF and the military follow and rural-urban migration pattern.
- Usual, the displaced make prolonged stops in 2-3 places before reaching their final evacuation center, which consists of schools, public buildings or tent cities, where conditions are generally inadequate.
- In most cases, the IDPs end up residing permanently in the host communities.

- The type of displacement produced since 2000 is qualitatively different from those seen in recent years. There now exists a tendency toward longer-term displacements for the first time since the 1970's.

"The rural-urban migration in Cotabato and Maguindanao provinces is generally caused by the conflict between the Moro Fronts and the Armed Forces of the Philippines. Families are uprooted from their homes due to armed-conflict in their communities of origin. They left their homes and property and settled in the poblacion or in the nearest city. Regarding their experiences, most IDPs had to make prolonged stops in two or three places prior to their final encampment. The shortest stop in one place was 60 days and the longest 1,080 days.

Conflicts generally arise when the host communities are not ready or prepared to address the needs of the displaced persons. Most often the IDPs are housed in schools, gymnasiums and temporary tents/shanties, which are usually overcrowded and not well maintained. These conditions usually last from two to three months or even longer. In most cases, the IDPs end up residing permanently in the host communities. Several reasons may be attributed to this permanency of residence by the IDPs. First, the heads of the displaced families have found employment in the host communities and that the families have regular source of livelihood. Second, the displaced families have their children enrolled in schools of host communities. Third, these families have already adjusted to the life in the host communities. They are able to establish good rapport with their new neighbors. The presence of the displaced persons in the host communities is considered a case of migration, particularly for those who opted to stay permanently in the area." (Notre Dame University & Commission on Population, 2004, p. ii)

Tendency to long-term displacement

"Increased militarization has also led to the destruction of over 6000 homes and the internal displacement of nearly one million persons, 300,000 of whom were in that status in October 2000. The National Peace Forum identified two cases that they consider to constitute intentional destruction of housing by the Army (Nalapoan Pikit, North Cotabato and Matanog, Maguindanao). The same representatives point out that this should not be considered a pattern in that other cases have not been identified. However, the tactics employed did objectively lead to a large number of houses destroyed and a massive displacement of civilian population. The type of displacement produced is also qualitatively different from those seen in recent years. There now exists a tendency toward longer-term displacements for the first time since the 1970's. Only 10% of the persons whose homes have been destroyed desire to return to their place of origin as of October, 2000. In some cases relocation is being undertaken. The displaced persons do not wish to return to the locations of their previous homes due to the presence of the military, not because they fear the soldiers, but rather because stationary or in transit military draw MILF attacks that frequently place civilians in cross-fire situations. The net result is that human security in the areas affected has deteriorated as a result of militarization." (UNDP 13 November 2000, p. 4)

Civil authority tends to fade away during displacement (2004)

- Displaced communities usually have an official or unofficial pre-designated rallying point where families can seek temporary shelter and submit themselves to a command structure higher than the family.
- Civil authority assumes command from the villages to the evacuation centre, at which point this authority tends to fade away to give way to new forms of authority.

"The reality of war comes in various streams: bombing, artillery, the visibility of armed groups, exit of families. Displaced persons caught in this situation initially respond emotionally and physically – first, to struggle between fear and composure, and second, to secure life and limb.

This is the most critical phase where damages could be fatal and coping abilities confront thin lines of time and space. In the interim, the community temporarily loses its sense of community. The responses of individuals and families come into play.

A community usually has an official or unofficial pre-designated rallying point where families can seek temporary shelter and submit themselves to a command structure higher than the family. This can be a school, a post-harvest facility like a solar dryer or a place of worship. At this stage, local authority assumes leadership. This can be the civil authority of the local government or the informal authority of indigenous structures such as the tribe or community organisation.

Evacuation is also a critical phase in terms of governance. While the civil authority assumes command of transposing the community to the evacuation centre, in the very same process, this authority fades away. As soon as the community members reach the evacuation centre, they would respond to new authority.

For displaced persons, the evacuation centre is an arena for transitions. Economically, duty bearers are able to arrest hunger and deprivation through supply of food and non-food items. Socially, displaced persons are torn between re-establishing bonds with former neighbours and friends from whom they may have been separated during the evacuation or establishing new bonds with displaced persons from other communities. While this bonding reduces stress in the evacuation centre, it does not necessarily secure social capital and other investments in preparation for their return home. Politically, the formal civil structure that governs displaced persons in their home communities tends to fade away in the evacuation centre." (Save the Children, 2004, pp. 80-81)

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical security

Despite fighting and interdiction, some villagers prefer to risk staying close to their farms to harvest their crops (August 2005)

- Despite the fighting and the risk, some farmers have reportedly preferred to stay near their homes to ensure that they could harvest their crops and feed their family

"Hundreds of villagers in Barangay Ahan, Guindulungan, Maguindanao are facing threats of starvation and hunger after they were unable to harvest their crops when fighting between soldiers and bandits broke out in early July this year. Out of desperation, the villagers also refused to leave their homes and farms despite the sporadic air strikes and mortar shelling, for they feared that should they leave, they would have no available means to provide for their livelihoods.

The villagers in Barangay Ahan depend on their farm crops for their food and livelihoods. When the military operations started in early July, the villagers were supposed to harvest about 196 hectares of corn, rice and sesame seed crops, however were unable to do so because of the fighting and violence in the area. Failure to harvest their crops means the villagers could potentially face at least three months of hunger. Thus, while the villagers attempt to harvest amidst the violence, many are left with little food for their consumption.

The villagers do have the option to move to designated evacuation centers as the fighting and random air strikes continue, however many have refused to move because of the meager relief assistance victims are receiving from the Department of Social Welfare and Development (DSWD), and the poor conditions that await evacuees at the centers. This situation has greatly discouraged the victims to flee as they will continue to struggle for food at these evacuation centers.

Victim Jose Acmad, a peace advocate and Chairman of the Mindanao Peoples Caucus (MPC), has joined hundreds of villagers who refused to leave their homes and farmlands on August 18, 2005. It is unfortunate that these victims must take such high risks as a result of the poor conditions at the evacuation centers, but the potential for sufficient food is much better in the village. Acmad said, "At the evacuation centers, we watch our children get sick from hunger while there are so many crops waiting to be harvested in our own communities".

Furthermore, the evacuation was brought on very suddenly and the villagers were not given enough time to prepare for the move. Of the villagers who were evacuated, those who wished to return to their farms and harvest crops for food were refused security and protection.

Reports from Bantay Ceasefire, a group of human rights organizations monitoring the situation, disclosed that the toll on the civilians who remain in the village is mounting - children are getting sick, crops are damaged and there is massive displacement. It was also reported that the civilians' movement has been restricted in the area."(AHRC, 26 August 2005)

"Some of the evacuees have been allowed to enter the area of search operations on the west side of the Ahan river. But they are only allowed in the area from 7 a.m. to 3 p.m., a mechanism agreed on between

the MILF and GRP. Eight hours. But it already takes the farmers some six hours just to reach their farms! Six hours from the allowed eight! To harvest, two hours is simply not enough. And with our new experiences with the Philippine kitchen, it is also clear that giving each family five kilos of rice is not enough government support to the evacuees.

(...)

It is evening and we are at the Notre Dame Peace Center in Cotabato City with some 40 Bantay Ceasefire members. We are discussing the situation of the farmer evacuees of Barangay Timar. Some farmers return to their farms and stay there overnight, accepting the risk to remain in an area that has not been declared "cleared" of terrorist elements. We talk about the security question for the evacuees— how will their security be ensured? It is a difficult question: Have you ever chosen between your personal security and the necessity to be able to feed your family in the coming months?" (Mindanews, 19 August 2005)

Local NGOs report grave human rights violations against IDPs committed by the military in Surigao del Sur (June 2005)

- KARAPATAN, a national human rights NGO reported in May 2005 on human rights violations, including torture, reportedly committed by the military against displaced civilians suspected of belonging to the NPA rebel group. The incidents took place in Surigao del Sur
- Another human right source reported that a wounded displaced person died before reaching the hospital because of lengthy military checkpoints

"The Asian Human Rights Commission (AHRC) has received information from a coalition of churches and human rights organisations in Surigao del Sur, Mindanao, regarding serious human rights violations against civilians and indigenous people (IPs), which took place during a military operation against insurgents between 28 April and 12 May this year.

Reports from KARAPATAN, a human rights non-governmental organization, disclosed that a 27-year-old civilian, wounded in a shooting, died when the military allegedly prevented him from being taken to hospital. Twelve farmers and evacuees were allegedly tortured separately by the military over suspicions they were either rebels or rebel sympathizers. Three of them are young men and were used as human shields and guide against their will to locate rebel positions. The disappearance of seven people and the massive evacuation of civilians, also took place." (AHRC, 26 May 2005)

"Jessica Bacasmas, a young mother at the age of 21, returned to Emerald without her husband, Jessie, who was shot reportedly by soldiers and made to bleed to death without medical attention during the evacuation last May 12.

Jessica, along with her mother-in-law Rosita, remembers the ordeal of trying to bring her husband to the nearest hospital. A one-hour ride to the town center turned into a four-hour torment as their truck was stopped by three checkpoints going down from their village. Soldiers frisked through every evacuees belonging, ignoring the condition of Jessie.

In one of the checkpoints, soldiers held Jessie's family for questioning. Rosita said the soldiers were pressing that the wounded Jessie might be a New People's Army (NPA) rebel. They were only made to pass after half an hour. Jessie eventually died when they arrived at the barangay health center in Diatagon.

In tears, Jessica said, 'My husband is not an NPA. Just look at his hands and you will see his hands hardened by threshing abaca. His death was senseless, and I want justice for the killing of my husband.' " (Bulatlat, 29 June 2005)

See also:

"Troops force Manobos to flee Andap Valley", Bulatlat, 28 May 2005

Fact-finding missions on Sulu combats report human rights violations by military (April 2005)

- A fact-finding mission conducted in Sulu in March 2005 by civil society organisations concluded that although no civilian casualties had been reported during evacuation, the military had nonetheless made use of excessive force against the MNLF rebels.
- MNLF accused military of the following "acts of terrorism": poisoning of water sources, taking cover in civilian homes, "hamletting" or hostageing of a community, use of civilians as perimeter defense, and then "kidnapping" of cows, goats and other farm animals.
- Another civil society mission, led by Kalinaw Mindanao, reported the following violations: denial of medical treatment to civilians, indiscriminate aerial bombing and shelling on civilian populations, summary executions, desecration of remains, divestment and destruction of properties, looting, strafing, violation of domicile, grave/threats/intimidation and harassments.

Sulu Peace and Solidarity Mission reports no civilian death during first ten days of combats but points to possible use of excessive force by military

"Whether led by the MNLF or on their own after some pre-warnings, the large number of evacuees, reaching around 70,000 at one point, though with no reported deaths in evacuation, are among the real casualties of this war, along with the combatants killed and wounded in action.

(...)

The absence of civilian casualties during the ten-day war might also be attributed to the conscious efforts of both sides to avoid such.

(...)

It was the impression of the mission that the general level of understanding of international humanitarian law (IHL) is low on both sides.

(...)

There are questions of IHL and the rules of war which arise on both sides. A major one has to do with the heavy firepower used by the AFP, especially howitzer rounds (of at least 155-mm.) and aerial bombs (of at least 500 lbs.). Is this already "excessive force," legally or morally inappropriate for an internal armed conflict between brother Filipinos? Should that firepower not be reserved instead for foreign invaders? The way war is waged may have some bearing, for better or for worse, on the subsequent peace which has to be waged. According to some accounts, howitzers were fired from school grounds and caused nose-bleeding and vomiting among school children. Col. Pajarito says these weapons were issued to them by higher headquarters and they will naturally use what is at their disposal to accomplish their mission. He speaks instead of "overwhelming force" which is needed to discourage the enemy so that the situation in Sulu does not spread to other areas. But it is precisely the overkill which could generate sympathy in other areas.

Among other MNLF complaints in the AFP's conduct of the war were the poisoning of water sources, taking cover in civilian homes, "hamletting" or hostageing of a community, use of civilians as perimeter defense, and then "kidnapping" of cows, goats and other farm animals which they likened to "acts of terrorism" of the Abu Sayyaf. AFP complaints of MNLF conduct tend to involve beheadings and other mutilations, and atrocities against innocent civilians. The mission did not have enough time to make a more thorough inquiry into the possible violations of the laws of war by both sides." (Mindanao Peaceweavers, April 2005, pp. 8-9)

Kalinaw Mindanao mission reports that serious human rights violations were committed by military during Sulu offensive

The following are the specific observations of the Mercy Mission:

(...)

9. An estimated 100 bombs were released by military elements for ten consecutive days (February 7 -17, 2005.)

10. Private dwellings of Moro people were used for military purposes without permission endangering the lives of civilians.

11. Denial of medical treatment both to the civilians and combatants alike were also committed.

12. Children remain traumatized. It was noticed that low self-esteem is felt by most of the children because they don't have money, no food. Their parents are all farmers, most of the time they cried because of their being poor.

13. Human rights violations committed against the community such as indiscriminate aerial bombing and shelling on civilian populations using artillery, mortar and cannons resulting to massive evacuation and displacement of the communities in the municipalities of Panamao, Indanan, Patikul, Maimbong and Parang were documented.

14. Serious specific human rights violations were also documented such as summary executions, desecration of remains, divestment and destruction of properties, looting, strafing, violation of domicile, grave/threats/intimidation and harassments.

15. Perpetrators were identified: 53rd IB, 6th IB, Scout Rangers; and the Task Force Comet under Brig. General Agustin Demaala.

Considering all the data gathered of the Mission, including that of the advance party sent to Sulu on March 1-3, 2005, the Mercy Mission has the following conclusions:

1. There is a continuing and intensifying human rights violations and grave disrespect of the Government of the Republic of the Philippines to the International Humanitarian Law as it deals with the internal armed conflict in Sulu.

2. The human rights violations documented by the fact-finding mission in 2002 continued to be committed by the AFP giving credence to the claim by the MNLF that continuous violations of the peace agreement of 1996 remained and is one of the reasons to the recent conflict in Sulu.

3. As it was in 2002, civilian communities have been the deliberate targets of intense military operations. Apparently, it has been part of the military strategy to attack civilian communities. Airpower and artillery bombardments have been excessively used during the military operations, resulting to the unnecessary destruction of private properties, and causing casualties and injuries among civilian populations. No distinctions have been made between armed elements and non-combatants. It became more apparent when major public chattels such as water installation and public schools, instead of being protected, were deliberately destroyed to sow terror amongst the people.

4. The military units have bragged on martial rule as these have shown no respect for civilian authorities in areas where the operations were conducted. As a matter of fact, even the Mayor of Patikul could not guarantee our safety should we enter his municipality, because of the restrictions military units have imposed." (Kalinaw Mindanao, April 2005, pp. 6-7)

Human Rights NGOs reported indiscriminate arrests, torture of suspects and shelling of civilian areas during 2003 (February 2004)

- NGOs have criticized the government for being overzealous in its efforts to defeat the various insurgencies in the country during 2003
- It included indiscriminate arrests, torture of suspects, and the shelling of civilian areas the AFP suspected of harboring insurgents.
- The Commission on Human Rights (CHR) monitoring and investigation of human rights complaints remained limited by insufficient resources

"A large and active group of human rights NGOs generally operated without government interference, investigating and publishing their findings on human rights cases. Most government officials, including those of the CHR, were responsive to NGO views. Many domestic NGOs were critical of the Government's human rights record; these NGOs also criticized previous governments' human rights records. While acknowledging that respect for human rights has improved under President Macapagal-Arroyo, many NGOs criticized the Government for being overzealous in its efforts to defeat the various insurgencies in the country. These groups cited indiscriminate arrests, torture of suspects, and the shelling of civilian areas the AFP suspected of harboring insurgents.

Some NGOs expressed concern over what they perceived as hostile government rhetoric toward human rights activists. NGOs also expressed concerns over statements by various local government officials that condoned extrajudicial killings as an acceptable means to fight crime.

Member organizations of the Philippine Alliance of Human Rights Advocates (PAHRA), a leading NGO network, monitored human rights problems and sought redress through their contacts with government agencies, the Congress, and the Government's Commission on Human Rights. Human rights activists continued to encounter minor or sporadic harassment, mainly from security forces or local officials from the area in which incidents under investigation took place. On April 22, two members of a team of human rights observers investigating alleged AFP abuses in Oriental Mindoro Province were killed (see Section 1.a.).

CHR monitoring and investigation of human rights complaints remained hamstrung by insufficient resources. Approximately one-third of the country's 42,000 barangays had Human Rights Action Centers, which coordinated with CHR regional offices. However, the CHR's regional and subregional offices remained understaffed and underfunded, reducing their effectiveness and preventing them from sufficiently investigating many abuses. The CHR was allocated \$3.6 million (P196 million) for the year, down 7 percent from 2002." (US DOS 25 February 2004, section 4)

People displaced during 2003 faced violations of their human rights and right to housing (January 2004)

- According to the TFDP NGO, most of the cases of human rights violations reported during 2003 were related to the military offensive in Buliok, Central Mindanao which, in February 2003, sabotaged the resumption of the Government of the Republic of the Philippines (GRP) - MILF peace talks.
- With the forced displacement of more than 400,000 people, the right to housing was violated in many ways, from the forced evictions by artillery and aerial bombardment to the miserable conditions in evacuation centers.
- War has had a devastating effect on the health and education of children.

- Several cases of deliberate attacks on civilians, strafing, indiscriminate firing and torching of houses were documented.
- Farmer evacuees were threatened upon return and it was dangerous for them to access to their land due to the continued presence of armed men.

"Most of the cases of human rights violations sprung from the Buliok military campaign, one of the biggest offensives reminiscent of Estrada's all out war.

The Pentagon gang alibi was a sham, the pre-emptive strike against the Moro Islamic Liberation Front (MILF) highly questionable, and 'rehabilitating' the Liguasan marsh area for the sake of Muslim residents is just plain doubletalk.

Pursuit operations against a small band of criminals, basically a police function, were staged by the military. This provided the excuse to deploy troops in Central Mindanao, which then proceeded to surround and bombard the MILF positions in Buliok before the rebels could legitimize, through the resumption of peace talks, its toehold on the Liguasan marsh – an area which has been touted by this government as an agro-industrial and natural gas production foreign investments zone.

It was a quick transition from depriving the people of their right to information to an outright attack against peace. Peace provides the necessary condition for the realization of human rights. The Buliok offensive effectively sabotaged the resumption of the Government of the Republic of the Philippines (GRP) - MILF peace talks and provoked another war. With the fragile peace broken, a violent free for all ensued and cases of human rights violations piled up faster than just one by one.

Massive displacement of communities all over Central Mindanao broke out after the attack on Buliok: from Midsayap to Tulunan in North Cotabato, from Pagalungan to Buluan in Maguindanao, from President Quirino to Lambayong in Sultan Kudarat. Many evacuees in Buluan and Datu Paglas were former refugees from Pikit during the 2000 "all-out" war who wrongly thought they had relocated far enough not to be displaced again.

In the Buliok offensive, more than 400,000 were forced to leave the place where they should be most safe – their homes. The right to housing has been violated in so many ways, from the forced evictions by artillery and aerial bombardment to the miserable conditions in evacuation centers.

Eight months of studying were wasted, as schoolchildren were not able to finish the school year. Many of the children are second and even third time evacuees, some are even born in evacuation centers. These are children being reared in war and violence. War has stunted their development – academically, and in other ways as well.

Several cases of deliberate attacks on civilians were documented. A Muslim fish vendor from Datu Paglas was found dead in Tulunan a day after the MILF raid on the Tulunan CAGU on February 13. In Brgy. Makabual, Pikit, a 60-year old farmer was found dead when he went back to harvest his corn after 6th ID Commander Maj. Gen. Senga announced over the radio that it was safe for the evacuees to return

home.

Cases of strafing or indiscriminate firing were documented in Datu Paglas, Buluan, Midsayap and in Lambayong. Houses of evacuees were burned in Brgy. Bunawan, Datu Paglas, in Brgy. Lebpak, President Roxas, and in Brgy. Makabual, Pikit. A report of the torching of 50 houses in Dat u Piang, Maguindanao also came out in the news.

(...)

One other tragic incidents trampling on the right to life was the killing of four and wounding of two other civilians. Members of the Philippine Army fired upon a group of evacuees as they were approaching their houses in Brgy. Lepak on March 3, 2003. They were mistaken as MILF combatants.

(...)

Most of the individuals who were displaced because of the war in Mindanao are farmers. All over Central Mindanao, the farmer evacuees complain that they could not look after their crops for fear of the presence of armed men who may shoot at them when they try to go near their farms. Dimalanas Takoban returned to harvest corn in Brgy. Makabual in Pikit and he was found dead the day after." (TFDP January 2004, p. 7-14)

"The Initiatives for Peace in Mindanao (InPeace Mindanao) said on December 10, International Human Rights Day, they have tallied a total of 21 'mysterious' bombings that have claimed 80 lives and injured 345 others in Mindanao, and counted some 85,000 victims of human rights violations perpetrated by State authorities under the Gloria Macapagal Arroyo administration.

Atty. Beverly Selim-Musni, InPeace Mindanao convenor and member of the Mindanao Truth Commission which conducted a series of independent fact finding missions across Mindanao cities, said the human rights situation in the island is 'grievously alarming' and that 'accusations of state-sponsored terrorism need to be seriously investigated by Congress and international human rights bodies with these staggering statistics.'

(...)

InPeace Mindanao noted that human rights groups in Mindanao have expressed alarm over increasing harassment perpetrated by the military against people's organizations, including those in urban areas.

Musni said that there is concern towards "state-sponsored urban terrorism" as judicial processes are being circumvented by police and military authorities and vigilante groups. Examples of these units and groups, she said, are Task Force Davao and other composite task forces in various cities in Mindanao, the Davao Death Squad, the Alamara and other Lumad vigilante groups allegedly armed by the military. She said legitimate people's organizations are being placed under surveillance and have complained of being harassed by armed men believed to be intelligence agents.

InPeace Mindanao said they are concerned over human rights violations directed against church people, noting that outspoken church leaders and religious are being harassed and witch-hunted. It cited the case of Italian priest Fr. Fausto Tentorio of the Diocese of Kidapawan who was hunted down by Lumad CAFGUs while visiting a mission area in Arakan Valley, North Cotabato. It also cited the case of Sr. Mary John Dumaug, a good shepherd nun, whose literacy and health programs in San Luis, Agusan del Sur have earned the ire of the military who are have alleged that Dumaug's projects siphon finances from the European Union to benefit the New People's Army." (InPeace 15 December 2003)

Freedom of movement

IDPs in Sulu reportedly pressured to return (April 2005)

- During a fact-finding mission conducted in March 2005 in Sulu, it was reported that displaced civilians had been pressurized by government officials to return to their homes although they estimated conditions were still insecure.

"The government through the military has started to build houses in Panamao. However, IDPs continue to stay in the evacuation centers or with their relatives. They expressed fear that the lack of hostilities in Sulu is temporary and the situation is still volatile. Evacuees are one in saying that their province is very small and the probability of an encounter between the military and the MNLF is very high. They stated that unless their villages are safe and secure enough for them to resume their daily life, they are not about to go back to their places of origin.

DSWD and PNRC officials conveyed the problem of dwindling resources in the current evacuation centers, thus pressuring the return of the IDPs to their villages. Already, there were reports about "the government forcing the people to leave the evacuation centers," the reason given is the peaceful situation in the areas of conflict and the emergent inability of the government to support their needs." (Mindanao Peaceweavers, April 2005, p. 15)

Residents claimed they were forced by the Pikit local government to return to their communities (August 2003)

- As of August 2003, there is a feeling of fear and insecurity among evacuees who returned to their barangays in Pikit, mainly because of the presence of soldiers and MILF near their homes.
- Many residents claimed in interviews that they were forced by the Pikit local government to return to their communities.
- Some 18,475 evacuees have left Pikit's evacuation centers since April, but many have returned to the camps due to continued fighting.
- Military is constructing "community-based convertible structures" for the remaining 22,000 evacuees.
- Government has denied forcing the evacuees to return as was claimed by a group of evacuees that said that many evacuees were told to leave ahead of President's visit to Mindanao.

"There is a general feeling of fear and insecurity among evacuees who returned to their barangays in Pikit since June 9. Residents claimed in interviews that they were forced by the Pikit local government to return to their communities even if there was no bilateral ceasefire yet at the time. The return was imposed upon the evacuees combining promises, persuasion and threats such as stopping relief supply in the evacuation centers, bulldozing the centers, non-provision of core shelters and even physical harm. The DSWD and the local government assured returnees that weekly relief supplies will be provided to them in the next three months. As of July 15, 2003, around 80% of the evacuees in Pikit have already returned.

Back in their communities, the civilians face a bigger problem-living side by side with military troops whose camps were put up within the barangays. The mission members saw that Marine camps are approximately located from 50 to 100 meters from the core shelters built by government. Given this proximity, it is very likely that civilians will be caught in crossfire in the event of armed clashes with the MILF.

The relationship between returnees and the Marines in Pikit and Pagalungan is generally good. Residents said that the Marines are disciplined and respectful to them and so far, no abuse has been reported. The Marines meanwhile said they initiated confidence-building measures towards the civilians, among them

assisting civilians in transporting their harvest to the poblacion and buying fish and vegetables from civilians at prices higher than the market rates.

But even with this good relations, civilians say they still prefer these troops to immediately reposition away from their communities so that they could go back to normal lives. War trauma is still present among the returnees. Families cannot sleep well at night. Children are hesitant to return to school because they want to be with their mothers in case bombings and fighting return and they need to evacuate again." (Bantay Ceasefire Investigative Mission 1 August 2003)

Government denies forcing people to return

" 'There is no truth to the issue that thousands of evacuees in Pikit, North Cotabato were told to pack up...and were forced to return to their villages with no assurance of security because President Macapagal-Arroyo was going to be in the area,' Soliman said in a letter to the Inquirer.

A total of 18,475 evacuees have left the refugee camp and returned to their communities since April, she said. Some of them, however, had gone back to evacuation centers due to sporadic fighting between military and Muslim rebels, she added.

There are still 26,730 people in evacuation centers and the military is currently building "community-based convertible structures" for them, according to Soliman.

Each of the structures will have an area of 154 sq.m., enough to augment the number of school buildings currently housing the evacuees, she said.

'If our intention was to force them to return to their own communities, then why are we building these CBCS which are semi-permanent in nature?' she asked in the letter.

Displaced residents had accused the government of forcing them back to their war-torn communities to "sanitize" Pikit in time for the presidential visit." (The Inquirer 12 June 2003)

Displaced persons accuse government of forcing them to return ahead of President's visit

"Ahead of the President's visit, however, thousands of evacuees in Pikit town in North Cotabato province -- site of recent fighting between government forces and the MILF -- were told to pack up their belongings Monday and return to their villages.

Not all of them are going home.

An evacuee, Soraida, said talk was rife they were being forced out of the evacuation centers in an attempt by the government to "sanitize" Pikit.

She said this was being done because President Macapagal and members of the Organization of the Islamic Conference, which groups Muslim-governed countries -- were coming this week.

A nongovernmental organization worker said the evacuees were being forced to return to their homes even if they were not psychologically ready.

'Are they prepared? Psychologically, they're not,' said the worker, who requested anonymity. 'We would be happy if they could finally go home. But what's happening is different. I think the process is wrong.'

He said some of the evacuees who were forced to load their belongings on government trucks were crying "because they were really afraid."

The transfer of the evacuees from Pikit to neighboring Pagalungan town will create a humanitarian crisis because the Pagalungan evacuation camps are not being supplied with regular relief assistance, the NGO worker said.

There are at least 14 evacuation centers in Pagalungan currently sheltering 19,104 individuals, he said. The problem of food will be aggravated with the addition of the evacuees from Pikit, he added.

The Buisan warehouse in Pikit, the biggest evacuation camp in the area, which housed 3,000 refugees, was cleared of evacuees Monday.

An evacuee said they had to leave the warehouse or 'suffer the consequences.'

"We were told that if our houses were still up tomorrow, these would be bulldozed," she said.

She said the local government gave the evacuees until Tuesday to pack up their things and leave the warehouse. Another evacuee at the Pikit parish gymnasium said they were told they were being given two options by the local government: Leave or get hurt.

'Many of us are already old. We don't want to be hurt. We also don't want to hurt anybody,' he said.

Many of the evacuees did not return to their villages. At least 200 families transferred to other evacuation camps in Pagalungan.

Soraida, a resident of Bulol town, said it was hard to believe the government when it said it was safe for them to go home.

The presence of military troops in their villages is a clear indication that they will be in great danger once they return to their homes, she said." (The Inquirer 9 June 2003)

See also:

["Pikit's 'bakwit' return home"](#), Mindanews, 9 June 2003

Returnees in Pagalungan required to register with military when leaving their barangay (August 2003)

- Returnees in Pagalungan and wanting to work their lands are required to log in and out "to ensure their security" while inside their barangays.

"Col. Alexander Balutan, commander of the 7th Marine Battalion deployed since March 2003 in Pagalungan, claims that the civilians can freely return to their own barangays. But they are required to log in and out at Marine detachments to ensure their security while inside their barangays and also to prevent the theft of other people's crops.

Majority of the residents in Pagalungan and Pagagawan have not yet returned to their own barangays. Those who do harvest crops during the daytime only but log out before nightfall. While residents understand the security measures, many said they feel like thieves sneaking in and out of their own farms. Others complain they don't have enough daytime hours to harvest crops." (Bantay Ceasefire Investigative Mission 1 August 2003)

SUBSISTENCE NEEDS

General

Survey shows armed conflict, poor water & sanitation and lack of access to health are the main vulnerability factors (June 2004)

- ACH's survey conducted near Liguasan Marsh in central Mindanao revealed that 3 main factors contribute to significant vulnerability in the area:
- the long term affect of the presence of armed conflict in the area. Uncertainty linked to this affects adversely the economic, educational, and social development of these communities.
- water and sanitation facilities are sub-par with many families suffering from lack of access to good quality of water.
- marginal access to health and the low level of health awareness by the communities affects quality of life.

" The present degree of 'vulnerability' is moderate in terms of food security and access to livelihood. Though incomes are relatively low the source of income (fishing) is readily available and access is potentially expandable with additional inputs. Food consumption is maintained at an acceptable level, sufficiently close to Philippine standards for an active life. Access to water and sanitation however is poor and below standard as evident by high level of sickness related to water quality and poor hygiene. Access to health is also poor as local health workers are few in number and poorly equipped. Most families rely on traditional sources of health care for general medical needs and birthing assistance. In general preventive health is not practiced.
(...)

Ten Barangays were visited. Eight are from the heavily affected areas of the focal point of Buliok, Pagalungan. The remaining two barangays visited were not within the conflict zone though they did receive displaced persons. Generally there was a high level of destruction and loss of property, homes, household wares, and fishing and farming equipment within 8 of the 10 barangays visited. Length of displacement was on average 7 months; many families returned in July 2003 for the fishing season. Of the 8 barangays heavily affected by conflict 17% (1071 families) of pre-conflict population remains in displacement. The majority of families gain daily income throughout the year from fishing, though the corn crop provides a significant seasonal sum. Many of these families own water buffalo for farming and canoes for fishing though an estimated 20% the poorest have neither. They generally eat three meals per day purchasing 75% of consumption need, mostly rice. Use of food coping mechanisms is highest in January with the start of the corn planting season and the required expenditure for seed and inputs cuts into the food budget. Seeking loans from relatives is also significant means to cope with short falls in cash. The water sources are mostly hand dug open wells though 25% reportedly drink directly from the marsh. There is a high level of bacterial contamination at most water sources. Low use of sanitation facilities as preference is still use of river and latrine. Poor access to health care is affected by low education and distance to services. Periodic flooding of the marsh is a seasonal occurrence and though high rainfall years can cause loss of crops it does not significantly hinder income from fishing.

The results of the survey conclude that 3 main factors contribute to significant vulnerability in the area. First and foremost is the long term affect of the presence of armed conflict in the area, which is

compounded by the history of armed conflict, and the perceived potential for a renewed conflict and with it displacement, loss, and hunger. This uncertainty affects adversely the economic, educational, and social development of these communities. Secondly, the water and sanitation facilities are sub-par with many families suffering from lack of access to good quality of water. Bacteria contamination tests conducted at 217 family water sources found a high number of sites to be contaminated. Most families choose to drink water from hand dug open wells which are shallow and unprotected. And, thirdly the marginal access to health and the low level of health awareness by the communities affects quality of life. The primary rural health unit is located at municipal centers and far from most of the communities assessed.

Finally, though there is presently no emergency situation the need to provide support for local communities is essential. The low access to safe water, minimal health care, and the long-term effects of armed conflict increase the potential risk of families. There is a high need to reinforce local capacities of governments, local NGOs, and at the household level to offset the potential vulnerabilities.

(...)

The 3 types: Unaffected, IDP and Returnee

The 'unaffected' families are better-off as they lost minimal, if any, assets or property during the recent conflict. They have better water and sanitation and health as they are closer to the main towns and they have received more infrastructures as a result. They access more jobs, and are affected less by the flooding. Their food security can be said to be stable as their livelihoods remain undisturbed. The IDPs in the assessment area are mostly 'homebased' sharing housing with extended families. The majority is living in areas close to Pikit and Pagalungan and many are accessing labor jobs in these towns, or land for farming. Their intention to return is dependent on the departure of the military from the area.

For the returnees, reestablishment of livelihoods is ongoing. The loss of personal property and assets as a result of the conflict was high, as was the destruction of barangay schools, and religious buildings. During displacement families were unable to access their land or fishing areas and thus relied on family or expended personal savings. Most families returned in July 2004. They are largely accessing the same livelihoods as before, and appear to be maintaining food consumption comparable to before the conflict. They access fish regularly, as an income source and for consumption. In terms of health, they are poorly served by health services as the communities are isolated. They are at high risk to water born infections as water sources are unclean. The practice of sanitation is poor, with high levels of diarrhea and skin disease." (ACH, June 2004, pp. 6-60)

IDPs in Sulu sheltered outside evacuation centers reported to have received less assistance (April 2005)

- A civil society-led fact-finding mission conducted in Sulu in March 2005 reported that the government had inadequately responded to the needs of the displaced in evacuation centers, who were, however, better off than those displaced with relatives who reportedly did not receive any help from the government.
- Another mission reported that the displaced were in need of non-food items such as utensils and farm implements, and also medical and psychosocial attention.
- 10 days after the start of the massive displacement, the Provincial Disaster Coordinating Council of Sulu reported that only half of the estimated 4,500 displaced families had received assistance.

"The following are the specific observations of the Mercy Mission:

1. Already deprived of basic social services as a result of decades of neglect by the national government, the state's military offensive policy in Sulu has all the more aggravated this deprivation. The Arroyo government's inadequate responses to the needs of evacuees cramped in centers and among houses of relatives demonstrate its sheer insensitivity and outright lack of compunction for the welfare of civilian population.

2. Food is scarce and DSWD aid does not reach the evacuees in the barrios far from Jolo.

3. There are areas with no health services, even health centers, much less the presence of doctors and medicines.

4. Many civilians have evacuated their homes and stayed with their relatives thus they were not able to receive any aid from government or other entities whose focus of relief operation is through their showcase evacuation center in Panglima Mammah School in Indanan.

5. A water installation in Silangkan, Parang was bombed destroying the water supply of the town affecting even nearby municipalities. This worsened the already perennial problem of water supply in the province." (Kalinaw Mindanao, April 2005, p. 6)

"There were no reported civilian casualties during the height of the armed clashes or even in the evacuation centers.

Still, the people of Sulu especially those living in Maimbung, Panamao, Indanan and adjacent towns paid dearly for it. Undetermined number of houses were destroyed by bombs or razed to the ground. Scores of farm animals were either lost or killed; farming and other livelihood related activities were disrupted indefinitely. Classes were still suspended in most schools hence, periodical tests and other important school activities such as graduation had to be postponed and rescheduled.

Residents coming from the places hardest hit by the fighting expressed that they needed non-food items such as utensils and farm implements which were destroyed, and not anymore so much on food, though they still need it. In

addition, some of the IDPs especially the women, children and the elderly needed medical and psychosocial attention. There were reports that there are residents from Indanan and Panamao who have gone deaf because of the bombs dropped by the military. Further, some residents young and old exhibited signs of severe stress." (Mindanao Peaceweavers, April 2005, p. 14)

Half of the displaced reported to have not received assistance 10 days after start of fighting

"The Provincial Disaster Coordinating Council and the Area Coordination Center (ACC) in Sulu today passed a resolution calling on "regional, national and international agencies and NGO's" to help them attend to the needs of the "continually increasing" number of internally displaced persons (IDPS or evacuees).

(...)

Of the 4,496 evacuee-families as of February 17, only 2,273 families or 12,984 persons had been served a meager relief assistance of "five kilos and five sardines per family head for a week."

Amilasan's report said the evacuees of Panamao (179 families) and Maimbung towns (419 families) had not been served.

(...)

The provincial and municipal officials, the PDCC-ACC, the Social Welfare and Department of Health have responded to provide assistance to the evacuees but the PDCC-ACC is "alarmed with the overwhelming number of IDP's to be served with the meager relief resources available."

The resolution noted that relief assistance is “meager” at only “five kilos and five sardines per family for a week.”

Worse, delivery of relief assistance is “hampered by security procedures, transportation and budget,” the resolution said.

The Integrated Provincial Health Office in Sulu as of February 11 had listed 20 kinds of medicines it needed for the evacuees. These are paracetamol drops, paracetamol 250 mg suspension, paracetamol 500 mg tablets, Amoxicillin drops, Amoxicillin 250 mg suspension, Amoxicillin 500 mg capsules, Cefalexin drops, Cefalexin 250 mg suspension, Cefalexin 500 mg capsules, Chloramphenicol 125 mg suspension, Chloramphenicol 500 mg tablets, Cotrimoxazole 200 mg suspension, Cotrimoxazole 500 mg tablets, Ibuprofen 400 mg tablet, Mefenamic Acid 500 mg capsules, multivitamin syrup, multivitamin tablets, sulfur ointment, aqua tablets and oresol." (Mindanews, 20 February 2005)

Lack of peace and order listed as the main problem faced by people living in displacement-affected areas (June 2004)

- ACH survey conducted near Ligguasan Marsh in central Mindanao revealed that most displaced listed lack of peace and order as their main concern.
- Other concerns included lack of electricity, bad roads, and transport, as well as concerns about the often big distance separating them from the main rural health units.
- Another survey conducted by CFSI in central Mindanao in 2003, showed that upon return to their homes, IDPs expressed the following concerns: lack of roads to transport the farm products to the market; schooling facilities are often far away from the displaced' homes, many mosques and chapels were destroyed during the conflict and need reconstruction; children and youth desire sport facilities.

"We provide here an introduction to the main problems in the area as presented by the respondents. The 217 respondents were asked to list the main problems affecting the barangay and their area in particular. Each was asked to provide 3 problems.

Over 50% indicated a concern about peace and order. This is primarily a worry about the continued presence of the military in the area. It also includes other concerns about the general lack of social order. A significant number complained about cattle rustling.

Sanitation and water resources were also a regular on the list of main problems, with many complaining of lack of latrines in their area and or a lack of protected water sources. Considering that the behavioral patterns indicate a low level of use of latrines in general we have to conclude that the high interest in 'latrines' reflects to some degree the respondents telling the NGO what they want to hear.

The infrastructure relates to families indicating lack of electricity, bad roads, and transport. Concerns about health relate to access as many communities are far from main rural health units. Education is also a concern for the more isolated families who complain about distance to school facilities.

Families were also asked to rank by level of importance the following factors: food, family, religion, peace, education, and, health with 1 being the most important. Below is the average rank of each classification. There is minimal difference, between the classifications save those few who ranked peace above that of food. Health again comes out at the end, but this reflects the weakness of the question and not so much the overall low level of importance." (ACH, June 2004, p. 19)

"In addition to the continuation of the short-term needs cited above, the following concerns were also cited in focused group discussions as the communities work toward return to their sites of origin.

1. **Farm to Market Roads.** The IDPs expressed the need for farm to market roads, particularly for sitios Malugasa, Hinauran, Spring, Puting Bato, and Pinamintangan. The use of horses is the most common method of moving farm products to the market. The one-way fee for a horse is 25 pesos, an exorbitant price for an ordinary farmer. Because of the high price, most farmers would brave the heavy load and carry their goods themselves. When they cannot manage to haul their crops from their farms to the market, the traders who buy their crops at the farm dictate the market prices of their product. In most cases, the farmers feel they do not get a fair price for their crops.

2. **Education.** Many IDP families are worried about the education of their children. There are not even primary schools in their sitios, so very young children are forced to hike a long distance to go to school in the poblacion (municipal barangay central district). In most cases, many children who begin school in June drop out soon after as the daily routine of hiking to school becomes too burdensome. Depending on the sitio, security may also be a significant concern for these children. For the pre-school children, day care centers are also needed in the sitios. Since most day care centers are concentrated in the central districts, many of the outlying sitios—where most of the children are found—remain without day care centers. The IDP families in Matingao and Tabulon also desire a “madrassa” (Islamic school) for their children.

3. **Land Titles.** For the farmers in Matingao, Hinauran, and Malugasa, the desire to acquire titles to the lands they now cultivate is of paramount importance. They have discussed this issue in their farmers group meetings and the barangay leaders assure them of help in following up their request for land titles with the municipal government. These farmers claim that since the time of their parents they had been tilling these forested lands.

4. **Mosque/Chapel.** One of the many community structures destroyed by the war and subsequent was the mosque (for those of the Islamic faith) and the chapel (for the Catholics). For the Muslim members of the Moro communities, the community prayer during Friday service has been adversely affected since the displacement. The Maguindanaon IDPs in Tabulon said that they now had to go to other barangays where there is a mosque in order to have their Friday services. The chapel in sitios Campo and Malugasa was also destroyed and so the Catholic families there wanted their chapel rebuilt so they could hold religious services at least once a month.

5. **Electricity.** The Tabulon community indicated the need for electricity in their sitio. Since their sitio is in a lowland area near the national highway, they feel access to electricity is possible. Electricity will provide them opportunities to have and use a radio, television, refrigerator, and/or other household amenities.

6. **Sports Facility.** In Tabulon, the community as a whole desired the construction of a sports facility, especially for the youth of the sitio. The youth are eager to have facilities for basketball and volleyball so they can engage in more healthy activities in the community and not resort to gambling, alcohol, and other vices." (CFSI October 2003, pp. 33-34)

A evacuee' perspective on the socio-economic impact of displacement (November 2004)

- IDPs describe their plight as "living in hell while still on earth". Among the reasons are the fact that they have to work three times as hard to reach the living condition of a typical poor.
- Also, many have the feeling that war, displacement and destitution have wasted a lifetime of work

"(...) the IDPs' social constructions on the impact of war and displacement in their lives indicate the worst possible condition that can befall on human beings: the notion of living in hell while still on earth. This hell experience is manifested in their triple working time to obtain a life-condition comparable to a typical poor. It is exacerbated by what they call a wasted lifetime, as they are caught in the vicious cycle of war, displacement, and rehabilitation. Women, on the other hand, silently suffer the mental effects of war. We give details of these mental effects by presenting case studies that tell stories of women with mental impairments.

(...)

Regarding their subjective interpretation of reality, men in the focus groups offer three interconnected impacts of the recurring armed conflict on the quality of their lives. First, they construct their lives as being situated in the "second hell." Second, they portray themselves as being a lot more oppressed than the typical poor population in the Philippines, by modifying the Filipino adage, "isang kahig isang tuka" (one scratch, one peck) into "tatlong kahig isang tuka" (three scratches, one peck) mode of existence. Finally, they speak of a wasted life-time as they constantly start from scratch. Below, we discuss each of these social constructions in great detail.

As one man puts it, the IDPs are living in the second hell, the real hell being situated in the life after death. The totality of this report encapsulates the idea of the second hell. Many of them lost their homes; if not burned, totally damaged. They lost their properties and means of livelihood; some lost their significant others. Their patterned lives were disrupted: health impaired, education hampered, and livelihood stalled.

In addition, they call it the second hell partly because theirs is a "tatlong kahig, isang tuka" mode of existence. This is patterned after the popular adage of the poor in the Philippines, "isang kahig, isang tuka," a pattern of existence equated with the chicken's search for food. The chicken gets to eat only a morsel of food for each scratch on the ground. Compared with the poor population, however, the IDPs have to work three times as hard as the typical poor in order to obtain a comparable amount of food.

'If you've only experienced being an IDP...it's really very hard to survive. This is probably the second hell on earth. Three scratches, one peck. It's not just one scratch, one peck (Man from Pagalungan).'

(Janet M. Arnado & Mary Ann M. Arnado 15 November 2004, pp. 57-60)

Food

To avoid going hungry in the evacuation centers, some villagers prefer to stay near their home to harvest their crops (August 2005)

- Despite the fighting and the risk, some farmers have reportedly preferred to stay near their homes to ensure that they could harvest their crops and feed their family

"Hundreds of villagers in Barangay Ahan, Guindulungan, Maguindanao are facing threats of starvation and hunger after they were unable to harvest their crops when fighting between soldiers and bandits broke out in early July this year. Out of desperation, the villagers also refused to leave their homes and farms despite the sporadic air strikes and mortar shelling, for they feared that should they leave, they would have no available means to provide for their livelihoods.

The villagers in Barangay Ahan depend on their farm crops for their food and livelihoods. When the military operations started in early July, the villagers were supposed to harvest about 196 hectares of corn, rice and sesame seed crops, however were unable to do so because of the fighting and violence in the area. Failure to harvest their crops means the villagers could potentially face at least three months of hunger.

Thus, while the villagers attempt to harvest amidst the violence, many are left with little food for their consumption.

The villagers do have the option to move to designated evacuation centers as the fighting and random air strikes continue, however many have refused to move because of the meager relief assistance victims are receiving from the Department of Social Welfare and Development (DSWD), and the poor conditions that await evacuees at the centers. This situation has greatly discouraged the victims to flee as they will continue to struggle for food at these evacuation centers." (AHRC, 26 August 2005)

Most families surveyed eat 3 meals a day and nutritional situation appears generally satisfying (June 2004)

- ACH survey in areas affected by displacement shows that sign of malnutrition were low.
- However, there were aggravating factors which could contribute to a fragile situation for many children; namely high rate of infectious disease, difficulties to access clean water, and limited access to regular health care.

"75% of the food need is purchased consumables, primarily rice. Different levels (wealth ranking) of consumption are most often seen between the quality (price) of rice consumed, the variety of vegetables consumed, and the presence of snacks, and or meat, such as chicken in the diet. Of the 217 families 95% of the families indicate that they are eating 3 meals per day. 58% of families indicate taking a loan at least once within the last year from a relative to maintain food consumption levels, normally 1000-2000 pesos. 18% reported eating '3 times but less' at one time or another throughout past year to manage inadequate income. The use of food loans and food coping mechanisms are highest in January as the expenditure for seed and labor to plant the dry season crops is highest when then food production is lowest. Ranking of barangays separates the flood affected from the less flood affected in that the rainy season and the flooding affects the food consumption patterns, reducing the variety of the diet many families in the marsh who though eat more fish consume minimal green vegetables (save kangkong) and fresh fruit.

Key points

Presently 75% of the food need is purchased, a high percent of this is the daily rice need
Food produced is roughly 20% of food source, this would consist mostly of fish, and a few vegetables.
Kangkong is the major vegetable green which grows wild in the marsh
Lower food production is more evident through December and March before the beginning of harvest
The primary factor is change of food source is the disruption of armed conflict
Generally January – February are lower consumption times as expenditures are higher
(...)

Table 39. Results of Anthropomorphic Survey

The signs of malnutrition are low considering the following data. The anthropometric survey was administered to 141 children. The nutritional figures do not show a poor nutritional situation. According to MUAC figures the global acute malnutrition is 7.8% indicating that the situation is under control. It can also be concluded that coping mechanisms are sufficiently able to offset malnutrition during time of crisis. Still, there are aggravating factors which can be said to contribute to a fragile situation for many children; namely high rate of infectious disease, difficulties to access clean water, and limited access to regular health care." (ACH, June 2004, pp. 38-44)

Health

Children's health at risk in the evacuation centers (September 2005)

- At the end of August 2005, 3 children reportedly died of diarrhea while in displacement near Pikit, North Cotabato
- Lack of nutritious food and adequate diet make the most vulnerable, the children and elderly, subject to infectious diseases.
- A few days after the start of the February war, some 25 per cent of the IDP children in evacuation centers were affected by upper respiratory tract infections.
- As of May 2003, 80% of the deaths reported in evacuation camps were children aging 2 to 6. Diarrhea was the main cause of death.
- Majority of the casualties in evacuation centers originated from Pikit, North Cotabato. 80 percent are children aged two to six. Usual causes of death are bronchopneumonia, ulcers, diarrhea and measles.
- A doctor from Balik Kalipay says that diarrhea is the number one cause the deaths of the children in the evacuation centers.

3 displaced children reportedly die because of inadequate assistance

"The Asian Human Rights Commission (AHRC) is deeply concerned by reports that at least three children displaced due to fighting in southern Philippines have died from malnutrition-related illnesses. The small children were all reported to have died on August 28 from diarrhea caused by inadequate food and unsanitary water.

The three dead infants were among hundreds of villagers forced to flee and stay at evacuation centres due to fighting on the southernmost island of Mindanao who have reportedly not received adequate food relief and other emergency assistance from the concerned government authorities." (AHRC, 19 September 2005)

It has been two months now since the military operation was launched by the AFP against suspected ASG (Abu Sayyaf Group) elements in the tri-boundary of Guindolongan, Talayan and South Upi in the province of Maguindanao.

The number of displaced families in these three municipalities could not be fully accounted since many of the evacuees are staying in the homes of their relatives. But there are at least 500 families who are staying in several evacuation centers in Guindolongan and Talayan.

(...)

Since Monday, three children have already died of diarrhea which is a preventable disease. Some of the patients have been brought to the hospital in Shariff Aguak with the help of the International Monitoring Team." (Mindanews, 2 September 2005)

"The vicious cycle of social displacement and life reconstruction take its hard toll on the well-being of men, women and children. Children's health is mostly endangered in the evacuation centers, while women, the caregivers, are silently coping with the mental stress of war. In this section, we examine the health impact of wars in the intertwining lives of women and children.

In the course of their displacement, the IDPs' health is a risk. Due to lack of nutritious and adequate diet, their immune system is compromised. As a result, infectious and sanitation-related diseases spread in the evacuation camps, such as upper respiratory tract infections, diarrhea and scabies.

A few days after the war broke out on February 11, 2003, 25% of the 6,000 children evacuees as of February 16 were diagnosed with upper respiratory tract infection.

(...)

Unsanitary condition in the evacuation camps often results in diarrhea among infants and children. It is not uncommon for children with diarrhea to die. Focus group participant, Jalika, reported that her grandchild died in the evacuation camp due to diarrhea. In fact, diarrhea was the main cause of death among children. As of May 2003, 80% of the deaths reported in evacuation camps were children aging 2 to 6.

(...)

The crowded condition in evacuation camps is conducive to the spread of scabies. The focus group participants in Pikit all claimed to being infected with scabies whenever they were in the evacuation centers. Because this skin condition normally occurs during military encounters, the women believe that the bullets coming from the military firearms cause it.

(...)

The socio-economic effects of social displacement compound the mental anguish of these IDPs. Women's mental health is greatly affected by their dislocation, yet women ignore the symptoms of mental illness. For instance, when we asked them a general question regarding the effects of war, their narratives focused on economic, not psychological, aspect. Zoraya from Pikit tells about the effects of war, "Effect? It's really about livelihood. When you are an evacuee, how can you look for means of livelihood, when all you do is avoid the bullet?"

(...)

Women's mental health is intertwined with their children's health. Many women show resilience in highly stressful situation such as war and displacement. However, when their children's health or safety is endangered, their resilience is challenged and their mental well-being is at risk." (Janet M. Arnado & Mary Ann M. Arnado, 15 November 2004, pp. 61-64)

"A big number of respondents (52% from Parang and 46% from Pikit) claimed that some of their household members got sick during displacement. Around 122 or 12% of 1,197 household members became ill at the EC. Most of them (25%) were children. The common ailments suffered by the IDPs and the number of persons affected were fever/flu (37), skin disease (20), cough (17), measles (16), diarrhea (9), typhoid fever (5), and tuberculosis (2).

The sick members of the displaced families were brought to hospitals (39) and Rural Health Units (45), while 31 administered their own treatment. Seven (7) did not receive any treatment at all for their illness.

The respondents (18 from Parang and 4 from Pikit) said that they have HH members who died during displacement. The group reported 28 deaths – 24 from Parang and 4 from Pikit. The causes of deaths in Parang were attributed to measles (2), heart attack/stroke (4), typhoid fever (3), tuberculosis (2), and birth delivery (1).

A large number of those who died belonged to age groups 1 year and below (7 children); 2 to 4 years old (6 children); 12 to 17 years old (4 persons); 30 to 42 years old (5 persons); and 50 to 72 years old (6 persons). (Table 18)

" (Notre Dame University & Commission on Population Regions XII, pp. 34-35)

"A total of 80 people, most of them children, have already died in evacuation centers in Mindanao since the outbreak of war between the military and the Moro Islamic Liberation Front (MILF) last February.

In a telephone conference with defense reporters Wednesday, Social Welfare Secretary Corazon Soliman said 58 of the 80 dead came from evacuation centers in Pikit, North Cotabato, the scene of one of the most devastating military operations against the MILF in recent years.

Soliman said the 80 dead came from 162 evacuation centers in four regions covering 11 provinces in Mindanao.

[...]

Soliman said that around 80 percent of the dead are children aged two to six.

The usual causes of deaths, she added, were bronchopneumonia, ulcers, diarrhea and measles.

The welfare chief added that measures are being taken to prevent the outbreak of more diseases at the evacuation centers. These include conducting health classes and basic health training for the evacuees." (The Manila Times 29 May 2003)

"In Pikit, at least 30,000 persons are still in 16 different evacuation camps, and 61 have already died, most of them from complications arising from diarrhea.

Fr. Robert Layson, parish priest of this predominantly Muslim town, said although the number of evacuees has dropped to 30,000 from 40,000, the food and medical supplies are still in short supply. Layson, also the coordinator of the Interfaith Dialogue of the Archdiocese of Cotabato, said inadequate food and medicine supplies are forcing them to cut back the frequency of distribution of relief goods in order for all of the evacuees under their coverage to be able to receive food supplies.

Balik Kalipay's Dr. Ernest Ryan Guevarra, one of the attending physicians here, said they also need medicines to prevent the spread of the different diseases in the evacuation centers. Guevarra cited diarrhea as the number one cause the deaths of the children in the evacuation centers.

'Of the 61 evacuees who have died here, 80 percent were children and 60 percent of the cause was diarrhea,' he said adding that other causes of death were upper respiratory infection and measles.

For now, the 25-year-old doctor said that they have enough IV Fluids for diarrhea and they need more Contrimoxazole-a broad range medicine. 'This (Contrimoxazole) is a very useful medicine and this is what we need. We are using this for upper respiratory infection and bacterial infections.'

Guevarra also added that the spread of diarrhea in the evacuation camps was not due to contaminated water sources, but rather to unsanitary conditions in the camps.

'It is due to the unhealthy environment or atmosphere. Because if it was due to the water source, all of the refugees at a certain camp could have suffered it but it was not. Diarrhea hit only selected families,' he explained." (Cyberdyaryo 28 May 2003)

Minimal access to health care in Liguasan Marsh areas (June 2004)

- ACH survey showed that one of the main issues faced by people living in displacement-affected area is the minimal access to health.
- Rural health units are generally situated far away.
- Beacuse of the long distance and the high costs of medicine, many of the poorest families rely on the traditional health worker.

"Access to health is minimal. The rural health units is located within Poblacion, Pikit, and Poblacion, Pagalungan, nearly 2 hours commute for many of the families within the marsh communities. Local traditional medical personnel depend on herbal lore for the majority of medicaments both for general sickness as well as child birth. The majority of women give birth within the barangay assisted by the traditional midwife. A local barangay health worker provides health information and consultations but as the barangay is a wide area access is marginal. Immunizations of children are conducted by the barangay health worker but reportedly children have not been immunized because of fear, lack of information. The majority (61%) go to the health center in Pikit to get their child immunized, though a significant number are immunized locally by health workers. The poorer families generally access the traditional health worker as the fees are low and are accessed locally. Moreover many do not want to bear the extra cost of transport to the health units in Pikit. Those barangays closer with more immediate access are more able to access health within Pikit. Batulawan and Linandangan are highest, and Rajamuda is middle as it is closer to the main road and more immediate access. The others are more isolated and therefore dependent on health workers locally. Overall the limited access to health care is compounded by the limited access to clean water and inadequate hygiene practices, which can be seen in high rate of infectious disease.

Key Points

Access to health centers is minimal at the barangay level

Distance to health facilities is prohibitive; those in the marsh area have at least a two hour commute to access health facilities in Pikit.

No Rural Health Unit in barangays, only at municipal centers

Disease the leading cause of death

46 (21% of respondensts) families have children which are not yet fully immunized

(...)

Below is the list of complaints concerning access to health and medicine within the barangay. This information was collected during the PCVA discussion meeting with 10 women from the poorer group of the community. There was not a ranking but just a listing of problems.

Access to health centers

No health center in the barangay

Rural health workers not approachable

High cost

Distance from health centers

Lack of medical knowledge of health worker

Irregular service

Health centers are too focused on womenand children

Access to medicine

Unaffordable

Cost of medicine, plus donation

Irregular availability

Distance to drug store

Can't get medicine unless they pay for it

The difference in access between the wealth group's amounts to those better off more often accessing the medicines as they can afford the 'donation'. When you go to the rural health unit there is an established price for medicines. The price of medicines is the same for rich and poor.

Apparently there are few subsidies to access health care for the poor.

Distance is a regular complaint of many poor families concerning access to health. In Barungis it was reported that a health emergency requiring

transport to Pikit requires 450 pesos for the pump boat to the midway point at Buliok and then 150 pesos skylab to Pikit. If you take the skylab the whole distance from Barungis to Pikit, a 1 hour trip will cost you 800 pesos. Thus, when the average daily income for a fishermen is 40-50 pesos per day it is easy to imagine the difficulty of accessing health care especially in the event of an emergency. For this reason most of the poor access the rural health practitioner (Herbolaryo).

Available health services within the barangay are local traditional herbal medicines. These services are accessed for the normal sickness; flu, cough, skin disease, diarrhea, head ache, sore eyes, toothache, stomach ache, etcetera." (ACH, June 2004, pp. 51-53)

73 IDPs died inside evacuation centers during 2003 (October 2003)

- Between January and June 2003, some 118 IDPs, most of them children, have died. Half of them in evacuation centers, the other half were house-based.
- As of October 2003, DSWD report 167 deaths, 73 of which took place inside evacuation centers.

The DSWD terminal report shows that as of October 2003, 167 civilians have died during the 2003 fighting, 73 of whom died inside an evacuation center.

"A total of 117 evacuees have died in North Cotabato since the first wave of evacuations four months ago.

Central Mindanao Social Welfare director Tanggol Taja said 117 evacuees have died in North Cotabato, up from 68 last month.

But Nurhaidin, an eight-month old boy who had just returned home in Bulol today, died of asthma.

Of 117, Taja said more than half or 63, died in Pikit's evacuation centers while the rest were house-based evacuees.

'Health workers in the region are doing their best to prevent the spread of deadly diseases among them (refugees) by implementing their feeding program and (conducting) medical check up daily,' Taja said.

At the height of the war, 44,000 villagers were displaced in Pikit, more than half of its 69,000 population.

As of end of May, there were still about 30,000 evacuees in Pikit but evacuees were reportedly brought home today." (Mindanews 9 June 2003)

Water and sanitation

Hygiene problems and poor sanitation cited as most common health problems linked to displacement (June 2004)

- ACH survey shows that the health problems most often cited during displacement were hygiene problems relating to overcrowding and poor sanitation.
- Clean and safe water in the area was hard to find, with 91% of all water points currently in use tested positive for bacterial contamination, and 94% of the tested water containers tested positive for bacterial contamination.

"Movement is clearly an important factor contributing to increased vulnerability to food insecurity, sickness, and death. In the survey we have looked at the history of displacement. It seems that generally the larger portion of families were displaced 2 times reflecting those who were displaced during Estrada's all out war in 2000.

Looking at the number of displacements, those who are displaced 1 time are families outside the marsh area who are currently IDP families within Batulawan. Those displaced 2, 3, and 4 times are those families who were once or twice displaced during Estrada's 'all out war' and those who were displaced again during the recent unrest in February 2003.

The length of displacement has been anywhere between 3 -10 months with the average of 7 months. To get a look at living conditions of families during displacement we asked families to comment on sickness they suffered during their displacement. Hygiene problems relating to overcrowding and poor sanitation are the most often mentioned. It was also a perception of families that an increase of skin disease increased as a result of the war.

(...)

All areas surveyed severely affected by inadequate access to clean water

Clean and safe water is hard to find in the marsh. For those families within the marsh area 91% of all water points currently in use tested positive for bacterial contamination, and 94% of the tested water containers tested positive for bacterial contamination. The dominant water source is the hand dug open well with minimal protection. Families in the areas less isolated have a greater number of hand pumps and therefore less general contamination. Access is further affected in the rainy season when families are forced to drink from the marsh directly as many open wells are flooded. The differences in level of available sources between the communities sees the higher rank of Batulawan and Linandangan as they have access to closed hand pumps. The lower end is Buliok and Barongis who are more often drinking directly from the marsh. Still those who are drinking from open wells appear to be in no better condition considering the water contamination results. Thus on the whole, excluding Batulawan and Linandangan, the 8 barangay within the Marsh area are severely affected by inadequate access to clean and healthy water.

Key points

71% of all water points tested during HH survey showed positive for bacterial contamination
89% of all water containers tested showed positive for bacterial contamination 55% of 217 families interviewed take drinkable water is taken from open wells throughout the year
29% of families interviewed are taking water from pumps, primarily from barangays, Batulawan, Linandangan
25% of families drink water from the marsh
Taste of the water is a significant factor in determining the choice of family water source" (ACH, June 2004, p. 47)

" (ACH, June 2004, p. 22)

Shelter & non-food items

At least 7,000 houses damaged during the February 2003 fighting (May 2005)

- UNDP-government IDP programme has during 2005 contracted the construction of 241 core shelters in the provinces of Cotabato, Zamboanga del Norte, Maguindanao, Sulu and Basilan.
- Some 7,000 houses were damaged by the conflict in 2003, 5,846 of them completely destroyed.
- The government had provided 2,315 shelters units by May 2004, leaving some 3,000 families without shelter.
- Only one third of the amount required to rebuild all houses has been reportedly forthcoming as of May 2004, according to the ARMM-DSWD director.
- As of 1 April 2004, DSWD recognized that the construction of some 2,564 houses (all of them in Maguindanao province) had not even been funded .

"After years of seeking refuge in distant evacuation centers, internally-displaced Moro families have finally returned home in a remote barangay here previously affected by armed conflict with a set of new housing units from a donor-funded government program to start on rebuilding their lives.

Twelve newly-completed core shelters built by the GOP-UNDP Programme on Rehabilitating Internally Displaced Persons and Communities in Southern Philippines or IDP programme were recently turned over to internally-displaced families in Brgy. Natutungan, one of the farming communities in the municipality of Matalam, North Cotabato that has suffered setbacks from the running battles between government forces and rebel groups in 2000.

The construction of core shelters in Brgy. Natutungan is one of the program's high-impact initiatives to speed-up rehabilitation of IDP communities by providing the necessary basic services for the resettlement of IDPs.

(...)

As of March this year, the IDP Programme has provided food and non-food packages to 18,720 displaced families as well as medical and dental assistance to 1,265 individuals. It has also contracted the construction of 241 core shelters in the provinces of Cotabato, Zamboanga del Norte, Maguindanao, Sulu and Basilan." (Government of the Philippines, 23 May 2005)

"From January to October 2003, the armed conflict damaged 7,108 houses, 5,846 of which were totally damaged" (Janet M. Arnado & Mary Ann M. Arnado, 15 November 2004, p. 56)

Launched by in April 2003, the Mindanao National Initiatives Program seeks to address the continuing peace and order problem in Mindanao, by providing assistance on the rehabilitation of Muslim Mindanao, in particular to the to the conflict-affected areas. The Office of the Presidential Adviser for Peace Process (OPAPP) serves as the oversight agency and provides overall policy guidance/strategic directions for the implementation of the Program, while the MEDCo Secretariat serves as the secretariat for the Program.

Among the achievements of this program, by May 2004, are the provision of 2,315 units of core shelters in North Cotabato, Maguindanao, Bukidnon, Zamboanga del Norte, Lanao del Norte, Sultan Kudarat, and Basilan (MEDCo, August 2004).

In May 2004, the government announced that at least 35 million pesos had been allocated for the construction of 4,715 core shelters to benefit people displaced by armed conflicts in the ARMM region. The director of DSWD ARMM has requested three times more, or 119 million pesos from the government to fund the total number of core shelter needed in 2004 (Mindanews, 4 May 2004).

As of March 31, 2004, the DSWD reported that some 2,564 houses, all in Maguindanao province, were still not funded. (DSWD 31 March 2004)

"Close to 3,000 families displaced by last year's war between the military and the Moro Islamic Liberation Front have remained homeless even as the government is yet to finish rebuilding the houses of people affected by ousted president Joseph Estrada's all-out war in 2000, a senior official of the Department of Social Welfare and Development today said.

Citing the department's 2003 year-end report, Vilma Cabrera, DSWD Program Management Bureau director, said that of the targeted 5,816 core shelter units for last year's war in several parts of Mindanao, only 2,935 houses were completed, or just a little over 50 percent.

'We need more additional funding to complete the construction of our remaining target. For the record, we have yet to build 2,881 housing units for the war victims,' she told MindaNews.

Cabrera said the houses destroyed by the war last year were scattered in parts of western, northern, southern, and central Mindanao, the region worst affected by the war.

She said at least P70.8 million is needed to rebuild the remaining houses, which were totally destroyed when the military launched an operation in Buliok complex in February last year." (MindaNews 28 January 2004)

See also: ["4,700 housing units to be built in the ARMM region during 2004" \(May 2004\)](#)

Most families live in traditional housing (June 2004)

- ACH survey shows that majority of displaced families lived with relatives.
- The general housing conditions were not considered to be debilitating to health in general, though the dirt floor will reduce level of hygiene.
- Some families had received housing assistance from the DSWD, usually made of a collection of local building materials and zinc sheeting for roofing.

"The majority of the families still displaced are living with extended families. No camp situations exist. Generally displaced families are accessing livelihoods. However, the fact is displacement continues with possible over crowding and cost incurred both by the displaced and those housing the families.

Of the returnees some families from Baguinding, Pagalungan and Buliok, Pagalungan are still not settled though having access to original lands.

Roughly 200 families from Baguinding have relocated to Inug-ug; explaining that, because of the marine detachment nearby Baguinding they refuse to live there. The Buliok families, principally families from the sitio 'Buliok 1' have not returned as well as they fear the presence of the military. This continued displacement results in the fact that these families are not fully able to reestablish pre-conflict living conditions and thus are considered more vulnerable.

From the survey we see that 57% of the families interviewed are living in a 'traditional' house with a dirt floor and thatched roof. Another 42% are living in houses that make use of various building materials such as wood planking and cement though only in minimal amounts. The housing conditions overall are not considered to be debilitating to health in general, though the dirt floor will reduce level of hygiene. Those families still in displacement are living with families and sharing limited space and are considered to be more vulnerable to the problems of over crowding. There are also families such as those who have received 'core shelter' assistance from the government and are living in a cement house with a zinc roof that are ranked as better than those families yet in displacement and sharing housing with family. A number of families received a 'rehab' kit involving local building materials and a zinc roof.

Key points

2352 houses destroyed in the area of survey
55% of those interviewed had their house destroyed
50 % of IDPs and Returnees interviewed have been displaced 2 times since 2000
38 % of IDPs and Returnees interviewed have been displaced 3 times since 2000
57% of families live in traditional shelter constructed on local materials, with a dirt floor and thatch roof

(...)

The HH Survey recorded respondent's house type so as look at the living condition as an indication of vulnerability. Below is listed the 3 categories of housing types.

123 families (57%) are living in traditional housing constructed of local building materials. This house is elevated on wood posts to protect from flooding. The walls are of woven

92 families (42%) are living in class 2 a combination of local materials, wood plank, and concrete. Roofing is either nipa palm or galvanized or a combination of the two. 42 of these are families in the unaffected group living in Batualwan or Linandangan. The other 50 are families who received 'core shelter' structures.

2 families are living in class 3. These are better-off families living from Batulawan or Linandangan.

Because of the destruction a number of families received housing assistance from the DSWD. The majority of the assistance was what is called 'rehab house' and is a collection of local building materials and zinc sheeting for roofing. Of the Other families received 'core shelter' assistance which is cement structures with private latrines." (ACH, June 2004, pp.20- 23)

Vulnerable groups

Children, women and elderly hardest-hit by displacement (2005)

- According to the findings of a workshop held in evacuation sites in Pagagawan and Pagalungan (Maguindanao) in May 2004, the war negatively impacted on the children's capacity to envisage the future positively.
- Interviews of members of war-affected community show "crisis of the children" was identified as one of the most significant consequences of war.
- Negative impact of the war on children include: interrupted studies, trauma, poor health, and the need for child labour.
- Women were also among the most affected by the war. Loss of family members due to the war and additional responsibility to care for the family has had a deep impact on them.
- Weakened by advancing age and illness, the elders have had difficulty coping with the displacement as many had to find work to support themselves and their immediate relatives.

Kalinaw Mindanao mission concludes February 2005 military offensive in Sulu led to high level of trauma among children

5. The military operations have aggravated the already deplorable economic condition of the people. Sickness and diseases have reached untenable levels, especially in areas of the military operations. The

women and children bear the brunt of the all-out war policy. Children directly affected by the armed conflict have been traumatized by aerial bombings, the presence of government soldiers and high-powered firearms. This has affected their psychosocial wellbeing such as the erosion of self-esteem and self-confidence. Their development is adversely affected by the inculcation of a culture of war and violence at their early age." (Kalinaw Mindanao, April 2005, p. 7)

"Children are the most vulnerable among all the sectors, yet their needs are also the least attended to in current aid programmes. Most of those who were affected by both 2000 and 2003 wars no longer have a fair chance of full childhood development before transcending to adulthood. Superficially, children seem to have coped with stressors before, during and after conflict periods. However, the long-term effects of war on their lives are still unknown. There is also no long-term study on the children who failed to adjust to the war and its aftermath. Moreover, many of the children who seem to have coped have already suffered from irreparable losses in their childhood development." (Save the Children, 2004, p. 105)

Workshop shows war negatively impacted on the children's capacity to envisage the future positively

"Physical displacement from their communities may be traumatic, but it is not the worst of experience of children in conflict areas in Mindanao.

The most painful thing is that the children are losing hope for a real peace and sustainable development, according to findings of a workshop conducted by the Community Resource Development Center in partnership with the United Nations Multi-Donor Program.

The workshop was held in evacuation sites in Pagagawan and Pagalungan in Maguindanao province. It sought to gauge how the young feel about their situation and determine what they want to achieve in the near future.

The workshop was dubbed Culture of Peace: Enchanting the Role of Internally Displaced Youth and Children in Conflict-Affected Areas through Psychosocial and Peace Education.

In the workshop, which was held last month, affected children were urged to express their peace visions, concerns and how they cope with the trauma of being in the center of an armed-conflict area.

Specifically, the three-phase workshop was held in the Sitio Tinga emergency evacuation center, then in the Layog mosque in Pagalungan, and in the Layog rehabilitation center in Pagagawan.

Maguindanao was among Mindanao provinces severely affected by massive evacuations sparked by sporadic clashes between the government forces and the separatist Moro Islamic Liberation Front.

The first workshop focused on tracing back prior-to-conflict situations; the second delved on their present condition; while the third established peace visions. The children in attendance expressed their sentiments in the workshops through drawings, songs and dances, and verbal expressions.

"The workshop produced substantive understanding of the children's situation and clear relevant visions," Rashid Manahan, CRDC executive director, said in a summary report.

While the workshop ferreted out hidden pains among the children, their trauma blurred their visions of the future.

"The war not only displaced them physically from their communities, but also displaced their hope to have a real peace and sustainable development," said Manahan.

Manahan said results of the workshop showed the need for similar process of continuing advocacy with different institutions working in conflict-affected areas. " (The Manila Times 19 June 2004)

Study on the effects of armed conflict on children show that 94% suffered from trauma symptoms

"A study of the effects of armed conflict on children was conducted by Balik Kalipay, a Project of the University of the Philippines in Pikit, North Cotabato in the third quarter of 2002. This was part of Balik Kalipay's psychosocial needs, assessment, and community mapping of Pikit, aimed at gathering baseline data for the Project Team's psychosocial services in the area.

A total of 1,200 children who were attending the Balik Kalipay play therapy were studied through individual interviews with their respective parents. Using the combination of a modified version of the Harvard Trauma Questionnaire and a self-reporting (in this case, parent-reporting) health questionnaire designed for the purpose, eight trained local community interviewers interviewed parents in Pikit's 12 barangays, using a randomized household survey sampling method.

Basically, the interviews focused on calamity and war-related experiences of the children that included loss, torture, death, and displacement; symptoms of trauma; and self-report on the daily social functioning and health status of the children. At least four trauma related experiences with corresponding trauma symptoms were deemed indicative of trauma among the children.

Preliminary results indicate that over 94% (1,128) of the children manifest trauma symptoms. Of this number, 12% (150) children were found to be severely traumatized including the 2.8% (34) who were found to be torture survivors. Balik Kalipay is planning a rehabilitation program for these children." (WB, January 2005, p. 6)

Interviews with members of war-affected communities reveal the negative consequences suffered by children to be their main concern

"The effects of displacement on several vulnerable groups were documented through interviews, case studies, and the analysis of survey data. For example, it was found that children and youth suffered from such consequences of displacement as interrupted studies, trauma, poor health, and the need for child labour. Many have also been polarised, and are likely to harbour strong feelings against "opposing" communities, by the experience of conflict and loss. Some of the community members interviewed discussed the "crisis of the children" as one of the most significant consequences of war and displacement, with very troubling implications for the future.

Moreover, as in most cases of displacement, women are among those who have had the heaviest burden to bear. They have had the responsibility of trying to hold their families together even as social structures have eroded, family resources and livelihoods are lost, and family members are forced to disperse in order to find work. Above all, the loss of family members due to war has had a tremendous psychosocial impact, affecting the women physically, psychologically, and emotionally.

The elderly as well were not spared the tragic consequences of displacement, especially with respect to its effect on their health. Weakened by advancing age and illness, they too had to find work to support themselves and their immediate relatives. Given their long memory of the past and the realities of the present, some of the Muslim and Christian elderly have developed fear and mistrust towards each other's group. As elders, they wield enormous influence in transmitting and reinforcing or eliminating cultural prejudices and biases.

The indigenous Manobo IDP community, as with other impoverished communities in the region, also suffered the consequences of displacement, particularly with respect to their access to land. Basically a farming community, their attachment to land and its resources had been cut off, marginalizing them further.

The experience of violence on the part of the Manobo women and children is reported to have resulted in notable psychosocial trauma and fears." (CFSI October 2003, p. iii)

Lack of disaggregated IDP data complicates estimation of gender-sensitive relief and reconstruction needs (2005)

- World Bank study contends that there is very little disaggregated data available on displaced women and children.
- This lack of information make planning of gender-sensitive programme more difficult.

"The Department of Social Welfare and Development (DSWD), has the critical role of locating populations in different geographic areas to collect, collate, and disseminate information required to plan for both publicly- and privately-funded responses. While the socio-demographic statistics provided by the DSWD, and by the local as well as regional government offices, are generally considered as timely and helpful, data is not disaggregated by gender and/or age. It is thus difficult to formulate gender-sensitive programs and plans, and estimate relief and reconstruction requirements in a manner that is truly responsive to the different needs of displaced men, women, and children. International experience suggests that it is women and very young children that are most severely impacted by the lack of data and information disaggregated by gender and age." (WB, January 2005, p. 6)

ACCESS TO EDUCATION

General

Almost one-fifth of the displaced children in Parang and Pikit lost access to education after displacement (January 2004)

- While the majority of the 358 children surveyed in Parang and Pikit managed to transfer to other schooling facilities after displacement, some 18% either stopped their schooling or dropped out.
- The main reason for not allowing their kids to resume school was that parents wanted their children to study only in their place of origin, or more generally because of the conflict situation. Only 9% of the parents said they needed the children to help them with livelihood activities

"Prior to their displacement, 78% of respondents from Parang and 67% from Pikit asserted that their school-age children were in school. The total was 358 children. Those in the primary accounted 11%; elementary 53%; and secondary 32%.

During displacement, about 82% of 358 in-school children were able to transfer to other schools near their EC. But 15% stopped their schooling, many of whom came from Pikit. Another 3% dropped out from school.

Displaced families of those who quit from their studies had varied plans for them. About 42% or 55 families would allow their children to resume schooling upon cessation of armed conflict in their area. Forty-seven percent (47%) wanted their children to study only in their place of origin, while 9% (all from Pikit) wanted their children to help in livelihood activities for the subsistence of the family." (Notre Dame University & Commission on Population Region XII)

Displaced communities in ARMM region identified education as the top priority (October 2003)

- Most displaced identified education as a priority need to be addressed, at least as important as food or medical attention.
- According to government figures, the proportion of people aged 15 years or more who had not completed even one year of schooling in the ARMM region was 27.8% while the national average was 3.7%.
- Basic social facilities, schools and services were largely destroyed during the war in 2000 and there is a dire need for reconstruction.

"It is important to note that in listening to the displaced through the focus group discussions, it was found that 'the resounding plea of the children and the youth to the government and the international community was not for food or medical attention, but for their education.' According to the Department of Education

(DepEd) figures in 1994, the proportion of people aged 15 years or more who had not completed even one year of schooling in the Autonomous Region of Muslim Mindanao (ARMM)—which includes encompasses these two municipalities—was 27.8% while the national average was 3.7%.

The data reveal that the respondents in the four research areas considered education as their topmost priority. Apart from the imperative of re-establishing credible security and peace, the “crisis of the children” is seen by most as the most important challenge facing the areas affected by war.

The rehabilitation if not construction of services that benefit children, especially educational and medical facilities in rural areas, should constitute a clear priority in any post-conflict recovery programme in this area. Basic social facilities and services were largely destroyed during the war in 2000. Housing, water systems, recreational facilities, sources of income, and health centers were among those identified by the children as problems and needs at the same time. There is also a clear manifestation of government neglect in the areas affected by war in terms of providing basic infrastructure support, health and educational services, and livelihood support." (CFSI October 2003, pp. 12-13)

Obstacles to education

War and poverty are the main obstacle to education (August 2003)

- The February 2003 war and subsequent displacement has caused a decrease in the enrollment in Pikit.
- Reasons for not attending are: relocation of families, child labour to raise the family income, trauma and uncertainty of school during war.
- In Pikit, there is a shortage of class rooms, school buildings, teachers and schoolbooks and other school material.
- In Pagalungan, where many have not yet returned as of October 2003, schools have not opened or are still destroyed.
- Provinces of Central Mindanao, due to severe poverty, were reported to be among the most education-deprived areas in the country, creating a situation of uncertain access to education for many internally displaced children.

"Schools opened nation-wide on June 16 this year. Schools also opened that day in the war-affected barangays in Pikit, except for Brgys. Bulol and Kabasalan. To the credit of the DepEd, a school was opened in Brgy. Bulod for the first time since, although it is only for first grade.

Expectedly, there was a decrease in enrollment in Pikit as a direct effect of the war in February. Some families have relocated; some children need to help out their parents livelihood, some are still too traumatized to go to school (where they are away from parents). Still another reason is that parents chose not to enroll their children because of the uncertainty of school during war. When evacuee families do return, other immediate concerns like food and housing crowd out education as the priority.

Like many other areas in central Mindanao there is in Pikit a shortage of classrooms, school buildings, teachers and schoolbooks (estimated book-user ratio is 1:10). Students especially the children of evacuees lack notebooks, ballpens, pencils, writing paper and other classroom materials.

Education is a problem in the Pagalungan side because evacuees have not been able to return, villages have been abandoned and no schools have opened. Many of the schools have been damaged by the February 2002 war (either from direct hits by artillery or by bombs dropped from planes or gunships, as in the case

of Sitio Balongis, brgy. Kalbugan, Pagalungan) or from disuse in the last five months (Brgys. Kudal and Bgo-Inged which were abandoned since 2000). But residents said have not been told of specific rebuilding plans or budgets.

In some cases, soldiers wanted to encamp beside the school (the case of Brgy. Inug-og central elementary school where Marines approached school officials of their plan)." (Bantay Ceasefire Investigative Mission 1 August 2003)

Severe poverty in Central Mindanao makes access to education uncertain for IDPs

"As in most countries affected by displacement, women and children make up the great majority of the displaced population in the Philippines and experience additional vulnerabilities. The provinces of Central Mindanao, due to severe poverty, were reported to be among the most education-deprived areas in the country, creating a situation of uncertain access to education for many internally displaced children. In areas of return, internally displaced persons reported that classrooms were in poor condition and the number of teachers were inadequate. Moreover, displaced children often experienced difficulty in attending the public school system due to lack of financial means for transport and other necessities." (CHR 3 February 2003, p. 13)

Sources of livelihood and education identified by IDPs as their most pressing needs (October 2003)

- IDPs identify livelihood assistance as their most immediate need.
- Children and youth are most affected by the lack of education opportunities.
- Women, children and youth, and elderly IDPs were among those most directly and adversely affected by the violence and displacement.
- Evacuation centres were often overcrowded, with poor sanitation and an inadequate supply of food, medicines, and other basic necessities for survival.
- Return is hampered by the uncertainty of the peace and order situations in many of their communities of origin.
- IDPs claim that the too-limited presence of the government in the settlement and recovery process of the IDPs was very noticeable, and has been detrimental to the process of return and recovery.

"Generally, the IDPs identified sources of livelihood as their major problem, such that their most immediate need is for livelihood assistance. Surprisingly, however, the resounding plea of the children and the youth to the government and the international community was not for food or medical attention, but for their education because it is their hope for a brighter future. The other vulnerable sectors of the IDP communities, including women and the elderly of the communities, also identified education of the children and youth as one of their top priorities, although they also emphasised the need for facilities that cater to the preservation of the health and life of their communities and their family members. Each of the vulnerable subgroups expressed somewhat different perspectives regarding their needs, problems, and priorities, but the study concludes that in their own ways the women, children and youth, and elderly IDPs of the area were among those most directly and adversely affected by the violence and displacement in the three municipalities. They were, therefore, among those with the most immediate (and sometimes unrecognised) needs of all.

Regarding their experiences following the period of conflict and displacement, the community members surveyed argued that the few evacuation centres that still exist are heavily overcrowded, which aggravates the problem of poor sanitation and an inadequate supply of food, medicines, and other basic necessities for survival. For more than two years now, the IDPs (including women, children, and the elderly as well as

others in the communities) have been of one voice in saying that they want to go back to their sites of origin. However, return is hampered by the uncertainty of the peace and order situations in many of their communities of origin. Further, many of the IDPs fear that they will not be able to survive once they return home or settle in new areas.

Many of those surveyed noted that the initial assistance efforts of the government agencies were limited in scope and focused mainly on meeting immediate humanitarian assistance needs such as food, medicine, and other basic provisions. In some of the project sites, however, it was argued that the too-limited presence of the government in the settlement and recovery process of the IDPs was very noticeable, and has been detrimental to the process of return and recovery." (CFSI October 2003, p. ii)

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Most of the displaced engage in productive work, but they are often exploited (November 2004)

- Dependent on external aid, the displaced find it difficult to find alternative means of livelihood. Because they have no land, they cannot farm, because they have no fishing equipment they cannot fish.
- A number of displaced nevertheless manage to find livelihood activities, including gardening, fishing, farming, harvesting, collecting firewood and metal to sell, and working in a construction firm.
- IDPs, especially women become sources of extremely cheap labour and the money they make is often far below the minimum necessary to survive.
- 96% of the displaced interviewed in Pikit and Parang managed to secure some form of livelihood, but most emphasize the inadequacy of their earnings

"Because they lost their properties and means of livelihood, they became dependent on relief goods. They go hungry when the relief goods get delayed or run out of supply. Slowly, they rise up and find other means of livelihood, but there are many social barriers. Since they do not have land, they cannot farm; they do not have fishing equipment, so they cannot fish. From time to time, though, they go to their home village to gather fruits and vegetables, and when there is any opportunity for paid work in the area, they are able to earn money.

Although not everyone is constantly employed or actively searching for ways to earn a living, a number of them report of various livelihood activities. These include gardening, fishing, farming, harvesting, collecting firewood and metal to sell, and working in a construction firm. Others do not find any work and remain in the evacuation center.

Since they do not have land and farm/fishing implements, these IDPs are often dependent on small capitalists to give them jobs. As if social displacement was not their worst destiny yet, these IDPs, especially women, face another form of victimization, as they become sources of extremely cheap labor. This is a concrete example of the "tatlong kahig, isang tuka" phenomenon. Since there is an oversupply of wage workers, the pay becomes very low.

Men are engaged in fishing, farming, and construction work. Women, on the other hand, are into land preparation, harvesting, dressmaking, and selling bananas. Collecting firewood is done by both men and women. Men usually earn 100 pesos a day, or a little over 200 pesos if they are lucky. Women, however, receive very little, a mere 30 pesos a day for cleaning and harvesting in the cornfields. This is way below the minimum wage for agricultural work set at 130 pesos a day for the ARMM. Other women earn a little bit more by cooking and selling fried banana. Still others are engaged in dressmaking.

Displaced women are very vulnerable to economic exploitation both in the private and public spheres. In the private sphere, women become men's "reserve force" in the event that the latter lose their usual means of livelihood. They will be asked to seek for meager employment. In the public sphere, small-scale capitalists offer women an extremely low wage, which is not sufficient to support themselves, much more their families. This assertion is illustrated in the following scenario.

One male IDP left his fishing net at home. Because he did not have any fishing equipment, he could not fish, so he remained in the evacuation camp. To bring food on the table, he sent his wife and seven daughters to work in the cornfields. Each earning Php30 a day, the 8 women brought to the evacuation center Php240 at the end of the day. This combined wage of 8 women is still lower than the Php250 minimum wage, set by the government for the national capital region. This is not an isolated scenario. The women in our FGDs showed us their hands that turned rough and scarred from working in the cornfields." (Janet M. Arnado & Mary Ann Arnado, 15 November 2004, pp. 60-61)

"While staying at the EC, almost all the respondents (96%) continued to engage in productive work and earn a living for their families. A big number of them engaged in farming (46%); driving (18%); micro merchandising (12%); paid farm labor (6%); sari-sari store (5%); vending (4%) and fishing (4%). It must be stated, however, that such income-generating activities depended on the presence of needed opportunities and availability of resources.

From these economic activities, the IDPs reported monthly incomes ranging from P300 to P12,000. Many IDPs in Parang had income of P 3,000. Those in Pikit had income of P 1,500. The mean monthly income of IDPs in Parang was P 3,759; whereas, in Pikit, it was P 2,890.

[...]

More than one-half (76% from Parang and 55% from Pikit) admitted the inadequacy of their earnings to enable them to maintain the same standard of living they had prior to their displacement. Given the fact that the IDP families averaged 4 children, their monthly earnings would hardly suffice to provide even for their most basic needs. Families without income survived through begging and asking monetary assistance from their relatives." (Notre Dame University & Commission on Population Region XII, pp. 37-38)

Multiple displacements and potential threat of repeated conflict have negative long-term effects (June 2004)

- Most IDPs were already extremely poor and in debt prior to their displacement. Upon return, many return to nothing with their houses and livestock destroyed and most are in dire need of assistance.
- In Central Mindanao, most people affected by displacement are farmers and are already in debt at the start of each growing season.
- Sporadic and protracted nature of the conflict means that IDPs are returning to situations of ongoing uncertainty and insecurity and are hesitant to make investments with long gestation periods .
- Intermittent return are important because communities need to re-establish claims over their homes and farms that can be taken over by other people.
- Poverty among IDPs has various dimensions: their skills are limited, public services are unavailable, limited education and isolation from important urban labor markets, inputs markets are monopolized by a few traders who also happen to be the main source of credit, farm implements are rudimentary and within communities indebtedness is very high.
- Before the war, 67,7 percent of the families in the Muslim-dominated areas had availed of credit. After the conflict, this figure dramatically went down to 49,3 percent.
- After the conflict, there was an obvious decline in farm equipment access for the IDPs.
- Support coming from government agencies is generally very limited and families sought other ways of coping –distant relatives provided living space, women and children sought odd jobs.
- There was an increase in the number of IDPs who earned incomes from farming after the conflict, but the average household income has decreased.

"The impact of armed conflict has long term consequences. The short term impact of the armed conflict has been detailed within the report as seen in significant destruction and loss of houses, property, income, life, security, and well-being. All these are further compounded while families are in displacement, as sickness, food insecurity, and loss of income increase the longer the displacement continues. As the majority of returnees will have been back a year this July 2004 the recovery of some of these short term losses has taken place. However, it is the long term impact of the effects of conflict which are less easily quantified and harder to offset. The repeated displacements and repeated loss from armed conflict suppress' economic, educational, and general initiative to advance as families find it increasingly hard to replace or regain what was lost. Even if many families have regained some of what they lost in the recent conflict, they had little to regain. The presence and potential threat of repeated conflict will continue to inhibit growth. Expanding production is hampered by the perceived level of risk felt by local communities. Many farmers ask 'Why bear the cost of fertilizer and thus bear greater risk of higher loss, if the potential of renewed conflict exists?'" (ACH, June 2004, p. 60)

" 'Beyond the immediate trauma of displacement and humanitarian need, the long-term impact of this conflict on local farmers, if it's not addressed, could be catastrophic,' said Ryan. 'When it's safe to go home, these families, most of whom live on poverty's edge or are in debt already, will return to trampled, ruined farmlands, many having abandoned or sold their livestock, and they will need assistance.'

In Central Mindanao, 70 percent of families derive their livelihoods from agriculture, with most incurring debt at the start of each growing season. The Philippines Department of Agriculture estimates the recent troop movements and fighting has destroyed crops on more than 37,000 acres of prime agricultural land. CRS estimates economic losses in the agriculture sector could be as high as \$10 million." (CRS 23 April 2003)

"In general, the difficult return to normalcy will be indicated by the hesitation of populations to make investments with long gestation periods. Hence, it may happen that poverty can rise significantly where the decision to return remains tentative for extended periods. Public interventions in these areas will probably have to be a mix of continuing relief, confidence building and development initiatives. Intermittent return will, however, be important because communities need to re-establish claims over their homes and farms as soon as possible. It has happened in the past, that local governments officials, military men or other ethnic groups have squatted, and subsequently, established a claim on land that was not theirs.

The sporadic and protracted nature of the conflict in Mindanao means that refugees and displaced people are returning to situations of ongoing uncertainty and insecurity, the longer it will take for private investment to resume. Joblessness, especially in Mindanao, where light weapons proliferate, feeds continuing violence, social dislocation, family breakdown, and insecurity.

Some of the young people in the Buluan cluster interviewed for the Social Assessment think that the construction of permanent structures of houses will change the attitude of people. The prospect of losing an investment could strengthen the wavering commitment of some elders to peaceful solutions to conflict.
(...)

The Social Assessment results show various dimensions of the poverty among the displaced communities. The population's employable skill set is limited; public services are unavailable; limited education and isolation from important urban labor markets virtually remove temporary migration from the set of risk mitigation mechanisms that people affected by an income shock can normally tap; inputs markets are monopolized by a few traders who also happen to be the main source of credit for rice and corn production; farm implements are rudimentary; and non-farm income comes mainly in the form of raising ducks, swine (in Lumad areas), chicken, goats and carabaos in the yard to augment farm incomes. Within communities indebtedness is also very high with farms and home lost being mortgaged to creditors.

Displacement overloaded informal systems of mutual support

There is a weakening of mutual support systems as communities are dispersed. Significant numbers of individuals report being separated from their families for months. (...)

The immediate economic trauma of the war is felt as an income shock, in terms of incomes lost when unharvested crops were abandoned and when planting seasons passed by with workers unable to work their farms. One direct consequence of this war-induced crop failure is that loans advanced by traders could not be paid. The extent to which this might cause the flow of credit to be disrupted is not clear. What is clear is that both the manner and amounts of loans from outsiders given for farm production purposes have been reduced.

Even where communities are intact, the mutual support systems will have been exhausted at some point, because the need for support arose nearly concurrently for all families that had to give up their livelihoods all at the same time. In peaceful times, misfortunes like sickness or loss of income seldom happens to everyone at the same time. Neighbours or families belonging to the same clan have occasion for borrowing funds from each other to buy food or medicine. The impact of the war on systems of mutual support within communities is seen in the fact that of 1,526 people surveyed, the number of people who borrow funds for food went down from 733 before the conflict to only 538 after the conflict (table 5).

Before the war, 67,7 percent of the families in the Muslim-dominated areas had availed of credit. After the conflict, this figure dramatically went down to 49,3 percent. Average amounts borrowed by IDPs clustered around Baranguays Peditad, Molao, Natutungan, Ilian and North Cotabato and Maguindanao before the conflict was P2,394. This figure went down significantly to P1,571 after the conflict.

Productive assets were destroyed because of the war

[...]

A Nutrition and Household Economy Survey among IDPs in Central Mindanao conducted by the International Committee of the Red Cross (ICRC) in June 2001, reveals that the loss of livestock continued to happen even when the displaced families were already staying in evacuation centers. In the ICRC's survey, the number of households owning carabaos was 20.7 percent right after the conflict in October 2000. However, this number fell to 12.1 percent by June 2001.

The extent of the loss of farm implements is seen by comparing Figure 2a and 2b. Before the conflict, there was basic parity between IDPs and non-IDPs; after the conflict, there was an obvious decline in farm equipment access for the IDPs. The information above is the result of a survey of 400 IDPs and 400 non-IDP households in Maguindanao and North Cotabato.

Key informants revealed that the support coming from government agencies is generally very limited and families sought other ways of coping –distant relatives provided living space, women and children sought odd jobs. In many instances, assets that were not destroyed by the war also had to be sold. There is some evidence that depletion of productive assets also took place because men-folk decided to exchange their assets for weapons “to protect their women and their property”. Thus, in conflict areas and in areas of potential conflict, the civilian population also used up resources to arm itself. The cost of one firearm is an amount equivalent to several months of a poor family's income.

For populations that will return to the war-affected areas, the loss of productive assets makes it unlikely that they will hit the ground running in a manner that allows them to resume the pace of their lives and livelihoods before the eruption of conflict. Second-round economic effects will also be felt in terms of the disruption of the flow of informal credit for production due both to conflict-related loan defaults and possible perceptions by creditors, that some households may need to divert such loans intended for the purchase of production inputs in favor of more immediate needs, like attending to the needs of the sick,

paying-off other loans or repairing houses. The creditors themselves will probably be in distress, with their funds loaned out to families who may be too deep under the surface to be able to offer any prospect of helping improve the creditors' cash position.

Communities played host to people unwilling to return home

Displaced persons unable to return home were forced to call on resources of inter-community systems of support. The Social Assessment revealed the presence of safety nets among groups connected through kin or ethnic affinity. Many communities played host to displaced persons who are unable or unwilling to return to their places of origin. The surveys managed to reveal mostly the immediate economic effects of the crisis. But much less is known about the adequacy of the safety net provided by host communities, about the effects of the new entrants on the well-being of the receiving communities, and about the nature of the reciprocal obligations that the resettled populations will have to bear in acknowledgment of the generosity of their hosts.

The datu-landowners as a class in Maguindanao provided employment to the IDPs as farm workers in a very substantial scale. The datos and IDPs informants observe that people who stayed for prolonged periods in evacuation centers have suffered relatively greater economic displacement because of a complete loss of their livelihood.

The household survey data shows that there was an increase in the number of people who earned incomes from farming after the conflict, but the average household income has decreased. This is consistent with accounts about datu-landlords who hired IDPs who resettled in their lands. At the same time, it is also consistent with the intuition that when households are in desperate straits, their members must take whatever work is available to them and even mobilize secondary income earners, including women who used to be fully occupied with care-giving tasks and children who used to be in school. Some landowners say that they expect assistance from the government in order to continue absorbing farm labor workers for the IDPs." (WB 3 March 2003, pp. 15-19)

Upon return IDPs resume their lives by adapting to new realities and reducing expenses (June 2004)

- For people living near the Ligusan Marsh, fishing is one the most important coping mechanism and mean of livelihood.
- To adapt to their situation, many families tend to reduce their expnses upon return to their homes. This often includes an interruption of school for children.
- Families also reorganize the size and composition of their family by sending to relatives the children they cannot afford to feed.

Fishing activities enable returnees to cope with their fragile situation

"Families access various coping mechanisms in times of need; most significant is the access to the fishing resources of the marsh. This activity is both livelihood and coping mechanism, in that, in the event of emergency or the increased need for cash, expansion of fishing activity can take place.

Moreover the availability of the marsh fishing allows returnees to access income and food upon returning from displacement contributing to the restart of activities. Even the poorest can access the marsh as there is a high use of local fishing cages constructed of bamboo and require minimal cost. The other primary coping mechanism for shortfalls of income is accessing relatives for small loans. Others report vending of foods by women as contributing income in times of increased need." (ACH, June 2004, p. 61)

Coping mechanisms upon return include reducing expenses to the minimum, selling their remaining assets and relying on external assistance

"Displaced families face a sudden crisis of confidence once they leave the evacuation centres. They are aware that their resources have been depleted. The notion of resuming normal life is saddled with anxiety arising from risks related to economic uncertainty and the prospect of resurgence of violence and armed conflict. To cope, families make it a point to adapt to their new economic status.

Reduction of expenses is a common consequence. This includes reduction of budget for education. Some children, especially those in the upper age bracket, absorb the risks by dropping out from school.

Essential to families is the ownership of a work animal. To acquire a replacement for the animal lost during the war, families sell their other assets. Large families who lost not only their livestock but also their homes are forced to re-organise. Some children move to their relatives while elder siblings find work in town centres. The members of the family create a normal environment despite this reality. This is done through routines in house and farm work. More time is allocated for production. Children are mobilised for farm duties.

Communities cope and move on after the war with external assistance.

After the war in 2000, aid agencies were confronted with the problem of how to sustain gains and how to prepare communities for future disasters. Using participatory methods of social and needs assessment, strategies were developed and designed to build on indigenous capacities developed through humanitarian assistance projects.

"Space for peace" was popularised in the Pikit area. The displaced communities were encouraged to collectively and jointly confront inter-ethnic concerns and problems. This led to peace dialogues that ultimately engendered the emergence of community organisations representing various ethnic groups.

Some civil society organisations posit that Mindanao is a society comprised of three distinct but co-existing peoples. These are the Islamic tribes aggregated as the Moro people; the non-Muslim indigenous groups aggregated as Lumads; and the various non-Muslim settlers from Luzon and the Visayas aggregated as Christian settlers. The idea of bringing these ethnic groups into a dialogue for peace has been welcomed by the civilian population and by warring actors." (Save the Children, 2004, pp. 61-62)

Public participation

Presence of IDPs places an extra burden on host community and creates tension (January 2004)

- Presence of IDPs is generally viewed by the host community as a nuisance. the displaced put an extra burden on the provision of basic services such as water and energy resources.
- After a few months, the external help generally dries up and the local government has to use its own funds to assist the displaced.
- Education of the host population' children is generally disrupted by the lack of classrooms and the increase in enrollment in the elementary level.

"Generally, local officials/leaders of host municipalities viewed displacement as having negative effects in their respective communities. The presence of shanties and tents occupied by IDP families made the place ugly, dirty, disorderly, and congested. Furthermore, the displaced persons competed with local residents in the use of limited water and energy resources. In barangay Making, the informants deplored the reduction of water supply at home. When donations dwindled to scarcity and finally stopped, the local government

had to use its own funds to provide for the survival needs of the IDPs, particularly health care and food. There was also the problem of sanitation and solid waste disposal. Overall, the IDPs who came from remote rural areas had neither training nor practice in proper waste disposal. In their places of origin, the existence of wide tracts of land renders proper waste disposal unnecessary.

The use of classrooms as temporary shelters led to the destruction of school facilities. Some chairs and tables were used for cooking. Moreover, the IDPs' occupation of school buildings and grounds often resulted in the disruption, if not suspension, of ongoing classes being attended by the children of the local residents.

The key informants also noted that some residents expressed suspicion, fear, uneasiness, dislike, and even anger at the presence of the IDPs in their communities. They considered them as "outsiders", "strangers" and "intruders" whose character and background they were unaware of and, therefore, not welcome in their midst. In one EC, the selling of illegal drugs became rampant as attested by the increase in drug addiction among the youth. Cases of robbery and theft doubled since the start of the IDPs encampment in the area. Some parents became apprehensive of the safety of their children.

Evacuation centers in Parang and Pikit have become fixed structures. The IDPs who chose to stay as permanent residents unduly increased the population in these two towns. Worse, these IDPs who lost their farm implements and work animals and forced to abandon or indefinitely leave their lands untilled became economically dependent on the local government for their subsistence.

Another consequence wrought by the arrival and stay of the IDPs in the host municipalities was the increase in enrollment in the elementary level. There were not enough classrooms to accommodate the children of displaced families. Hence, class size had to increase from 50 to 70 pupils per teacher despite the addition of two (2) sections in all levels of the elementary and secondary grades." (Notre Dame University & Commission on Population, p. 41-43)

Coalition of peace groups propose to involve IDPs in the peace process (February 2004)

- A coalition of peace groups -the Mindanao Peaceweavers- has proposed to the government and the MILF to involve representatives of the displaced communities and indigenous groups in the peace process as observers.
- The coalition suggested to develop a feedback mechanism that would ensure the dissemination of information down to the community level.

"A coalition of peace groups in Mindanao has asked the peace panels of the government and the Moro Islamic Liberation Front to allow lumad and refugee representatives as observers in the duration of the peace negotiations.

In a letter sent Wednesday to Silvestre Afable, Jr. and Mohagher Iqbal, government and the MILF peace panel chairmen, respectively, the Mindanao Peaceweavers strongly urged the inclusion of observers from the two sectors.

The Mindanao Peaceweavers is composed of the Mindanao Peoples' Caucus, Agong Network, Consortium of Bangsamoro Civil Society, Mindanao Solidarity Network, Mindanao Peoples' Peace Movement, Mindanao Peace Advocates Conference, Peace Advocates Zambonga and Initiatives for International Dialogue.

'We propose that at least eight representatives of our network be accredited as observers, subject to the standard requirements of accountability and responsibility in the handling and dissemination of information,' the group wrote Afable and Iqbal.

'Our observers will be process observers who will represent indigenous peoples (lumads), Bangsamoro civil society, displaced communities, women and peace and human rights advocates in Mindanao,' it added.

If granted, the Mindanao Peaceweavers said it would bring information on the peace process to the grassroots level.

The group also said it will develop a feedback mechanism that will ensure the dissemination of information down to the community level. It said information through public consultation and the radio networks will increase public awareness and support for the peace negotiations." (Mindanews 19 February 2004)

WB household survey shows 93 percent of IDP household do not belong to any organization (March 2003)

- Of 1,526 respondents from conflict-affected communities in Davao del Norte, South Cotabato, Maguindanao and Sultan Kudarat, 84 percent do not belong to any organized group.
- 93 percent of IDP households and 75 percent of non-IDP households are not involved in any organization.
- The purpose of establishing organizations is generally to receive assistance.

"Despite or because of the disruption in their lives, people in conflict-affected areas have remained unorganized. Of 1,526 respondents from conflict-affected communities in Davao del Norte, South Cotabato, Maguindanao and Sultan Kudarat, 84 percent do not belong to any organized group. Of the remaining 16 percent, around one-third claim affiliation with the MNLF, while the other two-thirds belong to different Islamic, religious, political and youth organizations. Less than one percent belong to cooperatives.

The household survey results in Muslim communities affected by conflict reveal that 93 percent of IDP households and 75 percent of non-IDP households are not involved in any organization. In contrast, almost all of the indigenous people (IP) households surveyed are involved in some group or organization with the majority affiliated nominally to the Manobo Lumadnong Panaghi-usa (MALUPA). In general, those who belong to organizations do not seem to know the objectives and activities of their organizations. Not one person can recall the last organizational meeting they attended. But leaders of the organizations were more responsive to the general purpose why the organizations were formed –typically it is to receive assistance." (WB 3 March 2003, p. 28)

Access to land

Presence of armed groups or military limits IDPs' access to their lands (August 2005)

- During 2005, IDPs forced from their homes by military operations in Maguindanao province were not given enough time to go back to their homes and work on their lands.
- Because of this and the risk of not having enough food for their family upon return from displacement, some farmers accept the risk of staying overnight in their villages.

"Since July 1, the Philippine Army has been trying to find and attack a band of the Abu Sayyaf Group or ASG who are reportedly in Maguindanao. Under harassment by continuing AFP operations, the ASG has split into small groups.

(...)

In Barangay Timar, we see a destroyed school, a mosque without spiritual life, military checkpoints. The village is dead. At the school we meet a group of women and children evacuees, all with serious faces. They don't expect help from us, but our inability to change their situation makes us sad.

Our attempt to laugh seems to be out of place here. What can you say to people who have fled their houses and their livestock and will be far from their fields when harvest time comes?

Some of the evacuees have been allowed to enter the area of search operations on the west side of the Ahan river. But they are only allowed in the area from 7 a.m. to 3 p.m., a mechanism agreed on between the MILF and GRP. Eight hours. But it already takes the farmers some six hours just to reach their farms! Six hours from the allowed eight! To harvest, two hours is simply not enough. And with our new experiences with the Philippine kitchen, it is also clear that giving each family five kilos of rice is not enough government support to the evacuees.

(...)

It is evening and we are at the Notre Dame Peace Center in Cotabato City with some 40 Bantay Ceasefire members. We are discussing the situation of the farmer evacuees of Barangay Timar. Some farmers return to their farms and stay there overnight, accepting the risk to remain in an area that has not been declared "cleared" of terrorist elements. We talk about the security question for the evacuees— how will their security be ensured? It is a difficult question: Have you ever chosen between your personal security and the necessity to be able to feed your family in the coming months?" (Mindanews, 19 August 2005)

"As of July 28, 2005, despite the military operation in the area, some of the residents numbering to 137 individuals went home to harvest their farm products. The residents are allowed to enter and harvest their farm produce from 7:00 o'clock in the morning until 3 o'clock in the afternoon. Each individual will log their names to the outpost located in Sitio Project, Barangay Tamar, Talayan.

IDPs are poised to danger themselves just to harvest their products in order to survive. According to one of the barangay captain, their farm products are due for harvest this months and if ever the military operation still pursuing their mission and hampering them to go into their farms, he is afraid that their crops will be putrid and will result to hunger among themselves." (Bantay Ceasefire, 28 July 2005)

Most IDPs surveyed access agricultural land through tenant or sharecropping situations (June 2004)

- ACH survey shows that most IDPs living near Ligusan Marsh tend to access land through tenant or sharecropping.

"Access to agriculture land and fishing water is widespread though the means of increasing production in both farming and fishing activities is affected by level of access to equipment and inputs. There are indications that the growing population has reduced the average size of the family plot.

In the table below we see that of the 217 families 183 are accessing land. Of those not (34 family) 19 are IDP families originally from Baguinged and now at Inug-ug. The land owners represent those families who access what they say is their own land and thus rent fee. These families are not sharecropping, nor are they using other means to access land. The '50/50' families are those who are sharecropping, with owner and partner sharing the cost of inputs and profit. The 30/70 is a rental arrangement wherein the cost of access to

the land is 30% of the profit from the crop. Though all families may not hold title they are recognized as owner within the community. It is noticeable that the IDPs are accessing land through tenant or sharecropping situations.

Of the 217 respondents 183 said they had access to land.

Table 14. Land tenure situations

The average land accessed for farming is 1.04 hectare. Families in the poorer class are more likely to access .5 hectare or less. The families who have the greater risk are those with land that is at the lowest elevation and closest to the marsh, thus when the rising of the water they are the first to be inundated and the last to get dry.

Table 15. Land access

Land Access; Classification	Avg. size of land area, ha.
unaffected	1.05
IDP	0.80
Returnee	1.3
average	1.04

source: HH survey

In regards to fishing areas:

The marsh fishing area is freely accessed by all families. The area apparently is sufficiently large so as not to warrant control of the area. Reportedly net fishermen can go wherever they want within the barangay area of the marsh to fish. However many fishermen coordinate there positioning of the nets within the marsh." (ACH, June 2004, pp. 24-25)

Homelessness and loss of access to land upon return is a major risk for returning IDPs in North Cotabato (October 2003)

- The 6 main risks upon return and resettlement are homelessness, food insecurity, increased morbidity, loss of access to common resources, marginalisation (economic and social), community disarticulation, and increased morbidity.
- In Carmen the top 4 risks are homelessness, food insecurity, loss of access to common resources, and marginalisation.

"There are six risks of return and settlement that are of particular interest in this discussion [for Carmen IDPs]. These are the risks of homelessness, food insecurity, increased morbidity, loss of access to common resources, marginalisation (economic and social), community disarticulation, and increased morbidity. For Carmen IDPs, the highest risks are homelessness, food insecurity, loss of access to common resources, and marginalisation.

The lower risks include community disarticulation and increased morbidity.

The physical loss of homes is the major consequence of displacement. The families fled their homes in haste, leaving behind their farms, crops, farm equipment, farm animals, and all their belongings, even their clothes. At the evacuation centers, they feel helpless, disoriented, and depressed. The miserable conditions of overcrowding and uncertainties at the evacuation centers add to their ardent longing for an immediate return to their

communities of origin. The continuing risk is that they will remain homeless, thus jeopardising their successful return.

Regarding food insecurity, the displaced families appreciated the prompt flow of assistance from concerned agencies and organisations during the earlier phases of displacement. There was food, clothing, and relief assistance. However, as their return to their homes was not immediately possible, assistance diminished as months wore on leaving the people in a most pitiful situation. Unable to farm, they are dislocated from their main source of livelihood. If they do not find work, even as hired farm labourers or through other odd jobs for some family members, food could not be served for the family. Food has become scarce or is limited to basic root crops like cassava, bisol, yam, and sweet potatoes or bananas. Thus, food insecurity continues to jeopardise the successful rebuilding of their lives.

For many of the IDP families who had access to land as a common resource (e.g., under community stewardship), the loss of access to their basic resource--their land, forested land, and farmland—increased their vulnerability. Since most of the displaced families are farmers, their basic livelihood comes from farming corn, sugar, rubber, or rice using the common resource base. Unable to go back to their farms, the Manobo families are

deprived of their productivity in their ancestral lands. The continuing risk is that this lack of access may turn out not to be temporary, but might instead be long-term.

Another common resource lost due to conflict was the community place of worship. For example, the Maguindanaons lost access to their mosques where they attend their Friday religious services and hold the Qur'an reading activities for their youth. Because of displacement, the already impoverished communities are subjected to further marginalisation. The farmers, either as tenants or farm stewards (as in the case of Manobo communities), were already cultivating farmlands with poor productivity levels. As a result of displacement, their farmlands cannot be fully cultivated. They no longer have farm equipment and farm animals to enable them to maximise land cultivation. The usual one to three hectares of land that they cultivated prior to the armed conflict have now been greatly reduced to barely half a hectare.

The risks of community disarticulation and increased morbidity present lower risks patterns for the IDP families. Family ties and neighbourhood networks were clearly weakened by displacement. There were families who lost the life of a family member or a kin. Some family members have altogether separated, as children were sent (out of fear) to distant relatives outside of Carmen or to find work in other communities. In addition, the morbidity risk is prevalent among the children. The common illnesses are fever, cough, headache, diarrhoea and malaria." (CFSI October 2003, pp. 59-60)

Coping mechanisms

Rationalization and social support are important coping mechanisms (November 2004)

- Personal resilience or the positive rationalization of the situation has been reported as an effective means of coping with the difficult situation.
- A cohesive indigenous social support system helps the women evacuate their stress through discussions with other evacuees and the voicing out of their personal stories.

- The social support which women provides with, and acquire from, their husband has intensified as a result of their social displacement.
- Traditional medicine has been reported as a form of first aid medicine that is often effective.

"The IDPs' ability to endure the economic and psychological trauma of recurring wars is being facilitated by their coping resources, to include resilience, indigenous social support system and institutional assistance, embedded in personal, interpersonal and structural levels, respectively.

Personal resilience

Personal resilience has been found to be an effective preventive measure against mental illness in times of war (Summerfield 2002). Among the women in this study, personal resilience has proven the test of time, given their frequent witnessing of violent military and secessionist group encounters, and their constant dislocation that disrupts their patterned daily life. Through our conversations, we learned that women's resilience is often achieved through rationalization of the situation. This is a process of understanding reality, discerning on the circumstances that are within and beyond their control, and deciding to act based on those that are within their control. Two outcomes of rationalization were observed among the women focus group participants. One is the tendency to ignore mental illness symptoms. Rationalizing the non-existence of mental illness may prove beneficial at times. When one ignores mental illness, one does not need to attend to it, or worry about how to obtain mental health care. Another outcome of rationalization is the decision to be happy despite the external chaos. Sadness, they claim, will not bring them any good. (...)

Social support

Rationalization of the situation is reinforced by a cohesive indigenous social support system. For example, the rational choice to remain happy is facilitated by their social support system. Venting out of psychological baggage with their friends and relatives is one powerful and popular coping mechanism among the women evacuees. Although they do not have the services of a trained psychiatrist, their friends often fulfill the psychiatrist's role. A major therapeutic event that occurs in a psychiatric consultation is a dialogue between the psychiatrist and the patient: the patient relives the traumatic experience while the psychiatrist listens and directs the recounting of experience. This therapeutic experience or psychiatric event is fulfilled by the women themselves, as signified in Nora's narrative above. Women share stories of war and evacuation experiences as they do their laundry in the stream, taking turns in listening and in talking. By voicing out their stories over and over again, they gain an improved perspective of reality, enabling them to create a "good plan," a rational decision to be happy, for example. In addition, articulating their emotions with other women helps them feel better (...)

It is in the context of fulfilling a psychiatric event that these women are enabled to create a space to laugh their experiences out, an indication of temporary relief. Through rationalization and social support, displaced women do exercise agency together.

Aside from their women friends, the social support which women provides with, and acquire from, their husband has intensified as a result of their social displacement. "There is actually no room for disagreements" they said in chorus. As one Maguindanao woman further explains, "When your external environment is at war, you have to strengthen your family bond so you will survive." Many focus group participants share this logic -- not one of them admitted of fighting with her husband over something menial.

Within this social support system we locate traditional medicine, often performed by a spiritual healer, babaylan, an elderly woman member of the community. The babaylan applies herbs and performs rituals to eliminate the bad spirits that reside in the body and cause the disease. Focus group participants identified it

as a form of first aid medicine that is often effective." (Janet M. Arnado & Mary Ann M. Arnado, 15 November 2004, pp. 70-72)

"Social support networks are important. 77% of those interviewed said that they go to a relative first in time of need. 20% said they would seek money from a trader in time of need, and another 3% chose various other options. What is clear is that the family, immediate, as well as extended is an important component in the social fabric and is extensively maintained.

20% said they receive regular assistance from families living outside the Philippines. 50% of these said they receive over 20,000 pesos per year." (ACH, June 2004, p. 17)

"Strong family ties are proven to have mitigated risks and improved the coping abilities of families and individual family members. This is evidenced by the distinct role of families as governing organisations during heights of conflict. Outside of designated evacuation centres, there are families absorbing displaced families beyond the knowledge of duty bearers. The extent of this practice is not yet studied, but accounts indicate that this capacity is historical and has remained functional. This tends to be more predominant among Maguindanaon Muslim families and Lumads, where clan structures are fairly strong and bloodlines are customarily taken into account." (Save the Children, 2004, p. 70)

Children's coping mechanisms during displacement (2004)

- Save the children's study shows that children affected by displacement and conflict tend to use the following coping mechanisms: support of the family, spiritual, maintaining a sense of coherence, exercising resilience, maintain normalcy and keep optimistic.

"Many of the children victims of the Mindanao war are still searching for answers even as they may have produced certain answers to immediate threats. Others have successfully coped with stress while others have failed and are still in need of assistance. What follows are the successful ways of coping of the children that can be enhanced and supported by duty bearers. Duty bearers include governments and state agencies, NGOs and other civil society organisations. In relation to child rights, duty bearers also include adult members of the community, such as parents, teachers and religious leaders.

Interviews and discussions with children aged 12 to 17 reveal ways of coping during the war common to children across all ethnic groups and certain ways that are particular only to children who belong to a certain ethnic group (Annex 1, Tables I and J). The particularity, however, is not much about the ethnicity of the children, but more about the external environment evolving from the ethnic identification of the family or group which influences the types of stress affecting the children.

(...)

The children employ various ways of coping. They do the following:

Seek the support of the family, especially of the mother

(...)

The predominant tendency of children is to seek comfort from their mother since in most cases the father is out somewhere to either get information on what's happening or is preoccupied with protection duties for the family property or the community. The important role of mothers in providing emotional shelter is validated by the accounts of mothers who, threatened by their own fears, always strive to remain strong in order to assure their children that everything will turn out fine.

Invoke protection of God or Allah

(...)

Across all ethnic groups, children tend to seek protection from a Superbeing. Prayer is the most common method of seeking protection, with the belief that God or Allah is just around to help.

Maintain Sense of Coherence (SOC)

Sense of coherence refers to the individual's confidence in the predictability and manageability of the environment, and his or her belief that everything will get back to normal (Antonovsky, 1979; Sagy, 1986). SOC is said to be an important factor in resiliency.

(...)

Mentally and physically, children 11 to 17 years old, are generally able to maintain a sense of control (or strive to maintain such control) in various ways. This is evidenced by a child nursing his own wound during an evacuation, children seeking physical cover instead of getting immobilised during exchange of fire or children carrying food stuff and clothes during the journey to avoid hunger and lack of clothes. Children behave in such ways because they sense that the emergency situation will somehow change to normal although they have no way of determining when. This can also be seen in the children's ability to identify safe grounds (swamp, underground portion of house) or to identify source of risks (location and direction of gunfire, volume and intensity of fire) from which they can determine steps for temporary safety. Although children do not have control of external conditions around them, the ability to cling to the belief that things will get back to normal improves their resiliency.

Exercise resilience

(...)

Children have the ability to get back to normal as soon as external conditions improve. Even during heights of conflict, children are able to bring themselves into the family process once the intensity of firing subsides. In the evacuation centres, children quickly restore their social activities by seeking old friends or making new ones. One of the most favourable influences that enhance this resilience is the presence of the mother during the most crucial times. Children become more resilient when it is the mother who appears on the scene in the nick of time to offer support, warmth and comfort (Werner & Smith, 1992).

Maintain normalcy

(...)

This sense of normalcy at wartime is indicated by purposive actions such as making new friends, sharing stories or waking up early to do household chores. It provides relief for short-term periods, primarily because the application of the strategy is constrained by the absence of favourable conditions.

Inter-sibling co-operation

(...)

Despite extremely difficult circumstances, close family ties continue to provide a buffer to stave off stressful conditions. This can be seen in various forms of inter-sibling co-operation, such as an elder brother or sister taking the load off a younger sibling's load of rice during the evacuation.

Keep hope and optimism alive

(...)

The knowledge that they are not alone in the middle of war is essential to the children. The active participation of NGOs and government agencies in the relief effort, including psychosocial initiatives by some NGOs, enhance this feeling of optimism. The mere presence of duty bearers, in fact, brings hope.

It is equally important and in fact compelling to note that there are unsuccessful coping strategies that need to be looked into and addressed effectively. Children who lose a parent or a relative, children who nursed bullets and constantly remember the events from the scars and children who witnessed the killing of a parent or a relative, find it difficult to cope. They have tried to but failed, because the success desired is beyond their own means of coping.

Studies show that children 7 to 11 years old may not completely eradicate the memories and effects of the stress they have experienced (Dacey & Travers, 1996). The children from Mindanao with physiological effects are in this age group. These children may fall under the group of children who are likely to increase their vulnerability or attain limited immunity to later stresses because of their earlier stressful experiences, as Rutter describes in a study done in 1983.

These are stressful experiences that prove too strong for children to cope with alone and require external interventions:

Witness to a killing, especially killing of a next of kin

Getting wounded during a crossfire

Witness to death of a kin because of shock during skirmishes or bombing

Witness to a family confrontation with armed groups, eg, rebels or government soldiers barging into homes

Destruction of school buildings (affects children wishing to finish their education); and,

Chronic violation of rights, eg, theft of livestock, burning of homes, where the violators roam around with impunity resulting in chronic stress to affected persons." (Save the Children, 2004, pp. 45-50)

For more information on Mindanao's children coping strategies before, during and after the 2000 and 2003 wars, see Annex I, Data Tables in "Their War, Our Struggle. Stories of Children in Central Mindanao", Save the Children, 2004 [[Internet](#)]

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Strong gender identities in the Philippines and Mindanao in particular (2005)

- Filipino culture in general and Muslim culture in particular are patriarchal and traditional with strong gender identities.
- During displacement it is the men who makes the final decision to return home.

"Filipino culture in general, and the Muslim culture in particular, are still basically patriarchal and traditional, with strong gender identities and where roles and behaviors are assigned to one gender or the other (Byrne 1995). Gender identities are culturally-created and individuals are expected to fit the cultural, traditional, and social mold attributed to their particular gender group. In the Philippine social context and particularly in the Muslim Mindanao context, women are accorded due respect and recognition as members of the family and of the community. However, the tradition of leaving major decision making to the men of the family still prevails. For instance, among the displaced people temporarily housed in evacuation centers in post-conflict Mindanao, the man of the family generally still makes the final decision of whether to go back to the family's place of origin or not. At a higher decision-making level, enabling the participation of women in peace negotiations between the Government of the Philippines and rebel groups remains an advocacy concern." (WB, January 2005, p. 2)

War & displacement often fundamentally changes family roles (2005)

- Displacement tends to cause important changes in family roles.
- Men in evacuation centers often lose their authority and have to deal with a greater dependency. This sometimes results in frustrations, depression and loss of self-esteem among men.

"Displacement causes fundamental change in the lives of displaced individuals and their families. For example, the roles of family members usually change, at least temporarily if not permanently. Men in the evacuation centers find themselves in situations of very limited authority and great dependency. Generally unable to work, afraid of being labeled "rebel" by the military, they often become depressed, anxious, and aggressive within their household and domestic circles. Domestic violence, excessive smoking/alcohol intake, and, in some cases substance abuse, are signs of their distress and frustrations.

In the evacuation centers, more and more frequently, food and other relief supplies are being delivered through women who are considered by providers to be more efficient and less likely to allow the supplies to be diverted, stolen, and/or misused. Women and girls must often wait in line to obtain food rations, assist with food distribution, fetch water and/or do the laundry, prepare meals, and provide care for their children as well as their husbands and/or elderly dependents. In addition, they are often the 'target beneficiaries' of both public and private service providers, as well as peace educators and advocates. Their already long and busy days before displacement become doubly long and busy upon displacement. Assistance is generally provided to men and women alike in evacuation centers, often with little regard as to gender-appropriateness when it comes to the nature of the relief supplies." (WB, January 2005, p. 9)

Effects of war on men and women

"The physical effects of the war on the family, on persons, and on property, is of primordial concern to men. Men are less candid on the emotional effects of the war on themselves and on other men. For example, while men recognise that the women are afflicted with the fear of losing their husbands, a man may find it difficult to express his own fear of losing his wife or child.

In contrast, women are more candid about the effects of the war on their physical state and emotions and on their social and economic life. Women talk about how the war led to their physical separation from their men. They express their anxiety over the loss of support from their men and the possible association of the men with armed groups. They also bring to the fore the multiple burden of reproductive and productive duties of women that remain constant even in times of war.

It is the culturally-prescribed role for men to be economic providers for the family. That is why the loss of economic resources is traumatic to them. When the displaced persons of Saranay (Takepan, Pikit) lost their livestock to MILF rebels, it took time for the men to accept the loss. "Ang mga tigulang dili na intawon makatuo nga wala na silay mga kalabaw. Mangmata lang tawon sila mga alas 3 sa buntag unya magdanguyngoy na dayon sa hilak." (Our elders could not really believe that their carabaos were gone. They would wake up at 3am and would start crying.)

Women across ethnic groups are collectively concerned about the welfare of their children, primarily on the matter of the disruption of their studies. This basically means that in times of war, child space in terms of the school building, is always violated.

One hardly articulated effect among men is the loss of self-esteem. For Maguindanaon Muslims in particular, it is a downgrading of their maratabat or self-worth if they are forced to feel helpless. Like the fear affecting displaced persons across sexes and age groups, however, men are affected by the fear of dying. They overcome this fear by taking a proactive mode, either by taking up arms or seeking substantial information with which to estimate the chances of survival." (Save the Children, 2004, pp. 40-41)

During displacement families tend to regroup along ethnic lines (2004)

"Just as individuals seek comfort in their own families, families also tend to seek comfort in being with other families during external shocks. Isolation tends to contribute to stressful situations within a family such that they always strive to regroup. Joining other families increases the chance of survival.

(...)

In communities where trust levels between ethnic groups have diminished and are infected by mutual suspicion, families tend to regroup selectively. This tendency is never formalised as policy. It simply emerges as a group choice. Duty bearers adapt to it accordingly by serving all groups wherever they are located. During the 2000 war, the Christian settlers of Malapag (Carmen) evacuated to a Christian-only evacuation centre in Damulog (Bukidnon). They did not invite their Maguindanaon Muslim neighbours. The latter evacuated to Muslim villages or occupied spaces in uninhabited rubber plantations. During the same year, Christian settlers in Pikit sought refuge in the gymnasium owned by the Catholic Parish while their Muslim neighbours occupied the town plaza and some public schools." (Save the Children, 2004, pp. 52-53)

PROPERTY ISSUES

General

IDPs returning home find their properties looted or destroyed (June 2005)

- IDPs displaced from their homes in Surigao del Sur in May 2005 returned home a few weeks later to find their properties either stolen or destroyed

"More than 2,000 Manobo indigenous peoples were forced out of their village in the wake of military operations. Upon returning to their homes, they were shocked to see most of their properties either stolen or destroyed. Though uncertain of what the future holds for them, the Manobos are demanding justice for what the military did to them.

(...)

On May 18, 33 families or 280 people from Emerald were the first batch of evacuees to return home following the local government's order. Initially relieved at seeing their homes still standing, the residents were later incensed when they found out that their village was looted.

Finding the roof forced open, the cooperative store was near empty as soft drinks, cigarettes, shampoo, canned goods and noodles were stolen. According to the cooperative management, P8,000 (\$147.06, based on an exchange rate of P54.40 per US dollar) worth of goods were stolen.

Outside, they found empty cans of sardines and softdrinks scattered around houses where freshly dug foxholes were made by the soldiers.

In the grinding shop, electrical wires were cut off. A chainsaw was damaged as well. The water hose was also damaged, temporarily cutting the village's water supply. At the moment, the residents had to fetch water from a nearby river.

To the relief of parents and school teachers, the school was left unharmed." (Bulatlat, 29 May 2005)

"On 28 April 2005, military forces involving elements of the 58th Infantry Battalion, Philippine Army and the 6th Scout Rangers Company, intensified their counter-insurgency operation in the remote areas of Lianga, San Agustin, Marihatag and Cagwait, in the province of Surigao del Sur.

(...)

On May 18, moved by the evacuation of civilians in six municipalities, the Provincial Peace and Order Council convened. The provincial officials, church leaders and military officials attended the meeting. It was agreed that the civilians in Km. 9, Emerald, Diatagon, were allowed to return to their communities. The returning evacuees then discovered that their cooperative store had been ransacked, their corn mill forced open, their milling machine destroyed, their water hose cut into pieces, and their houses dug with foxholes." (AHRC, 26 May 2005)

"The survey interviewed 147 families (IDPS and Returnees) who were displaced due to the conflict. The displacement forced many families to abandon assets in the rush to evacuate. Houses of course were lost to destruction as well as a number of animals. There was a reported high loss of kitchen equipment, essentially pots and utensils. We see also that 70% reported losing kitchen equipment while 55% reported

losing a house. This is explained; that as many people leave assets behind and untended many things are lost to looters. It can also reflect that many IDPs never regained their equipment after displacement.

We also looked at those families who were forced to sell assets; though not as significant as 'loss' it nonetheless causes loss of income as the families have to take a price less than the value of the animal for example. It is notable that 31 families were able to sell their animal prior to displacement. It seems that within the barangay that there are water buffalo traders who have the means to purchase the animals as well as to move them out of danger. This also could reflect mechanisms that have developed due to families having dealt with displacement before." (ACH, June 2004, p. 21)

8 out of 10 communities surveyed near Liguasan Marsh lost house and property during the 2003 conflict (June 2004)

- More than half of households surveyed by ACH in 10 communities in Liguasan Marsh lost their houses to the conflict
- DSWD statistics show more than 7,000 houses were damaged in Mindanao by the 2003 fighting
- During the 2000 fighting, some 6,300 houses were destroyed in Mindanao
- Damages to houses or looting of evacuees' property usually happened after they left their homes.

"8 of the 10 communities lost house and property. A number of these families have received assistance from the government by way of housing materials to rebuild. Many have not received; how many is hard to establish, but according to reports 1235 houses were built in the area. Data from barangay leaders report that 2352 houses were reportedly heavily damaged. Data from the HH survey of the 120 families reportedly receiving assistance 13% said they had received shelter assistance. Talitay and Kabasalan report that highest level of destruction with over 600 houses destroyed. Rajamuda, Barongis, and Bulol are least all below 30.

(...)

Of the 10 barangays included in the assessment 8 were heavily affected by the conflict. Typical housing is most often constructed of local building materials including bamboo and nipa palms. The loss of housing is the most readily obvious effect of the conflict. Unfortunately we do not have a number of total houses existing prior to the conflict so it is hard to get an accurate picture of overall destruction. The estimated 39% provides a rough estimate but does not account for the fact that many families share housing. From the HH survey 55% reported losing a house because of the conflict.

Public health services were also damaged or destroyed in the conflict. Housing, public, and private business, schools, religious buildings have also been damaged in the conflict. " (ACH, June 2004, pp. 20-21).

According to the statistics of the DSWD, the conflict between the military and the MILF in Mindanao has, since January 2003, damaged some 6,908 houses. Of these, 5,666 have been totally destroyed (DSWD 22 July 2003)

"According to the DSWD, as of October 9, 2003, there was a total of 422 civilian or non-combatant casualties of the armed conflict documented since the onset of the disaster in January 2003. Of this figure, 238 are dead, and 184 injured. Alongside this, 7,108 properties and houses were damaged of which 5,846 are totally damaged and 1,262 are partially damaged.

" (Balay January 2004)

Fighting has caused extensive damage to houses, schools and mosques in Pikit (August 2003)

"Some civilians in Sitio Sapakan, Buliok in Pagalungan and in Brgy. Kabasalan, Pikit complained that their houses are currently occupied without their consent by the Marines. Returnees to Kabasalan said they were directed to occupy the new core shelters, not their old areas. Kabasalan residents also complain they cannot pray in their mosque because of soldiers camped in the mosque vicinity and a temporary fence constructed as part of Marine security measures.

The mission also noted extensive damage to properties in the fifteen barangays in Pikit, Pagalungan and Pagagawan that the mission visited. A significant number of houses, schools and mosques were damaged either by direct hits from small arms fire, from mortar or artillery shelling, from bombs dropped by planes or from gunship rockets. Civilian houses were burned from aerial bombings and shelling and there were strong indications that many houses were intentionally torched. Farming and fishing implements like fishing boats were also put to the torch.

Barangay Captain Samad Mamoalas of Kalbugan, Maguindanao (who accompanied the mission) claims that up to 100 houses were burned in Kalbugan, aside from the PTA building and the village mosque.

It should be noted that these damage to civilian properties were committed after the people had evacuated and abandoned their villages, hence the difficulty to substantiate the allegations. Civilians however claim that the AFP troops were the only ones left in the interior barangays after the people had evacuated." (Bantay Ceasefire Investigative Mission 1 August 2003)

More than 6,000 houses destroyed during 2000

"The armed skirmishes in 2000 displaced an estimated half a million persons, destroyed 6,229 houses and damages another 2,115 (DSWD)." (Oxfam January 2001, p. 2)

"Burning of houses and divestment of belongings (clothing, furnitures, kitchen utensils, farm animals, etc.) usually happened after the evacuees left their homes.

Some cases were brought to the Commission on Human Rights by the evacuees with the help of some non-governmental organizations. But only few cases were resolved and most victims remained unindemnified and rehabilitated. (ECDFC, June 2000)

See also ["3,000 displaced families in Mindanao are still homeless \(January 2004\)"](#)

GRP will award reparations for the properties lost or destroyed by reasons of the conflict (September 2002)

- The latest agreement on humanitarian, rehabilitation, and development issues stipulates that the GRP shall award reparations for the properties lost or destroyed by reasons of the conflict upon reasonable proof thereon as mutually verified and acknowledged by both parties.

"The latest agreement on humanitarian, rehabilitation, and development issues stipulates that it will safeguard the observance of international humanitarian law, respect for internationally recognized human rights, and fundamental freedoms for all persons. These are the criteria and standards that should guide the monitoring mechanism of Article VI of the agreement to be undertaken by the joint Coordinating Committee on the Cessation of Hostilities (CCCH).

The agreement also assures full access for the International Committee of the Red Cross (ICRC) 'in accordance with ICRC's standard operating procedures'. It stipulates that 'in conformity with international

humanitarian law, each party shall provide information, through the tracing mechanism of the ICRC, to families of all persons who are unaccounted for.'

They also agree that the 'parties shall pave the way for the immediate return of evacuees to their places of origin and provide all necessary financial/material and technical assistance to those evacuated for them to begin a new life. The GRP shall award reparations for the properties lost or destroyed by reasons of the conflict upon reasonable proof thereon as mutually verified and acknowledged by both parties.' (Article V, Numeral 3)." (UNDP 23 September 2002, p. 19)

PATTERNS OF RETURN AND RESETTLEMENT

General

Returning IDPs need assistance in the recovery process (October 2003)

- Areas most affected by the fighting were Maguindanao and North Cotabato province.
- Most of the assistance provided was short-term and focusing on immediate needs.
- CFSI used a more comprehensive and long-term approach in its assistance to IDPs and conducted a study among three affected communities.
- In the three areas, most IDPs identified the following problems: scarcity of livelihood sources; inadequate food supply; the lack of basic household wares, shelter, as well as education for the young and the adults; incidence of common illnesses; psychosocial problems; poor health and sanitation; unavailability of farm to market roads; and the destruction of resources.
- The issue of security and protection is viewed differently by the IDPs depending on the area they live in. In Carmen, IDPs in Carmen feel more secure and motivated to return to their homes if the military has a detachment in the area. On the other hand, in Pagalungan and Pagagawan, IDPs feel secure if there are no AFP camps.
- Only Carmen has host communities for the rehabilitation of settled IDPs, whereas the IDPs of Pagagawan and Pagalungan return to their sitios of origin to rebuild their community.

"The war of 2000 in Mindanao resulted in the displacement of hundreds of thousands of families in Central Mindanao, particularly in the provinces of Maguindanao and North Cotabato. The majority of the internally displaced persons (IDPs) sought refuge at the evacuation centers while others found shelter in the homes of their relatives, albeit temporarily. Fortunately, organisations and individuals in the public and private sectors commiserated with these victims by extending assistance following the programmes that they themselves have formulated and adopted. Some of the assistance focused on responding to specific urgent needs, while the Pilot Project carried out by CFSI employed a more comprehensive approach in responding to the needs and the process of return of the IDPs.

This study on transition interventions listened to the voices of the IDPs in three of the five project sites—namely Pagalungan, Pagagawan, and Carmen—to generate insights from their experiences of displacement, needs, return and settlement. The highlights of the study revealed some commonalities and differences in the experiences of displacement, needs, return and settlement among the IDPs in the three research sites.

Among the commonalities are: scarcity of livelihood sources; inadequate food supply; the lack of basic household wares, shelter, as well as education for the young and the adults; incidence of common illnesses; psychosocial problems; poor health and sanitation; unavailability of farm to market roads; and the destruction of resources.

The IDPs in Pagagawan, Pagalungan, and Carmen expressed their immediate need for sources of income for their families as they struggle to rebuild their lives at their respective sites of origin (SOOs).

(...)

In the recovery process from displacement to settlement, the IDP families experience inadequate food supply. Most of them subsist on root crops, fish, and the like. While most of the IDPs have already returned to their SOO, planting corn, rice and root crops, they have to wait for about four to six months until these

are ready for harvesting. Most often, their harvest is not sufficient for the family's subsistence. These families also need household wares such as utensils, water containers, sleeping mats, mosquito nets, and others.

The IDPs consider shelter as a basic requisite to rebuilding their family and community lives. Only a few IDP families were given housing units in Carmen and Pagalungan while many of them, in other sitios of Carmen as well as Pagalungan and Pagagawan, still need shelter assistance.

A large number of IDPs in the three project sites are school-age children, hence the need for basic education. The severely limited accessibility to school facilities deter the children and youth from obtaining an education. Most schools in the area will take about two (2) to four (4) hours walk from the SOOs. The literacy level of the IDPs in the project sites is, generally, very low, the highest being only at the primary level (Grade II). In addition, many adults feel the need for a functional literacy programme. The physical distance of the schools from the SOOs is further compounded by their condition of poverty and displacement. They express the need for a primary school at their SOOs.

The common illnesses suffered by the IDPs are respiratory diseases (children in all areas), tuberculosis (elderly Manobo in Carmen and Maguindanaos in Pagalungan), skin diseases (children—all areas), malaria (children and adults in Carmen) and shock and trauma (children, adults, and elderly—all areas). Many of these illnesses are preventable through regular primary health care services. Most SOOs are far from the health centers, thus, they are seldom provided with health services. In most cases, the IDPs rely on traditional medical care such as birth deliveries assisted by a hilot (traditional birth attendant).

The war and subsequent displacement in the three research sites resulted in a heavy psychosocial burden on women and children. They suffer from shock and trauma, which hinders their capability to cope with the ordeal to survive in the crowded evacuation centers (ECs) and in the impoverished SOOs.

The poor health and sanitation condition of the IDPs is partly attributed to lack of potable water and toilet facilities in the SOOs of the IDPs. Their common source of water is an open well or spring, which is unsafe for drinking.

Many SOOs have no road networks. The IDPs experience difficulty in transporting their products from their place to the market.

(...)

As a result of the war, the IDP families had lost their resources—their houses, work animals, crops, farm implements and other properties—as they experienced displacement. Most of them went through great physical and economic loss and are thrown into a state of further impoverishment.

(...)

The issue of security and protection is viewed differently by the IDPs in the three project sites. For instance, in Pagagawan and Pagalungan the IDPs feel secure if there are no AFP camps in, or near, their SOOs. The presence of the AFP in their area might lead to more skirmishes and may result in further displacement. The IDPs in Carmen, on the other hand, feel more secure and motivated to return to their SOOs if the military has a detachment in the area. Moreover, the SOOs of the IDPs in the research sites are prone to security risks due to the presence of the AFP and MILF camps nearby. They fear that the occurrence of another armed confrontation between these two contending groups is not a remote possibility.

It can also be noted that only Carmen has host communities for the rehabilitation of settled IDPs, whereas the IDPs of Pagagawan and Pagalungan return to their sitios of origin to rebuild their community." (CFSI October 2003, pp. 84-86)

Government declares "zones of peace" to ensure safe return of evacuees, but military presence to remain (June 2003)

- Government and some NGOs have set up "sanctuaries for peace" in war-torn areas in Mindanao.
- Rebels have agreed to abide by the agreement and respect the following three salient points in these zones: avoid armed confrontations, local communities will design plans for peace and development, and local leaders shall define security measures.
- The creation of the zones of peace is reportedly a step to encourage the return of the evacuees. Continued military presence at the "periphery" is justified to protect the returning evacuees.
- According to the NGO BALAY, the peace zone initiative and government's rehabilitation agenda appear to be a counter-insurgency move.
- Furthermore, the government's development agenda is ignoring one of the agreements it signed with the MILF which created the Bangsamoro Development Agency (BDA) as the body tasked by both parties to lead and manage rehabilitation in conflict-affected areas.

"The government, together with several non-government organizations, has set up "sanctuaries for peace" that will sustain peace building and development, unhampered by armed combat in war-torn areas in Mindanao.

At a joint meeting of the Cabinet and National Economic and Development Authority in Davao City, secretary of the National Antipoverty Commission, Teresita Quintos-Deles, told President Arroyo that the rebels have agreed to stay out of declared sanctuaries.

She said Muhammad Nubdin, chief of staff of the Moro Islamic Liberation Front, in a letter dated May 31, 2003, promised to abide by the agreement.

Deles said an Inug-og declaration of sanctuaries for peace provided three salient points:

- Armed confrontation shall be avoided at all times and peaceful approaches shall be used in resolving problems or conflicts;
- Local communities shall design plans for peace and development; and
- Local leaders shall clearly define and determine security measures.

Deles said families who sought refuge in evacuation centers in Pikit, Cotabato, could return safely to their homes and farms in the Pikit-Pagalungan-Pagagawan cluster under the protection of the sanctuaries.

Earlier the Cabinet Oversight Committee on Internal Security had issued a policy on "zones of peace" calling for the redeployment of military units to let evacuees return to their places of origin, the activation of the zones through rules set by the locals, setting up of local monitoring teams and the immediate completion of rehabilitation projects.

Under the program, the NGO Tabang Mindanaw is committed to providing core shelters, health services, technical aid in sustainable agriculture and continuing peace education to the returning evacuees. The sanctuaries for peace shall be created village by village.

The first targets are three barangays in Pagalungan-Inug-og, Kudal and Bago-inged." (The Manila Times 12 June 2003)

"Defense officials today assured the safety of displaced families in Pikit and the Buliok Complex in North Cotabato when they return to their former homes now that the former conflict areas are being declared by the government as a "zone of peace."

In a press briefing in Malacañang, Defense Secretary Angelo Reyes said that the declaration of a "zone of peace" is a step that the government has taken to facilitate and encourage the evacuees to return to their former homes and live normal lives.

'Of course, we will secure them and we will try, as much as possible, to let them live their normal lives,' Reyes said.

Reyes, however, said that there is no airtight guarantee that the Moro Islamic Liberation Front (MILF) as well as other lawless elements would not harass them.

But Reyes said that the military and the police will go after these lawless elements if they will harass or harm the residents.

In the same briefing, Gen. Dionisio Santiago, chief of staff of the Armed Forces of the Philippines (AFP), said that when an area is declared a zone of peace, the military would move out from the population centers and will be just in the periphery.

Santiago said the police and the military will make sure that criminal elements would not enter the zone to ensure the security of the returning evacuees." (Office of the Press Secretary, 4 March 2003)

Balay Rehabilitation Center on the "zones of peace" initiative...

"President Arroyo's effort to declare the 15 conflict-affected barangays in Pikit as a "peace zone" is a master stroke in irony. For one, the peace initiative does not come from the affected civilians. Neither were they consulted on the matter. The military does not intend to totally pull out from the so-called peace zones. They will only reposition their troops to allow the civilians to return to their villages. But the troops will remain in the periphery creating a virtual "hamlet," under the shadow of the military presence. The MILF has not left the so-called Buliok-complex. They remain mobile around their former base areas and launch harassment against army positions from time to time. Hence, the forced return of civilians would only put them in grave danger. (As of this writing, the 105 Howitzer cannons of the military are ablaze again in Fort Pikit. They are shelling once more the villages in the so-called Buliok complex not long after they have declared that the rebels have already retreated).

The peace zone initiative and government's rehabilitation agenda appear to be a counter-insurgency move. Again, it has ignored one of the agreements it signed with the MILF which created the Bangsamoro Development Agency (BDA) as the body tasked by both parties to lead and manage rehabilitation in conflict-affected areas. Moreover, it is simply foolish to talk about rehabilitation when a shooting war is still going on. What is needed is for the guns to be silenced and for the peace negotiations to resume. Only then, perhaps, the civilians can start to rebuild their lives again." (Balay 10 March 2003)

See also:

"Returning evacuees to their homes: a probability", Mindanews, 28 May 2003

"Gov't declares Pikit, Buliok Complex as 'zones of peace' ", Office of the Press Secretary, 4 March 2003

WB survey shows many will not return home after leaving the evacuation centers (March 2003)

- Significant number of IDPs will not return to their places of origin after leaving the evacuation centers but will instead seek accommodation in other communities.
- Others intend to return but will wait until the chances to regain a livelihood increase.

- Further depletion of their livelihoods will have to be avoided by hard work and inclusion of women, children, and even the elderly in the labor markets.
- Unfinished character of the conflict means that the uncertainty of life in areas in and around former MILF camps will continue to shape people's decisions even after the displaced families have returned to their homes and farms.
- Planning horizons of people in these communities will tend to be short and long-term investments in farms and communal facilities will be limited.

"An important feature of the major GRP-MILF confrontation is that it was in the nature of an attempt by the Philippine military to displace the MILF from its camps and strongholds. But these camps also happened to be nested in Muslim communities. The displacement of armed MILF combatants, thus, also led to the displacement of civilian populations. At the end of 2001, close to one million people were displaced by the GRP-MILF war. It is now necessary, however, to help the civilian population return to these places of former conflict and rebuild their communities and livelihoods.

Findings from surveys in Central Mindanao reveal that a significant number of IDPs will not return to their places of origin. After leaving evacuation centers, these people will seek to be accommodated in other communities. Others will return only once they see that the chances of restoring their livelihoods have increased. The first welcome step that the Government has done in this respect is to rebuild homes that have been destroyed. Bridges, road madrasahs, public schools, health centers, potable water systems and farm implements, however, were also destroyed. Carabaos and harvests have been lost or else sold or depleted during the interim when people had to flee their homes. Until normalcy returns to rural economies, people will need to work very hard just to prevent the further depletion of their livelihoods in a setting where rural credit flows have been disrupted by failures in harvests, and as a result of the knowledge of creditors that many have sunk too far below the surface to make the repayment of past and new loans a priority. The Social Assessment reveal that women, children, and even the elderly have had to join the labor markets in response to the disaster brought about by the disruption of their livelihoods and communities.

A second important aspect of the recent conflict is its largely unfinished character. Many displaced people worry about their security and about the possibility of a repeat of the armed conflict in their communities of origin. This must be particularly so for those whose communities are within marching distance of the dispersed MILF bands or of troops of the Philippine military stationed in the former rebel camps. Communities in and around former MILF camps remain precarious because, being strategic locations, these will continue to invite contest between the warring parties. Meanwhile, the uncertainty of life in these areas will continue to shape people's decisions even after the displaced families have returned to their homes and farms. Planning horizons of people in these communities will tend to be short and long-term investments in farms and communal facilities that would otherwise be worthwhile may be forgone. Yet, it is also probably true that communities that have been assisted in investing in their livelihoods and communities will be more hesitant than others to engage in activities that would increase the risks of another disruption –e.g., participating in aggressive pre-emptive moves against groups and forces that are perceived to be hostile. This is an idea that comes from young people encountered by the Social Assessment teams." (WB 3 March 2003, pp. 33-34)

Three post-conflict community types in Mindanao (March 2003)

- In communities situated near the "front line", continued presence of the military and high probability of resumption of war is hindering the return of the displaced.
- In mixed communities, social infrastructure, especially in mixed communities of Muslims, Lumads and Christians will also have to be repaired and mutual distrust will be the starting point of any development effort.

- In communities that receive IDPs, site development will be an important component in order for the IDPs to secure some manner of tenurial security, if not outright land ownership, essential to creating the incentives for investing in the productivity of the land.

"There are at least three types post-conflict community types in Mindanao and each type may require a unique approach to ensure development effectiveness.

Communities found within or close to the tensile points of the conflict between the MILF and the Philippine military.

These would be communities in or around what used to be MILF camps. The Philippine troops continue to be posted in these former MILF camps after these were overrun. The military leadership is logically concerned that the MILF troops, which were merely dispersed, might retake these positions. On the other hand, the presence of government soldiers is one reason internally displaced populations would rather resettle elsewhere, either temporarily or permanently.

It is important to realize that the return to these places will be hindered by the perceived high probability of a resumption of armed conflict in these areas. It may be important to support the phased return of IDPs towards these places via half-way temporary evacuation centers, to allow IDPs to visit their farms, to avoid new local conflict arising from occupation of their properties and to allow them to assess the peace and security situation. A similar program was supported in 2000 by then DSWD Secretary and Vice-President Gloria Macapagal-Arroyo. The intention, however, was merely to establish these halfway centers, while the houses of the displaced persons were being rebuilt.

Mixed communities

As may be gleaned from the stories in Boxes 1 and 2, the end of armed hostilities between the major protagonists in Mindanao will require more than just the reconstruction of physical infrastructure that was destroyed by the conflict. The social infrastructure, especially in mixed communities of Muslims, Lumads and Christians will also have to be repaired. In mixed ethno-religious communities where the conflict has manifested itself in terms of the physical self-segregation of neighbors, mutual distrust will be the starting point of any development effort. It may not always be sensible to expect these communities to undertake joint projects, at least not major ones and not immediately. It is also possible that former neighbors would desire to remain separate for an indefinite time. Barangay and other local government officials may not always be perceived to be good mediators in post-conflict settings in mixed communities because their relatives or they themselves may have been involved as protagonists during the recent conflict.

Communities that receive displaced populations

Site development will be an important component in these communities because the new settlers will probably find themselves in the marginal lands. Negotiations with clan leaders, and community elders will probably have to be formalized, to secure some manner of tenurial security, if not outright land ownership. This is essential to creating the incentives for investing in the productivity of the land.

It is undeniable that the newly relocated families should receive assistance to help them resume their normal lives, more so if they are located in marginal lands of existing communities or if their entry makes them indebted to the host community and places them in subordinate positions within the logic of the rural economy. Even in instances where the arrival of these victims of war may have positive economic consequences for the host communities in the long-term (e.g. if they help solve problems of labor shortage in crop sectors where timing of labor availability is extremely important), members of the host community may hold the belief that they too should be given projects." (WB 3 March 2003, pp.23-24)

Return

Most displacement incidents during 2005 were short term with IDP returning after a few weeks (2005)

From January to September 2005, a total of 158,375 people have reportedly been displaced by these armed encounters with the worst incident taking place in Sulu province in early February and resulting in the displacement of more than 85,000 people (GIDPP, 15 September 2005). Most displacement incidents during the year were relatively short-term with people returning home as soon as the fighting subsided.

In the first week of February 2005, government forces launched a massive military operation against Muslim rebels in Sulu, a MNLF stronghold. As a result of the heavy fighting which lasted from February to April, and which reportedly included indiscriminate aerial bombing and shelling of civilian areas, some 85,500 people were forced from their homes (Kalinaw Mindanao, April 2005, p. 11). Although the majority managed to return as soon as the fighting subsided, more than 8,000 people remained displaced as of June 2005 (DSWD-DROMIC, 9 June 2005). In September 2005, a civil society group in Sulu claimed that more than six months after the fighting started “thousands of families” remained displaced because of the military operations (Mindanews, 3 September 2005).

The second largest displacement incident occurred one month earlier on 9 January 2005 in Mamasapano, Maguindanao province, when an estimated 35,000 people fled their homes due to clashes between MILF rebels and government forces. Both sides were quick to play down the incident as they stated that it would not affect the ongoing peace talks. The MILF acknowledged responsibility for the attack, which they claim was ordered by a renegade local commander without the approval of the MILF leadership. The majority of the displaced managed to return in the weeks following the incident (DSWD-DROMIC, 26 January 2005).

Although 40,000 returned home after a few weeks, thousands remain reportedly displaced in Sulu 8 months after start of offensive (September 2005)

- Following the conflict that displaced some 85,000 in Sulu between February and April 2005, there are contradictory reports as the number of people who remain displaced.
- A Moro women group reported in September 2005 that thousands of families remained displaced.
- ICRC's visit in June reported that the vast majority had returned to their home, although it didn't give any numbers.
- DSWD indicated that as of June 2005, some 8,000 individuals remained displaced.

Moro women group claims thousands of families are still displaced in Sulu (September 2005)

"The Moro women noted that “thousands of families” are still displaced in Sulu because of the military operations but the manifesto did not indicate the estimated number of remaining evacuees.

It also noted that what added “alarm” in Sulu was the “unannounced movement of heavily armed US military forces in the area this month. The sight of the Americans and their weapons, the manifesto said, “frightened our children.”

“We are already traumatized by decades of armed conflict, now the American soldiers are harassing us from behind a façade of development packages,” the manifesto said.” (Mindanews, 3 September 2005)

DSWD reports 8,000 IDPs left as of June 2005

"Thirteen thousand four hundred forty (13,440) families composed of 85,532 persons were affected.

A total of 1,601 families composed of 8,475 individuals are still being served inside and outside of the evacuation center.

To date, one (1) evacuation center remained open at Timbangan, Indanan sheltering 15 families composed of 68 individuals while 1,586 families composed of 8,407 individuals are still being served outside." (DSDW-DROMIC, 9 June 2005)

ICRC's visit in Sulu concludes majority of displaced have returned home (June 2005)

"The joint ICRC-Philippine National Red Cross team was well received by local authorities who were anxious to impress upon the visitors that normalcy had returned to the island. The ICRC and National Society representatives took part in a series of meetings with local community and religious leaders and with representatives of women's organizations in order to inform themselves about any need for protection or assistance that might exist.

The ICRC's first priority was to assess the situation of the approximately 30,000 people displaced at the outset of the fighting. In places where the displaced had previously taken refuge the team observed that the vast majority had returned to their homes." (ICRC, 21 June 2005)

One month after start of fighting, some 40,000 people reported to have returned home

"Press Secretary and Presidential Spokesman Ignacio R. Bunye said today some of the families displaced by the hostilities in Sulu have started returning to their homes in areas no longer affected by the fighting.

Families driven from their homes by the fighting between government troops and the combined forces of Moro National Liberation Front (MNLF) renegades and Abu Sayyaf terrorists are temporarily housed in evacuation centers.

"Our latest information is to the effect that some of the displaced families are slowly going back to their homes," Bunye said in a radio interview this morning.

He said the government continues to provide adequate food supplies, care and protection to the evacuees.

Bunye also reiterated the government's decision not to declare a ceasefire until there's a better chance for long-term peace to prevail finally in the area.

'All of us want peace. We all want our countrymen to be safe and secure, but we cannot afford to stop the ongoing police operation (in Sulu) as long as certain groups continue to flaunt the law,' he said." (Government of the Philippines, 7 March 2005)

Media report quotes DSWD's chief saying evacuees refuse to go home

Soliman said that as of March 7, there were 9,759 families or 54,843 persons displaced by the fighting, which was concentrated in Panamo town. Some are housed in the four evacuation centers while the rest are staying with their relatives in the nearby towns of Panglima Estino, Indanan, Parang, Patikul, Luuk, Maimbung, Jolo, Kalingalang, Caluang and Talipao.

She added that the evacuees refuse to return to their homes even as clashes had waned since they fear fresh violence could erupt." (The Inquirer, 9 March 2005)

"The number of persons displaced by the armed conflict in Sulu has dropped from the peak of 80,000 to 39,000 as of Tuesday, Social Welfare Secretary Corazon Soliman said.

Soliman told MindaNews that the latest report she received is that the remaining evacuees number 8,309 families or 39,717 persons." (MindaNews, 8 March 2005)

Policy

Tripoli Peace Agreement of June 2001 provides for the return of evacuees and their rehabilitation (September 2002)

- GRP and MILF have agreed that the 'parties shall pave the way for the immediate return of evacuees to their places of origin and provide all necessary financial/material and technical assistance to those evacuated for them to begin a new life. The GRP shall award reparations for the properties lost or destroyed by reasons of the conflict upon reasonable proof thereon as mutually verified and acknowledged by both parties.
- Return of evacuees and reparations were not the original product of the Implementing Guidelines of May, 2002 but rather stemmed from the Tripoli Peace Agreement of June 2001

"The latest agreement on humanitarian, rehabilitation, and development issues stipulates that it will safeguard the observance of international humanitarian law, respect for internationally recognized human rights, and fundamental freedoms for all persons. These are the criteria and standards that should guide the monitoring mechanism of Article VI of the agreement to be undertaken by the joint Coordinating Committee on the Cessation of Hostilities (CCCH).

The agreement also assures full access for the International Committee of the Red Cross (ICRC) 'in accordance with ICRC's standard operating procedures'. It stipulates that 'in conformity with international humanitarian law, each party shall provide information, through the tracing mechanism of the ICRC, to families of all persons who are unaccounted for.'

They also agree that the 'parties shall pave the way for the immediate return of evacuees to their places of origin and provide all necessary financial/material and technical assistance to those evacuated for them to begin a new life. The GRP shall award reparations for the properties lost or destroyed by reasons of the conflict upon reasonable proof thereon as mutually verified and acknowledged by both parties.' (Article V, Numeral 3).

[...]

On the other side the GRP agrees to relieve the evacuee situation and allow a return to the places occupied prior to 'All Out War', as well as to pay reparations for properties lost and damages sustained. In sum, a reversal of the effects on the population of the 'All Out War'. Of course, the MILF as an organization would not return to the situation 'antebellum' in that there would be no resurrection of the armed camps, exclusion of the State, and MILF territorial control.

[...]

On the other side, some national and local officials, broad sectors of the AFP and ex-President Estrada, all protested the return of the evacuees to their places of origin and the payment of reparations. A role for an MILF entity in rehabilitation and development was also questioned. It was argued that these measures would make in vain the sacrifices of AFP comrades in arms who fell on the field of battle to take the MILF camps as part of the All Out War policy. It was also seen as rewarding the MILF despite their defeat in the All Out War. The return of evacuees and reparations were not the original product of the Implementing Guidelines of May, 2002 but rather stemmed from the Tripoli Peace Agreement of June 2001 (Literal B 'Rehabilitation Aspect, Section 3)' (UNDP 23 September 2002, p. 20)

See also:

Full text of the "Implementing Guidelines on the Humanitarian, Rehabilitation and Development Aspects of the GRP-MILF Tripoli Agreement on Peace of 2001"

MILF and GRP agree to ensure safe return and rehabilitation of IDPs (June 2001)

- Government and MILF agree to implement the 1997 ceasefire agreement to ensure a safe return of the displaced persons.
- Financial and technical assistance will also be provided to rehabilitate the displaced, as well as reparations for lost or destroyed properties.
- MILF will lead and manage rehabilitation and development projects in the conflict-affected areas except when public funds are involved.
- Members of the OIC are invited to observe and monitor the implementation of the agreements.

"Good news for evacuees who were displaced by the war in Central Mindanao last year.

The government and Moro Islamic Liberation Front (MILF) peace panels agreed at the end of the first round of formal peace talks in Tripoli, Libya last Friday, to implement the 1997 ceasefire agreement in the conflict-affected areas, 'safely return evacuees to their places of origin,' provide 'all the necessary financial/material and technical assistance to start a new life' and implement development projects there.

The two panels also agreed that the evacuees be 'awarded reparations for their properties lost or destroyed by reason of the conflict.'

(...)

Under the 1997 ceasefire agreement, the two panels agreed to 'commit the armed forces of the GRP and the MILF to a General Cessation of Hostilities.'

In Libya last Friday, the agreements on the 'rehabilitation' and 'security' aspects were contained in a five-page 'agreement on peace' signed by government panel chair Jesus Dureza and MILF peace panel chair Al Haj Murad and witnessed by Saif Al Islam Gaddafi, chairman of the Gaddafi International Foundation for Charitable Associations.

The two panels also agreed that the MILF 'shall determine, lead and manage rehabilitation and development projects in conflict-affected areas, except when public funds are involved, in which case government procedures and rules will be observed.'

On the 'security aspect,' the panels agreed that 'normalization' in conflict-affected areas can be achieved if the parties adhere to 'certain principles and guidelines' such as the implementation of all past agreements in accordance with the framework agreed upon in Kuala Lumpur on March 24.

It was agreed in KL that the government and MILF would 'honor, respect and implement all past agreements and other supplementary agreements signed by them' but 'details of the implementation shall be discussed by the panels.'

The panels agreed in Libya that negotiations and the peaceful resolution of the conflict "must involve consultations with the Bangsamoro people free of any imposition in order to provide chances of success and open new formulas that permanently respond to the aspirations of the Bangsamoro people for freedom."

They also agreed to invite representatives of the 56-nation Organization of the Islamic Conference (OIC) to 'observe and monitor the implementation of all GRP-MILF Agreements.'

The OIC earlier brokered the peace talks between government and the Moro National Liberation Front (MNLF), which led to the signing of the Tripoli Agreement of 1976 and the 'Final Peace Agreement' in 1996.

The panels also agreed to 'strengthen' the July 1997 ceasefire agreement signed in Cagayan de Oro on July 18, 1997.

A monitoring team 'with representatives' from the OIC was expected to be constituted immediately upon signing of the 'agreement on peace' last Friday.

The two panels agreed to discuss ancestral domain in the next round of talks." (Mindanews 23 June 2001)

Obstacles to return

Absence of peace and security is one of the main reason for not returning (January 2004)

- In July 2003, 5 months after the start of fighting, the municipalities of Pikit and Pagalungan remained highly militarized with MILF and AFP troops.
- The repositioning of troops further away of the barangays, as suggested by residents, would ease the return of the displaced as it would diminish the risk of them being caught in the crossfire.
- According to a World Bank assessment, the main reason for not wanting to return home among IDPs displaced around North Cotabato was the lack of peace and security

"An overwhelming number of respondents (85%) in Parang expressed intention to stay permanently in their present site but only 29% in Pikit declared the same intention. Among the reasons mentioned were the destruction of their houses and means of livelihood at the site of origin; livelihood and education of children at the host communities; and fear of recurring armed conflicts at their sites of origin.

Lack of security was a major reason for not wanting to return. This was an obstacle pointed by Balay Inc. as it cited the presence of landmines, the activities of the para-military units and the recruitment of CAFGUs, the burning of houses and government buildings by the rebels and the "anti-terrorist" operations of the military (IIAHR)." (Notre Dame University & Commission on Population, p. 31)

"The mission notes that at the time of the mission on July 13-15, five months after the February assault in Buliok, the municipalities of Pikit, Pagalungan and even the adjacent municipality of Pagalungan remain highly militarized. There are three Marine brigades in Mindanao; two Marine brigades (the First and Second Brigades) were deployed to Pikit and Pagalungan (the Third Marine Brigade is in Sulu). Even if the Marine officers claim the deployed brigades are undersized, the mission was not able to get exact deployment figures.

The army's 40th Infantry Battalion also maintains headquarters in Pikit poblacion.

Pikit, Pagalungan and Pagagawan are also under the operational area of the MILF's 105th Base Command which claims to have 20,000 armed regulars. However, the 105th Base Command's area also extends to

North Cotabato (Tulunan, Matalam, Carmen, Kidapawan, Banisilan and Alamada); Sultan Kudarat (Columbio) and Maguindanao (Sultan sa Barongis, SK Pendatun).

Aside from these armed groups, the local government units are also recruiting and training CVOs in Pikit, with the first batch of 150 CVOs completing their training last June 26. CAFGUs are also being trained under the army's 40 IB.

In contrast, Pikit, Pagalungan and Pagagawan have an estimated combined population of about 140,000 or roughly 15,000 families.

Confronted with this militarization, many residents proposed to the mission that the military eventually withdraws or at least reposition away from civilian communities. Kagawad Ismael Usman of Brgy. Kudal said: 'Now that there is a ceasefire, the military and MILF should go back to their camps so that the civilians can also go back to their own barangays.'

The presence of troops render meaningless the March 4, 2003 declaration by the Cabinet of 15 barangays in Pikit as 'zones of peace', and the well-publicized June 13, 2003 declaration by the President of Brgy. Inugog, Pagalungan, as a 'sanctuary of peace'." (Bantay Ceasefire Investigative Mission 1 August 2003)

"Government data does not provide a sense of the number of affected populations that have not returned to their places of origin. Results of the Social Assessment provide some indication (see table 4).

In November and December 2001 internally displaced persons (IDPs) coming predominantly from the North Cotabato towns of Kabacan, Carmen and Pikit were clustered around the Muslim-dominated barangays of Pedtad, Moloa, Natutungan and Ilian. More than 60 percent were in resettlement sites while the rest were in evacuation centers and rehabilitation sites. Fifty-seven percent of these IDPs said they did not have plans to return to their places of origin, while the remaining forty-three percent said that they still had plans of going back. Those who had no plans of going back to their places of origin were those clustered around the barangays of Natutungan and Ilian in North Cotabato.

Majority of survey respondents with no plans of going back said that the absence of peace and security led them to their decision of 20.5 percent. The comfort experienced living in their current residence relative to their places of origin and the loss of livelihood and property in the area of origin convinced the others to avoid going back.

Among those who still had plans of returning to their original homes, around three-fourths said they wanted to go back because it was "their place of birth and they have a farm there".

Twenty percent of the respondents said that nothing would convince them to return to their original communities. Ten percent of the respondents said that going back would depend on whether there is a good source of livelihood in their place of origin." (WB 3 March 2003, pp. 13-14)

Landmines and UXOs impede return of displaced (March 2004)

- Peace advocates and groups working for the rehabilitation of areas torn by the war against the MILF in February 2003 have warned about the danger posed by unexploded bombs near villages where people are returning.

"The greatest fear of families displaced by recent armed conflicts in Pikit, North Cotabato has come true.

On Tuesday, a dud explosive left during the Buliok war of 2003 went off, killing a farmer and seriously injuring his brother.

Eighteen-year-old Norhamin Toga said he and his elder brother Solayman, 22, were plowing their field when they hit the bomb, which was buried in the farm.

He said the explosion mangled Solayman's body.

'I think it was an 81-mm mortar,' Norhamin said from his hospital bed here.

Peace advocates and groups working for the rehabilitation of areas torn by the war against the Moro Islamic Liberation Front (MILF) in February 2003 have been issuing appeals to both the military and the rebels to clear the villages of unexploded bombs.

They said unless these explosives were removed, the lives of the residents, who agreed to return to their villages, continue to be in danger." (The Inquirer 19 March 2004)

"A major war leaves many unpleasant residues, among them unexploded bombs, land mines, ordnance and booby traps in the communities, thus endangering returning civilians. Many villages in Pikit and Pagalungan were the battlegrounds in the February war and both MILF and AFP officers acknowledged the strong possibility of becoming victims of unexploded war materials in the communities.

Hadji Faisal, Intelligence Officer of the 105th Base Command of the Bangsamoro Islamic Armed Forces (BIAF), claimed that there are unexploded .105 mm., 81 mm. shells and bombs dropped from OV-10 Bronco air force planes in Kudal, Pagalungan; and in Barangays Bago Inged and Kabasalan, both in the Pikit and Pagalungan side. He said communities need to be cleared by bomb experts to defuse or deactivate any remaining bombs.

The Marine 7th IB commander assigned in Pagalungan also saw the need to conduct clearing operations to secure the civilian areas from these hazardous war implements.

The mission documented reports to show that the threat is real. Last June in Barangay Talitay, Pikit, a returnee named Tatuan Mamadra was injured when a 105 mm. howitzer shell exploded in his farm. Mamadra was burning dried grasses to clear his farm for replanting when the blaze apparently set off the shell hidden on the ground.

In Sitio Butilen, Kabasalan, Pikit, three civilians- Budsal Sambalang, Nards Maulana and an unidentified resident of Butilen - were injured when they accidentally stepped on booby traps (likely punji sticks) placed near a Marine camp.

Some of the Marines interviewed by mission members said they have in fact requested civilians to coordinate with them as there are still specific locations planted with land mines." (Bantay Ceasefire Investigative Mission, 1 August 2003)

Lack of livelihood opportunities seen as the main obstacle to sustained returns (October 2003)

- Many returnees in Pagalungan and Pagagawan face numerous problems in rebuilding their lives.

- The main problems identified by the displaced themselves are: lack of job and livelihood opportunities, lack of housing, lack of health and sanitation facilities and access to these, lack of education and lack of roads from their villages to markets.

"Although the IDPs [in Pagalungan and Pagagawan] were able to return to their sites of origin (SOOs), the returnees face formidable barriers to rebuilding their lives, and a number of immediate problems and needs have been identified for their return. These problems and needs are related to the following, among other concerns:

Sources of livelihood

Lack of jobs and working places (for women, men and children)

Housing facilities

Child labour (as a response to poverty, and the lack of educational facilities)

Health and sanitation

Potable water systems

High percentage of illnesses, especially in children, women, and the elderly

Inability to sustain medical treatment (due to expensive medications)

No access to health centers

No access to education, inability to pay for children's education

Inability to provide recreation to children

Problems created by lack of farm to market roads and transportation systems

Generally, the male respondents in the sites of origin (SOOs) regard the problem of livelihood and the lack of jobs as very essential. The women similarly consider the lack of livelihood as their main problem, aside from concerns related to their primary responsibilities within their homes, including rearing their children. As previously noted, education is seen as the first and foremost need.

The SOOs are highly dependent on farming and fishing as the main sources of livelihood. However, farm productivity is hampered by such problems as the lack of capital, farm roads, means of transportation, and the lack of technical knowledge about farm production. On the other hand, the lack of fishing gear (e.g., fishnets and bancas) and the use of illegal fishing practices by others, have been limiting their fishing activities. Child labour is also a problem in the community for the children have no choice but to help their parents earn a living." (CFSI October 2003, p. 14)

IDPs in North Cotabato face many obstacles to return (October 2003)

- Obstacles hampering the return of IDPs to their homes in North Cotabato include: IDPs focus their attention on daily survival, lack of shelter, destruction of resources, livestock, lack of road networks & distance between the ECs and their homes, and the continued presence of soldiers and rebels near their homes.
- In August 2002, some IDPs in North Cotabato were still living in evacuation centers where they took shelter two years before. The main obstacles for returning are the slow reconstruction of their houses and the length of the validation process to identify the beneficiaries of the assistance.
- Damaged homes and communal infrastructure hamper return of IDPs.

"A large number of IDP families [in Carmen, North Cotabato] have returned to seven sites of origin (SOO) while many other families are still waiting to return.

(...)

The focus group discussions conducted with IDPs from these sitios resulted in insights about difficulties in return decisions.

1. Concern with Livelihood (Daily Subsistence) Precludes Arranging Return. IDP families have to look for livelihood activities to earn income for the food and the other basic needs of the family. As they become busy looking for work, they get farther away from thinking of their return. One Sumpat (community volunteer) explained, (...) (The people are preoccupied with looking for work for their livelihood. Even the women and the children go to work to be able to buy food for the family. They provide hired labour in the nearby farms, so they have no time to arrange for their return to the SOOs.)

2. Lack of Shelter. Even though they have a strong desire to return, many IDP families hesitate to go back to their SOOs because they still have no house to return to, particularly in Hinauran, Danao, Puting Bato, and others. (...) For IDPs in the sitio of Spring, about 27 families already have houses built by the provincial government, but these are still without roofs. So, the families are appealing to the provincial government to complete the construction of their housing units so they can go back to their sitios immediately.

3. Destruction of Resources at Sites of Origin. During the evacuations, the IDP families had to flee from the sitios, leaving behind their house, clothing, food, farm, work animals, farm implements, and other assets. (...) After months of not being able to get back to the sitios, the IDPs lost their farm implements, farm animals, their homes, kitchen utensils, and other valuables. Families who managed to bring their farm animals and other valuables with them to the evacuation centers, eventually sold them at much lower prices to be able to buy basic needs such as food and medicine. The families may not be certain that the LAUR [Livelihood Assistance Upon Return] will counteract the effects of these losses.

4. Lack of Road Networks. Many of the IDP families come from remote uphill sitios, located from approximately two to six kilometres from the ECs. There are no roads, only foot trails in sitios such as Quarry, Bunawan, Puting Bato, Spring, Campo, and others. The absence of roads poses great difficulty for IDP mobility between the ECs and their sitios of origin. Consequently, these families do not have the direct ties to their sitios that other families have been able to develop owing to the "Go and See Visits" or the efforts of family members who members work in the sitios during the day and return to the ECs at night. The continuing uncertainties regarding conditions in their SOOs remain as barriers to their safe return.

5. Lack of Military Security. In the sitios of Spring, Puting Bato, and Quarry in particular, the IDP families are still wary, owing to the absence of military detachments, Citizen Armed Forces Geographical Unit (CAFGU), or Civilian Voluntary Organizations (CVO) in their areas. The families are fearful of possible eventualities that may still arise. Many are afraid to go back to the sitios until such time as these security elements are in place. (...) In remote sitios, particularly those without a network of roads, houses are far from one another; hence, for some of the IDPs, the absence of military detachments means no sense of security and protection.

6. Danger Zones. The IDP families consider as danger zones the sitios near the camp sites of the Moro Fronts. There used to be camp sites of the Moro Fronts in Carmen, particularly in Barangays Manili, Tumaginting, and Kibenens. Many IDP families are afraid to live in sitios near these barangays because of possible AFP operations against the Moro Fronts." (CFSI October 2003, pp. 29-30)

"While most of North Cotabato's war refugees have returned to new homes built in their rehabilitated villages, there are families in the province who have not been as fortunate. They remain where they have been for the past two years--the evacuation camp.

These evacuees say the slow process of construction of their new houses has prevented them from returning to their home village. They add that their lives have become more difficult due to their long stay in the evacuation camps.

In Liliongan village here, 50 of 114 refugee families from three different sitios returned to sitio Spring after a 2-year stay in the refugee camp--27 families on May 18 and 23 in late June. The 50 houses were built under the rehabilitation program of the province's Department of Social Welfare and Development (DSWD).

However, 64 families remain, waiting for bureaucratic wheels to turn, so that their homes can be rebuilt. [...]

North Cotabato provincial DSWD chief Zaida Rinsulat told *CyberDyaryo* that one of the causes of the delay is the validation process, saying that it took them three months to validate the actual number of evacuees in the three sitios.

Rinsulat said that because the refugees in the market site lived in different villages, 'it was difficult for us to identify the beneficiaries of the assistance.'

Besides there were irregularities during the earlier stage of validation because the village chief submitted a list of fake refugees, composed not of displaced villagers but local residents of Liliongan proper.

Rinsulat said her office had to revalidate the displaced villagers and request the DSWD regional office to nullify the previous list of evacuees after the bona fide evacuees called her attention to the fake list.

Rinsulat also cited the delay in the bidding process as another cause of the delay in the construction of houses. 'Our process here in the rehabilitation is too bureaucratic, and that caused the delay.'

At times, the scheduled bidding had to be canceled because the governor was out of town.

Another cause of delay was the Commission on Audit's insistence that only one contractor be tapped for the rehabilitation in Carmen.

Rinsulat explained that some displaced villagers in Liliongan were not prioritized because their homes were not burned or destroyed by the bombings but by climatic changes and lack of maintenance.

'We prioritized those houses that were burned during the war,' she said, adding, "besides, the budget from our head office also arrived late, sometime in October 2001." (Cyberdyaryo 5 August 2002)

HUMANITARIAN ACCESS

General

Personal safety of humanitarian workers at risk (March 2004)

- NGOs say that delivering aid to the displaced has at times been difficult and dangerous for aid workers.
- This was the case in Basilan where the aid workers were accused by MNLF commanders of giving the food and non-food items only to Christians.
- There is often a risk of being mistaken by any of the opposing forces.
- MERN NGOs engaged in humanitarian are now required to pass the standardized training on personal security, health and safety.

"One of the pressing concerns of MERN member organizations is to ensure IDPs' access to food, water and non-food commodities. But this is easier said than done. Fairudz (Rose) Ebus, Project Coordinator of Mindanao Tulong Bakwet, said 'At times, our personal safety and security were at stake even though it was made clear that our efforts are purely humanitarian'.

'In Basilan, for instance, we were threatened that we can never leave the place alive if we do not give our load of food and non-food items to the alleged local MNLF militia leader who blamed us of giving only to Christians', she narrated. 'I told them I am a Muslim and our program calls that we give to Muslims and Christians alike. That in this war, there are no Muslims nor Christians but only people in need', she recounted. The statement made the local militia leader release her and her staff.

Besides threats to life, rural development workers of NGOs under MERN have to reckon with sudden and unfortunate events that surface beyond their control. The tragic and untimely death of Theresa B. Marquez, the finance officer of SC/DPR Mindanao, who drowned in Bulioc River, Maguindanao while providing humanitarian service underscores this reality. Two other SC staff narrowly escaped death's ugly head in that freak incident.

It is not also easy to penetrate many areas where evacuees are without danger of losing life and limb. In Datu Piang, Maguindanao, for instance, Raymundo Tabudlong, Core Facilitator of Kids for Peace, a MERN member said 'much as we would like to go and bring humanitarian goods, it is difficult for NGOs to penetrate because anyone can be caught in a crossfire and that there is always the possibility of being mistaken by any of the opposing forces'.

As such, SC advocates for a "Safety First" approach for its workers and NGO partners. (SC Safety First Handbook) SC aims to help NGOs working in areas of armed conflict to protect their staff more effectively, by following the:

- 1) Basic principles, such as the concept of 'risk management' and the importance of non-partisanship.
- 2) Safety conscious' management practices.
- 3) Practical security measures relating to:
 - staying healthy
 - radio and satellite communication

- using vehicles and aircraft
- dealing with munitions and the military
- the threat of landmines
- self-defense against armed attack

For MERN, it has considered strategies that Integrate workers' security and welfare in humanitarian work to ensure their security and safety. Each personnel of member of a MERN NGO engaged in humanitarian is required to pass the standardized training on personal security, health and safety.

NGO workers' hardships sometimes also go to naught. Tabudlong said there were instances when supplies went to the wrong hands. 'In some cases, food supplies have not gone to the evacuees for their needs but to people who were not the intended beneficiaries. Some non-food commodities intended for war victims have been seen being sold in local markets', he said." (PRWeb 9 March 2004)

NATIONAL AND INTERNATIONAL RESPONSES

National response

National response

The Philippine government has most of the time acknowledge its responsibility vis-à-vis IDPs and has assisted them through the various stages of displacement. It has done so mainly through the National Disaster Coordinating Council, which coordinates the actions of the Department of Social Welfare and Development, the Office of Civil Defence, the [National Red Cross](#) and local governments. At the provincial level, relief efforts are being coordinated by the provincial office of the Dept of Social Welfare and Development (DSWD), and at the local level by the Municipal Social Welfare and Development Office (MSWDO). The Local Government Units (LGUs) generally facilitate and coordinate the response to IDPs and formulate Disaster Management Plans with the active participation of the Municipal Disaster Coordinating Council (MDCC), composed of the different agencies and NGOs responding to the needs of the displaced.

As was noted by the UN Secretary-General's Special Representative on Internal Displacement, there were often gaps between the positive intentions and statements made by the government on behalf of the evacuees and their practical implementation on the ground (CHR, 3 February 2003, p.12).

These shortcomings reportedly resulted from a lack of capacity of national and local institutions to effectively deal with the scale of displacement and from a lack of funding, making local authorities, especially in the poorest areas of Mindanao, dependent on external aid to assist the displaced. The LGUs often have very limited means to deal with the scale of the displacements and have to rely on the assistance provided by local and international NGOs. It has been noted that in many cases the assistance provided was short-term, temporary and inadequate to meet the needs of the displaced (Notre Dame University & Commission on Population Region XII, January 2004, p. 48; CFSI, October 2003, pp.16-19). A lack of coordination and information sharing between key aid organisations such as NEDA, PNOC-EC, DENR, AFP and the LGUs was also reported. Poor coordination was reported between the central government and the regional autonomous government, LGUs and the regional line agencies (Janet M. Arnado & Mary Ann M. Arnado, 15 November 2004, pp. 10-11). According to ACH, there is a clear need for improved disaster preparedness to deal with the consequences of armed conflict. (ACH, June 2004, p. 61).

Other limitations of the assistance efforts include the cyclical nature of war and displacement in Mindanao, which tend to render rehabilitation efforts unsuccessful, as well as the limited coverage of assistance programmes, with for instance many evacuees did not benefit from the government's core shelter assistance although their houses were destroyed by the fighting (Janet M. Arnado & Mary Ann M. Arnado, 15 November 2004, p. 75). There have also been reports of corruption and misuse of funds intended for the reconstruction of housing for the displaced (Sun Star 5 February 2004).

A important gap in post-conflict assistance has been reported as an important feature of the assistance to the displaced. According to Save the Children, "although there is a slow and gradual change in the policy of aid agencies, the main bulk of their resources and support schemes are still oriented toward relief assistance." (Save the Children, 2004, p. 104)

The Joint Needs Assessment (2004-2005)

During 2004, a Joint Needs Assessment (JNA), involving all key stakeholders including the MILF, was conducted in conflict-affected areas in Mindanao. The aim was to assess the assistance and rehabilitation needs of the affected communities and to identify the priorities within a comprehensive reconstruction and development strategy for Mindanao (MEDCo, 3 November 2004). The JNA, which was due to be finalised by the end of September 2005, is seen as an important tool to promote peace and development in Mindanao and to ensure a successful peace agreement between the government and the MILF.

More information on the JNA is available on [this website](#).

The GOP-UNDP Programme on Rehabilitating IDPs and Communities in Southern Philippines (2004-2005)

The government and the United Nations, through the EC-UNDP Trust Fund, have in October 2004 started implementing an 18-month resettlement and rehabilitation programme to benefit some 15 provinces among the most affected the 2003 fighting and population displacements. More details on this programme under [International response](#).

Programme components

- 1) *Relief assistance and building confidence*
- 2) *Rehabilitation*
- 3) *Culture of peace and access to justice*

Management and responsibilities

The Mindanao Economic Development Council (MEDCo) is the overall implementing agency. Click [here](#) to see the coordination/management structure. (UNDP 21 September 2004)

As of 30 June 2005, 32 out of 35 selected areas had already benefited from some sort of rehabilitation assistance and 20,500 IDP families or 120,000 people, most of them displaced during 2005, had received relief assistance (Government of the Philippines, 21 July 2005).

The Mindanao National Initiatives (Mindanao Natin) Program provides housing to the displaced (2003-)

Launched by in April 2003, the Mindanao National Initiatives Program seeks to address the continuing peace and order problem in Mindanao, by providing assistance on the rehabilitation of Muslim Mindanao, in particular to the to the conflict-affected areas. The Office of the Presidential Adviser for Peace Process (OPAPP) serves as the oversight agency and provides overall policy guidance/strategic directions for the implementation of the Program, while the MEDCo Secretariat serves as the secretariat for the Program.

Among the achievements of this program, by May 2004, are the provision of 2,315 units of core shelters in North Cotabato, Maguindanao, Bukidnon, Zamboanga del Norte, Lanao del Norte, Sultan Kudarat, and Basilan (MEDCo, August 2004).

In May 2004, the government announced that at least 35 million pesos had been allocated for the construction of 4,715 core shelters to benefit people displaced by armed conflicts in the ARMM region. The director of DSWD ARMM has requested three times more, or 119 million pesos from the government to fund the total number of core shelter needed in 2004 (Mindanews, 4 May 2004).

As of March 31, 2004, the DSWD reported that some 2,564 houses, all in Maguindanao province, were still not funded. (DSWD 31 March 2004)

Both parties committed to the return and rehabilitation of IDPs, but stalled peace process prevents implementation of guidelines

The set of guidelines for the cessation of hostilities agreed upon by the government and the MILF in August 2001 provides for the safe return of IDPs to villages of origin. In May 2002 the government and the MILF further consolidated the agreement by signing the "Implementing Guidelines on the Rehabilitation aspect of the Tripoli Agreement on Peace of 2001" (GRP-MILF 7 May 2002). In addition to the safe return of IDPs, the agreement provides for financial and technical assistance to the displaced to rebuild their houses and livelihoods and reparations awarded by the government for the properties lost and/or destroyed by the conflict. The May 2002 agreement also established the Bangsamoro Development Agency (BDA) as the MILF's project implementing body tasked to "determine, lead and manage rehabilitation and development projects in the areas affected by the conflict." (Mindanews 30 March 2003)

Since 2001 ceasefires have been repeatedly violated and fighting and displacements have prevented the full implementation of the guidelines.

Non-governmental relief and assistance efforts fill the gap

Complementing the efforts of the government, many civil society bodies, including local NGOs and church organisations, participate in the relief and rehabilitation efforts, often filling the assistance gap. A coalition of NGOs in partnership with the UN, donors and INGOs established in 2003 the [Mindanao Emergency Response Network](#) (MERN). This network, composed of 36 organisations, most of them local NGOs, intends to help consolidate the response to emergencies by providing emergency management training to its members and by delivering assistance to the displaced (PRWeb, 9 March 2004).

In 1998, [Tabang Mindanaw I](#) -a multi-sectoral initiative of business, private foundations, church and the media in partnership with the government- was formed to respond to the food crisis in Mindanao caused by the El Niño that affected more than 900,000 families, including the indigenous peoples (IP) of Mindanao, also referred to as the Lumads. In May 2000, the all-out war and its effect in Mindanao led Tabang Mindanaw to launch Tabang Evacuees or [Tabang Mindanaw II](#) as an emergency response to the urgent needs of the close to 1 million Filipinos displaced mainly in Central Mindanao. In 2002, [Tabang Mindanaw III](#)'s Peace and Development Program was launched to meet the long term peace and development needs of three of the poorest provinces in the Philippines: Basilan, Sulu and Tawi-Tawi in the ARMM.

Other initiatives from civil society include the Bantay Ceasefire, a network of grassroots organisations that has since January 2003 conducted investigative missions of armed incidents and has established early warning networks in the field capable of preventing small incidents from turning into larger confrontations. (Mindanews, 19 August 2005).

The NGO Community and Family Services International (CFSI), has taken the initiative to organize "Go and See Visits" to help IDPs make an informed decision on their return. Most IDPs are concerned about security and unsure of the existing situation in their place of origin. According to the World Bank, who has sponsored CFSI, "the "Go and See Visit" activity has proven to be quite helpful in helping IDPs' decide whether to return their place of origin." (WB, January 2005, pp. 10-11)

An assessment of the perceived impact of IDP assistance

Broadly speaking, the displaced have received two types of assistance. Direct material services providing for their basic needs, such as food, shelter, and other relief goods; and capacity-building assistance through training and education, including psychosocial assistance. Table 6 shows the services extended to the IDPs and the corresponding organizations implementing such services.

Table 6. Services extended to the IDPs by organization

Legend: **TM** (Tabang Mindanaw), **SC** (Save the Children), **CFSI** (Community and Family Services International), **WV** (World Vision), **CRS** (Catholic Relief Services), **VSO** (), **Balay** (Balay Rehabilitation Center), **BK** (**Balik-Kalipay**), **Oxfam**, **CRDC** (Community Resource Development Center), **ICP** (Immaculate Conception Parish), **MPC** (Mindanao People's Caucus), **PDAP** (Philippine Development Assistance Programme).

Most (9) of the 13 projects listed in the above table, are geared towards peace building, which include peace education and workshops, declaration of peace zones, and peace advocacy and dialogue. The provision of basic services and capability building projects is conducted by 8 organisations. 5 organizations are engaged in infrastructure projects, 4 in community organizing, and 3 in psychosocial care.

For a list and description of the existing IDP assistance and rehabilitation projects, see Appendix E. IDP Rehabilitation Projects of Various Institutions (pp. 88-99) , in "Casualties of Globalization", Janet M. Arnado & Mary Ann M. Arnado, 15 November 2004 [[link](#)]

The following section describes the results of a survey attempting to assess the impact of the assistance on the lives of the displaced by looking at the implementers' and the beneficiaries' perspective.

"We now present the impacts of these projects on the lives of the displaced, from the implementers' and beneficiaries' perspectives. Program coordinators interviewed provide the following impacts of their rehabilitation programs on the beneficiaries:

1. "IDPs acquired their own houses after the destruction of the war."
2. They are "happy that they can return to their places of origin."
3. They have acquired skills in livelihood .
4. Women's status has improved as they become more productive in contributing to family income.
5. IDPs gain a positive attitude towards the government.
6. They are relieved from poverty.
7. They gain a feeling of security.
8. Most of all, they are able to have a "functional and normal life."

One hundred percent functionality and normalcy may not have been truly achieved, but as Dinky Soliman, expressed, the government tried to return normalcy by 75% (Inq7.net June 23,2003). On the part of NGOs, program coordinators noted the following impact of their rehabilitation programs on their beneficiaries:

1. Psychosocial activities facilitated the unloading of emotional baggage and contributed towards the healing process. Parents who underwent psychosocial training become more understanding with their children.
2. Teachers acquired new approach and learned creative ways during the classes.
3. The communities have now a resource of peace advocates.
4. Strengthened relations among the contiguous barangays as Spaces for Peace
5. Sustained livelihood activities and economic enhancement
6. Capacity of the community to assert their rights.
7. Addressed the peace and order situation.

8. Assurance of security.

The IDPs in our focus groups were asked about the services that they have received from various agencies. Most of them are grateful for the assistance that they have received from the government, non-government organizations, and donors from both within the country and abroad. However, they cannot help but focus their attention on the limitations of the evacuation camps. While they are aware of the services listed above, not all of them benefited from most services. The distribution of relief goods is sporadic. In the end, they often go hungry. In the same way, many of them were not able to avail of the housing program/ core shelters provided by the government and other agencies. As men from GSKP indicate, there were not enough core shelters for everyone.

On the side of the government, the following are seen to be the limitations of its projects:

1. Lack of resources such as funds and staff
2. Difficulty to reach beneficiaries' communities due to long distance and impassable roads
3. Difficulty in convincing the people to go back to their place.

On the side of the NGOs, the following are seen to be the limitations of their projects:

1. Program coordinators see the limitations of the scope of their projects, as indicated in the following evaluations: a) Program is more on the technical assistance, purely capability building, and no program intended for livelihood; b) program focuses only on peace building; c) livelihood projects are only for women's group; d) activities related to zones of peace are more on training and making of the module; e) program is adult-based, lack of intervention for youth and children; f) agricultural development is more on infrastructure and there is no provision of input; and g) focus on peace building, and no component on material assistance.
2. Cyclical experience of war makes rehabilitation efforts unsuccessful.
3. Limited resource to regularly assess the IDPS.
4. Accessibility to the area.
5. Limited time frame: there is a ceiling on the length of assistance.

In addition to the above limitations, we have also observed that the services only reached somewhere between 40-60% of the target population. For example, Save the Children's relief assistance in three municipalities of North Cotabato and Maguindanao benefited some 40,000 families out of 110,000 families who needed assistance (see Appendix E). Likewise the government's core shelter assistance through PSWDO and DSWD-ARMM gave out a total of 1,065 core shelters, but failed to address the shelter needs of 664 families. Alongside the issue of the government's inadequate services is the issue of corruption. People from the ground report that the core shelters being built for them were not at par with the allocated budget. In addition, newspapers report of unaccounted funds. Corruption of relief and rehabilitation funds is not a distinct phenomenon, as corruption issues emerge in almost any government institution." (Janet M. Arnado & Mary Ann Arnado, 15 November 2004, pp. 73-75)

International response

International response

Coordinated humanitarian assistance to IDPs in central Mindanao has largely been induced by the 2000 "all-out" war. Before that few international agencies were engaged in humanitarian efforts in that region and as stated by Save the Children: "the humanitarian crisis in the region was principally an affair between the victims and the protagonists of the conflict." (Save the Children, 2004, pp. 86)

The main contribution of the international community to the plight of the displaced in Mindanao in the last years has been through a government-UN Multi-Donor Programme. Other international actors involved in the assistance and rehabilitation of the displaced in Mindanao include Japan, the United States and a number of international aid organisations including among others ICRC, Oxfam-GB, Catholic Relief Services (CRS), Save the Children, VSO-UK, Accion contra el Hambre (ACF Spain), World Vision and Movimondo-Italy.

Now in its third phase, the government-UN Multi-Donor Programme has since 1997 been assisting the conflict-affected region of Mindanao by providing emergency relief assistance to the displaced and assistance to communities to foster rehabilitation. They have also provided the authorities at the national and local level with assistance to deal with humanitarian emergencies. Other international actors involved in the assistance and rehabilitation of the displaced in Mindanao include Japan, the United States and a number of NGOs.

The GOP-UN/Multi-Donor Programme

In the wake of the 1996 GRP-MLNF Peace Agreement, the international community started implementing the GOP-UN/Multi-Donor Programme (MDP). The Programme is an undertaking of the Philippine government, the United Nations and the governments of Australia, New Zealand, the Netherlands and Spain.

The main objective of the MDP was to assist with the realisation of the peace agreement between the government and the Moro National Liberation Front (MNLF) on the southern island of Mindanao, mainly through development-oriented programmes, the rehabilitation of over 70,000 MNLF combatants and their families and peace-building activities.

Throughout its successive phases, the MDP has included a Relief and Rehabilitation component to address the immediate needs of the civilian population affected by the conflict between the government and the Moro Islamic Liberation Front (MILF) and in particular of the hundreds of thousands of people regularly forced to leave their homes to seek refuge in evacuation centers. This IDP component has assisted the displaced either through the provision of emergency relief and rehabilitation packages as well as basic services in the evacuation centers, or through capacity-building activities aimed at strengthening the management and coordination capacity of the main national and local actors responding to the needs of the displaced.

Rehabilitating Internally Displaced Persons and Communities in Southern Philippines (2004-2005)

In an effort to complement its development and peace-building activities now in its third phase, the MDP has in October 2004 started a programme entitled "Rehabilitating Internally Displaced Persons and Communities in Southern Philippines" aimed at addressing the needs of an estimated 10,000 IDP families (or 60,000 displaced individuals) unable or unwilling to return to their homes and in need of relief, rehabilitation and resettlement assistance.

The IDP programme has the following objectives:

- 1) To support the government in providing for the needs of 10,000 IDP families in identified areas;
- 2) To facilitate the return of 10,000 IDP families to their places of origin or rehabilitation sites;
- 3) To improve the socio-economic conditions of the 10,000 IDP families and their communities through the provision of core shelter with sanitary toilets, potable water and sanitation facilities, health and nutrition,

small scale/quick impact productivity (enterprise and agriculture production). Programmes and peace literacy and psycho-social programs;

4) To strengthen the capacities of support institutions and mechanisms of 30 IDP communities towards a better environment for peace and development and sustainability;

5) To facilitate access of the IDPs to a responsive justice system; and

6) To facilitate the declaration of at least 22 or 75% of the 30 selected conflict-affected communities as "peace sanctuaries".

The Programme has three components:

- 1) Relief assistance and building confidence
- 2) Rehabilitation
- 3) Culture of peace and access to justice

For more details on these components and on the [management structure](#) of the programme, see the [National response](#) section.

The \$3.7 million programme of a duration of 18 months is being implemented in some 15 provinces, the vast majority of which are in Mindanao. These include Maguindanao, Lanao del Sur, Sulu and Tawi-Tawi in the Autonomous Region of Muslim Mindanao (ARMM); Zamboanga del Norte, Zamboanga del Sur, and Zamboanga Sibugay in Region IX; Lanao del Norte in Region X; Davao del Sur in Region XI; North Cotabato, South Cotabato, Sarangani and Sultan Kudarat in Region XII and Palawan in Region IV. As of 30 June 2005, 32 out of 35 selected areas had already benefited from some sort of rehabilitation assistance and 20,500 IDP families or 120,000 people, most of them displaced during 2005, had received relief assistance (Government of the Philippines, 21 July 2005).

A baseline study conducted towards the end of 2004 and expected to be ready in September 2005, is hoped to provide more information on the location, profile and socio-economic needs of the displaced and affected communities. An IDP Database is expected to support the programme management and delivery of assistance and fulfil the information requirements of the main stakeholders. Support for this programme will be drawn from the Multi-Donor Trust Fund for Mindanao (MDTF) also known as the Peace Fund, spearheaded by the [World Bank](#) and to which the [European Commission \(EC\)](#) and the [United Nations](#) are the main contributors.

Although the programme is focused on medium-term rehabilitation assistance, it has also been able to respond to immediate emergency needs. For more information on the relief efforts extended to families displaced during 2005 in Mindanao see:

-[Donor-funded government program extends relief aid to 5,000 evacuees in Maguindanao](#), MEDCo, 20 January 2005

-[IDP Programme extends quick relief to evectuees in Maguindanao](#), MEDCo, 26 July 2005

- [EC-funded program extends aid to evacuees, provided farm equipment, health centers to conflict-affected communities](#), MEDCo, 1 August 2005

Main donors involved in the assistance to IDPs

Japan, the United States, the European Commission and Australia are key donors for Mindanao. Japan and the United States do not contribute to the Peace Fund, as they have their own on-going programmes.

The United States, while offering financial and logistic support to the government's "war on terror", has on the other hand committed itself to help rehabilitate the conflict-affected areas of Mindanao. In 2003, the US government pledged \$356 million in security-related assistance to the Philippines, most of it in support of the "war on terror" and to conduct joint military exercises in the south of Mindanao where the Abu Sayyaf remains active. Out of this amount, \$20 million will be spent to promote the peace process with the MILF, another \$20 million on programmes for former MNLF rebels, and \$30 million in economic assistance for Mindanao (The Inquirer 27 May 2003). In September 2005, it was reported that the United States was waiting for a final MILF-GOP peace agreement before releasing an aid package worth USD 30 million (Mindanews, 18 September 2005).

Japan co-chairs, together with UNDP, the Mindanao Donor's Group Meeting where donors exchange views and information on their development efforts in Mindanao. Donors are concerned with the following issues (1) smooth implementation of already-pledged assistance has to be the top priority; (2) the absorptive capacity of the Government of the Philippines and the peace and order situation in Mindanao hinder effective assistance.

Japan has revised its ODA in late 2003 to set peace-building efforts with a view to preventing conflicts as a priority. Japan has committed 400 million dollars of development assistance to improve living conditions in Mindanao over the next five years. (AFP 26 February 2004). In May 2005, Japan announced that it had already completed around 40 per cent of its support package (USD 160 million out of USD 400 million) and had approved an additional USD 38 million (Government of the Philippines, 31 May 2005).

The European Commission (EC) has provided aid (€6.7 million) for displaced civilians in Mindanao since 2001, through an "Uprooted people" budget line. In addition, more than €2.2 million worth of assistance has been provided by the Humanitarian Aid Office (ECHO) and channelled through an NGO to support people displaced by armed conflict since 2000.

In July 2004, the EC provided a grant from a minimum of € 500,000 to a maximum of € 1.2 million to non-profit making non-government organisations to help returning IDPs and those who have been displaced for a long period meet their immediate social and economic needs (EC 22 July 2004).

Australia has been the largest donor to the first and second phases of the GOP-UN/Multi-Donor Programme (Government of the Philippines, 25 May 2005). In early February 2005, Australia announced that it would collaborate with the UN and commit new funds to a five-year Action for Conflict Transformation for Peace Programme (ACT for Peace). The programme will contribute to the consolidation of peace and development in Mindanao through continued assistance to Peace and Development Communities (PDCs). (UNDP, 4 February 2005; UNDP, 31 May 2005)

Visit of the Secretary-General's Representative on Internal Displacement to the Philippines

The Representative of the United Nations Secretary-General on Internally Displaced Persons, Dr. Francis M. Deng undertook a mission to the Philippines between 6 and 13 November 2002. Mr. Deng sought to explore ways of enhancing national and international responses to the plight of the internally displaced.

See his [report](#).

International NGOs involved in the relief and assistance to IDPs

The following organisations are or have recently been involved in assistance to the displaced.

Catholic Relief Services (CRS), USAID, Oxfam GB, ICRC, Save the Children-US, VSO-UK, Accion contra el Hambre (ACF Spain), Movimondo-Italy, World Vision,

In November 2004, the Global IDP Project of the Norwegian Refugee Council conducted a three-day training on the UN Guiding Principles on Internal Displacement for the Human Rights Commission in Mindanao. The general objective of the workshop was to enhance the capacity of the CHRP key personnel in promoting and protecting the rights of IDPs, especially women and children, thereby strengthening the agency's role as a national human rights institution in advocating for IDPs' concerns.

Limitations of the national/international response

Interviews conducted by CFSI in 2003 with the displaced on the assistance provided to them revealed the following problems or shortcomings:

Assistance provided by many organisations has often not been sustained after the initial period. Local NGOs working closely with the affected population for a long period, like CFSI or governmental agencies like DSWD were preferred to outsiders who came and went.

Assistance or funds provided were often insufficient to meet the needs and sometimes distributed unevenly. The displaced cite the example of an OXFAM school which could not be maintained properly once the funds dried up.

The unequal distribution of assistance often left frustrations, cynicism, and often anger in its wake. It had a divisive potential, as some groups perceive that others are benefiting at their expense.

Sometimes assistance promised was never delivered.

For more details, see the full report [here](#). (CFSI October 2003, pp. 69-70)

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles on Internal Displacement as of February 2005

- Reference to the Guiding Principles in the national legislation
- Other References to the Guiding Principles (in chronological order)
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles (in chronological order)

Reference to the Guiding Principles in the national legislation

Assessment of the use of the CPID in the Philippines by the UN Secretary General's Special Representative on Internal Displacement

"The Representative was impressed by the commitment of the authorities to make use of the Guiding Principles in the formulation of policies and legislation addressing the problem of internal displacement. He was also pleased to learn, during his meeting with the Speaker of the House of Representatives, that a
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number of resolutions had been submitted calling for the observance of international humanitarian law. In addition, he learned that several training courses on the Guiding Principles had been carried out, including for the Armed Forces of the Philippines (AFP), and that organizations working in the affected areas were also promoting their application by insurgent groups. Various organs of the Government, such as the Department of Foreign Affairs, the DSWD, the Senate and the House of Representatives, all expressed interest in convening a national meeting on internal displacement and the Guiding Principles. In discussions with the authorities, the need to address the issues of displacement and migration through cooperation among the countries of the region was also stressed. In this connection, the Representative expressed his support for the initiative of the Government to consider the possibility of convening a regional seminar on good practices in addressing internal displacement." (CHR 3 February 2003, p. 16)

Sources: UN Commission on Human Rights

Date: 3 February 2003

Documents:

Report of the Representative of the Secretary-General on internally displaced persons, Mr. Francis M. Deng, submitted pursuant to Commission on Human Rights resolution 2002/56, Profiles in displacement: Philippines, United Nations Commission on Human Rights (CHR), 3 February 2003

Efforts by NGOS to move forward the incorporation of the UNGPID in the national legislation:

There have been several efforts by the civil society, mainly NGOs, to push for the adoption of a resolution regarding the adoption of the Guiding Principles on Internal Displacement by the Philippine Congress as a first step for the government to adopt them full and incorporate them in the national legislation.

In November 2004, a bill titled "AN ACT IMPROVING PHILIPPINE COMMITMENT TO HUMAN RIGHTS PROMOTION AND PROTECTION BY PROVIDING THE NECESSARY MECHANISMS FOR THE PREVENTION OF THE OCCURRENCE AND PROTECTION FROM THE ADVERSE EFFECTS OF INTERNAL DISPLACEMENT AND FOR OTHER PURPOSES" or "IDP Protection Act" in short was filed by Congresswoman Rosales Etta in the House of Representatives. As of February 2005, the bill is still pending with the Committee on Human Rights.

On December 2, 2004 the NGO Balay launched the translated manual and handbook on the guiding principles, whose printing was made possible by the support from the Brookings Institution.

In February 2002, House Resolution No. 449 entitled "Resolution urging the Philippine Government to adopt in full the United Nations Guiding Principles on Internal Displacement as a concrete step in the promotion and protection of human rights in the country." was filled by Congressman Roseller Barinaga

A resolution with the same content and title was approved by the house of representatives on December 4, 2000. The original resolution was filed through Congressman Barinaga, Congresswoman Etta Rosales and Congressman Dilangalen.

Source: ECDFC

Date: 8 March 2002

Documents:

E-mail to NRC by ECDFC Official, 8 March 2002

Other References to the Guiding Principles (in chronological order)

<u>Dissemination of the Guiding Principles</u>
<u>Radio programme and video on the rights of the displaced</u>
"Evacuees and peace advocates are setting up a radio program that will educate the evacuees themselves as well as the military, rebel groups, local officials and the public on the rights of persons displaced by armed conflict, disseminate information about the peace process and provide updates on situations in areas affected by armed conflict. The radio program, initiated by evacuees and peace advocates affiliated with the Mindanao People's Caucus, will go on air at 8 p.m. every Sunday over a Cotabato City-based radio station starting May 15. Mary Ann Arnado, MPC secretary-general, said the program would popularize international instruments such as the United Nations Guiding Principles on Internal Displacements (UNGPID) and International Humanitarian Law (IHL) because many evacuees and even members of the warring armed groups have never heard of these laws. She said they are negotiating for an hour-long slot in a commercial radio station in Cotabato City whose broadcast could reach remote areas in the provinces of North Cotabato, Maguindanao, Lanao del Sur and Sultan Kudarat. (...) The radio program is a component of the MPC's information center which links reports coming from the grassroots to civil society groups, the military, local government executives, peace panels of both the government and rebels groups, the leadership of rebel groups and the government and even to Malacañang. (...) She said the radio program is also giving information on the peace process because many evacuees, the military and rebel groups know little about it. (...) The broadcasters would be chosen from among the Moro, Lumads and Christian evacuees and peace advocates who are members of the MPC and they would be trained on the techniques and ethics of broadcasting, she added. She said the program would also feature speakers from the grassroots as well as those from national and international institutions involved in promoting UNGPID and IHL like the International Committee of the Red Cross".
<u>Source:</u> Mindanews
<u>Date:</u> 6 April 2004
<u>Document:</u> "Radio program on plight of evacuees to start in May" [External link]

Dissemination of the Guiding Principles
"A video documentary on the rights of evacuees and the social, psychological and economic costs of the armed conflict in Mindanao was launched yesterday at the Asian Institute of Management. Entitled Sana Wala Nang Gyera, Sana Wala Nang Bakwit (Evacuees Have Rights Too)", the video was produced by the Mindanao News and Information Cooperative Centre (MNICC) with funding assistance from the Australian Government's Human Rights – Small Grants Scheme (HR-SGS). (...) The video documentary aims to make the community, the military, local government units, and residents of conflict-affected areas in Central Mindanao aware of the rights of evacuees and non-combatants in accordance with the United Nations Guiding Principles on Internal Displacement (UNGPID). The video, which vividly shows the sad plight of evacuees in Pikit, North Cotabao, enumerates the rights of internally displaced persons as defined by the UNGPID. (...) The video documentary's producer, the MNICC, is an organisation of Mindanao-based journalists whose objective is to provide accurate, timely and comprehensive news and information on Mindanao and its people." (Australian Embassy 21 January 2004) Source: Australian Embassy Date: 21 January 2004 Document: "Video on rights of evacuees in Mindanao launched"

Dissemination of the Guiding Principles
"On November 21, we shall be launching the Cebuano and Filipino translations of the Handbook on Applying the Guiding Principles in Davao city. The UN Information Office in Manila is our partner for this activity. We shall replicate this in Midsayap in Central Mindanao and in Zamboanga City. Balay has initiated a signature campaign to call the Arroyo government to adopt the UNGPID. We have also obtained the resolutions of at least five conflict-affected villages in North Cotabato whose official have endorsed the UNGPID. These villages are part of the space for peace rehabilitation project where Balay is one of the partner-NGO. Our contribution is in raising awareness on IDPs rights, psychosocial healing of traumatized persons and families, livelihood and education support for survivors, youth development, disaster management training and peace advocacy. Another resolution was also passed by the Provincial Government of Cotabato supporting a bill in Congress for the passage of a law indemnifying victims of forced displacement. Religious leaders, such as priests and bishops, community folks, educators, members of various NGOs, peoples organizations (Lumads, Muslims and Christians) have supported our signature campaign. I have talked to Vice President Guingona and gave him a copy of UNGPID and a briefing paper on

internal displacement. He said that he will look into the documents and study if the government could move for its adoption. A good news is that the government and the Moro Islamic Liberation Front (MILF) has referred to human rights and international humanitarian law as their framework for relief and rehabilitation of conflict-affected areas.

Balay has also initiated two regional consultation-workshops in Central Mindanao and Southern Mindanao in an attempt to come up with a proposed legislation and other advocacy actions for human rights protection of displaced families and communities. We are also behind filing of a resolution in the National Anti Poverty Commission for the government to adopt UNGPID." (Balay 30 October 2002)

"The UN Guiding Principles on Internal Displacement (UNGPID) is gaining attention and acceptance in strife-torn areas in Mindanao. Our institution, Balay, has produced a primer (Tagalog and English versions) on the phenomenon of displacement and the rights of those affected. They have been distributed in evacuation centers; some copies were sent to government authorities and NGOs. We also held workshops on IDPs rights among the evacuees, and developed a trainor's pool to reach out to more IDPs. Just recently, we were asked by the UNDP in Mindanao to provide the inputs on IDP's rights in the formulation of disaster management plans of local government units. A position paper of civil society organizations addressed to the peace panel of the government and the Moro Islamic Liberation Front (MILF) was based on the UNGPID." (Balay 12 November 2001)

Source: Balay

Date: 30 October 2002/12 November 2001

Documents:

E-mails sent by Balay Official to NRC

Other relevant documents:

Balay Module on Basic Human Rights Orientation Course and the Rights of Internally Displaced Persons (IDP), Balay, 13 March 2001

Practical Guide in Promoting the Rights of Internally Displaced Persons (IDPs), Balay, March 2001

Use of the Guiding Principles to advocate of behalf of IDPs

"The MTC [Mindanao Tri-People Caucus] according to Miclat has based their positions on the United Nations Guiding Principles on Internal Displacement (UNGPID) adopted in 1998 by the 54th Session of the United Nations and on recent consultations with the evacuees and the relief and rehabilitation groups.

"They (referring to the MILF Central Committee members) were very open to our concerns. They committed to open lines with the MTC as they welcome our thrust towards the grassroots' active participation in the ongoing peace talks. They were open to establish hot lines between them and us," Miclat said.

The MTC also asked the government and MILF panels to recognize and respect peace-building initiatives that have resulted to 'spaces for peace,' 'peace sanctuaries' and other similarly demilitarized areas. It further called for Local Monitoring Teams (LMTs) to monitor compliance of the ceasefire agreement and the government's commitment to develop conflict-affected communities. Judy Q. Merquita" (Mindanao Daily Mirror 15 September 2001).
<u>Source:</u> Mindanao Tri-people's Caucus (MTC)
<u>Date:</u> 2001
<u>Documents:</u> "MTC Position Paper on Relief and Rehabilitation", MTC, 17 October 2001

Availability of the Guiding Principles in local languages

The Guiding Principles have been translated into three Philippine languages (Maguindanaon, Tagalog and Cebuano) by the Ecumenical Commission for Displaced Families and Communities (ECDFC), United Nations Information Center (UNIC) and the United Nations High Commissioner for Refugees (UNHCR).
<u>Source:</u> ECDFC, UNIC and UNHCR
<u>Date:</u> 2001
<u>Documents:</u> UN Guiding Principles on Internal Displacement in Maguidanaon, pdf 35 kb UN Guiding Principles on Internal Displacement in Tagalog, pdf 40 kb UN Guiding Principles on Internal Displacement in Cebuano, pdf 40 kb

Training on the Guiding Principles

<u>NRC Training Workshops</u>
In November 2004, the Global IDP Project of the Norwegian Refugee Council conducted a three-day training on the UN Guiding Principles on Internal Displacement for the Human Rights Commission in Mindanao. The general objective of the workshop was to enhance the capacity of the CHRP key personnel in promoting and protecting the rights of IDPs, especially women and children, thereby strengthening the agency's role as a national human rights institution in advocating for IDPs' concerns. A training-workshop on the UN Guiding Principles on Internal Displacement was held in Quezon City, Philippines, from November 22 to 24, 1999. It was organized by the Ecumenical Commission for Displaced Families and Communities (ECDFC), in cooperation with the Norwegian Refugee Council (NRC).
<u>Source:</u> The Global IDP Project

Date: November 22-24, 1999 & November 2004
Documents:
Report of the November 2004 workshop not yet available.
Workshop on the UN Guiding Principles on Internal Displacement: Quezon City, Philippines 22-24, November 1999, NRC, 1999

Recommendations

Follow-up on the recommendations of the RSG on Internal Displacement (May 2004)

Recommendations following the UN Representative on Internal Displacement' mission to the Philippines (February 2003)

- Main challenge is to ensure the effective translation of government statements and policies aimed at responding to the plight of the internally displaced into practical operations on the ground.
- It is recommended that a national conference on internal displacement be organized to clarify strategies for addressing the problem of internal displacement, including protection and assistance needs, and to facilitate the search for durable solutions.
- Appropriate institutional structures for addressing displacement issues should be established within the Government at all levels, (central, regional and local).
- Collection of disaggregated data is necessary to obtain more accurate information on the internally displaced and their needs, and therefore to target responses more effectively.
- There is a continuing need for better protection of displaced persons, returnees and host communities.
- Government should determine how to ensure the restitution of, or compensation for, lost property and support the resettlement and reintegration of those displaced who do not wish to return.
- Attention must also be given to addressing the new displacement resulting from the anti-terrorism measures.
- Government should act on its proposed initiative to host a regional conference on internal displacement and migration issues.
- Deep-seated causes of displacement must also be addressed.

"46. Based on his discussions with the authorities at the national, regional and local levels, the Representative is of the view that government authorities have made important efforts to address the problem of displacement in the country. In particular, they have acknowledged the existence of the problem and designated the National Disaster Council as the coordinating body for the actions of other relevant

departments, such as the DSWD, in response to the needs of the displaced. The. Building on the above overview of the situation in the country the Representative makes the following recommendations:

47. Closing the gap between government policy on internal displacement and implementation on the ground. To bridge the gap between the positive statements of the Government and the conditions on the ground, enhanced formulation, articulation and wider dissemination of a comprehensive and integrated national policy on internal displacement is needed. This should serve to clarify strategies for addressing the problem of internal displacement, including protection and assistance needs, and to facilitate the search for durable solutions. Toward this end, the organization of a national conference on internal displacement, with the participation of representatives from the Government at the national, regional and local levels, non-governmental organizations (NGOs), civil society, United Nations agencies and other international partners is recommended. The resulting policy and strategies should be widely disseminated throughout the country, especially in areas of displacement outside of the capital, and specifically among internally displaced communities.

48. Establishing appropriate institutional structures and mechanism of coordinated response. Building upon mechanisms already in place, appropriate institutional structures for addressing displacement issues should be established within the Government at all levels, (central, regional and local), including the appointment of focal points to facilitate coordination within the Government and with United Nations agencies and other partners in the international community on issues of internal displacement.

49. Collecting disaggregated data on the internally displaced population. The collection of disaggregated data is necessary to obtain more accurate information on the internally displaced and their needs, and therefore to target responses more effectively. In this connection, it is also crucial to develop a system to identify the numbers and nature of displacement which reportedly has resulted from the anti-terrorism operations currently under way in the country.

50. Strengthening efforts to address the continuing needs of displaced communities and the returnees. Although a significant level of assistance is being provided to the internally displaced by governmental bodies, such as the Department of Social Welfare and Development (DSWD), as well as United Nations agencies, the donor community and NGOs, there is a continuing need for better protection of displaced persons, returnees and host communities. Although the gap between national policies and the level of implementation, particularly in Mindanao, made the affected populations feel isolated, neglected and alienated, the national authorities' recognition of this gap is an important and encouraging first step towards rectifying the situation.

51. Providing assistance for return, resettlement or local integration. During his visit to the areas affected by the conflict in central Mindanao, the Representative noted that significant assistance had been provided for the return and/or resettlement of the displaced. However, in many areas, there was evident lack of basic services. Moreover, most of the returnees had lost assets essential to their subsistence, such as animals or land, in the course of the hostilities. As part of its response to internal displacement, the Government should determine how to ensure the restitution of, or compensation for, lost property. In addition, in light of the trauma evidenced among some displaced persons with whom the Representative met and their expressed wish not to return to their areas of origin until they are entirely clear of military presence, the Government should also support the resettlement and reintegration of those displaced who do not wish to return.

52. Responding effectively to new displacement. While solutions are being pursued for those displaced in 2000, attention must also be given to addressing the new displacement resulting from the anti-terrorism measures. Notwithstanding the sensitivity of the terrorism issue, both the Government and the international community need to take measures to ensure protection against arbitrary displacement and providing protection and assistance to newly displaced persons.

53. Disseminating and providing training on the Guiding Principles on Internal Displacement. Training in international humanitarian law and human rights law, including the Guiding Principles, for the security

forces, regional administrators and other pertinent officials whose mandates and scope of activities encompass displaced communities should serve to reinforce and enhance the effectiveness of the Government's efforts to address internal displacement. Moreover, the Guiding Principles can be a useful tool for the Government in developing policies, legislation and strategies for dealing with displacement, including providing protection against arbitrary displacement and protection and assistance to displaced persons.

54. Developing a regional approach. Although internal displacement is a domestic problem, in the Philippines there are important linkages with similar patterns in other countries in the region. In this connection, it is worth recalling that the Government, while acknowledging the problem of internal displacement and the need to strengthen its protection role, also recognizes the link between the problem in the Philippines and the situation in neighbouring countries and the need to draw lessons from their experiences. The Representative encourages the Government to act on its proposed initiative to host a regional conference on internal displacement and migration issues and is prepared to cooperate with the authorities on this initiative.

55. Enhancing the role of, and increasing international support for, the United Nations country team. In the Philippines, United Nations agencies have established several working groups which appear to serve as valuable mechanisms for channelling their respective concerns with regard to assistance and protection to internally displaced persons and discussing appropriate responses. However, the Representative is of the opinion that these initiatives need stronger institutional support to be more effective.

56. Seeking durable solutions to the conflict. Finally, while responding to the immediate protection and assistance needs of the internally displaced is pressing, it must be underscored that, in many instances, the root causes of the conflicts resulting in internal displacement are the acute disparities associated with diversities, the marginalization, underdevelopment and lack of capacity for local governance in the disadvantaged region. These deep-seated causes must also be addressed. The ultimate objective should be to create a national framework which accommodates all groups in the country and ensures the dignity of all peoples irrespective of race, ethnicity or religion. The Representative witnessed a significant degree of willingness on both sides in the conflict to continue their efforts towards a peaceful resolution of the conflict. At the same time, there was clearly a need to promote national awareness of the root causes of the conflict in Mindanao in order to achieve a just, comprehensive and sustainable peace." (CHR 3 February 2003, pp. 16-18)

ABBREVIATIONS AND ACRONYMS

Abu Sayyaf	Islamic rebel Group
AFP	Armed Forces of the Philippines
ARMM	Autonomous Region in Muslim Mindanao
Barangays	Smallest political unit in the Philippines
CAFGU	Citizens Armed Forces Geographical Unit
CAHRIHL	Comprehensive Agreement on Human Rights and International Humanitarian Law
CCCH	Coordinating Committee on the Cessation of Hostilities
CHED	Commission on Higher Education
COSLAP	Commission on the Settlement of Land Problems
CPP	Communist Party of the Philippines
CRED	Centre for Research on the Epidemiology of Disasters
CSWD	City Social Welfare and Development
DECS	Department of Education, Culture and Sport
DOH	Department of Health
DSWD	Department of Social Welfare and Development
ECDFC	Ecumenical Commission for Displaced Families and Communities
GRP	Government Republic of the Philippines
ICESCR	International Covenant on Economic, Social and Cultural Rights
IFFC	Independent Fact Finding Mission
LGU	Local Government Unit
MILF	Moro Islamic Liberation Front
MNLF	Moro National Liberation Front
MRDP	Mindanao Rural Development Program
MSF	Médecins sans Frontières
NDCC	National Disaster Coordinating Council
NDF	National Democratic Front
NEDA	National Economic and Development Authority
NPA	National People's Army
OCD	Office for Civil Defense
PAHRA	Philippine Alliance of Human Rights Advocates
PNRC	Philippines National Red Cross
QRT	Quick Response Team
SPCPD	Southern Philippines Council for Peace and Development
SZOPAD	Special Zone of Peace and Development
TFDP	Task Force Detainees of Philippines
TFT	Task Force Tulong
UDHA	Urban Development and Housing Act
UNDP	United Nations Development Program
UNHCR	United Nations High Commissioner for Refugees
UNICEF	United Nation's Children Fund
USCR	United States Committee for Refugees

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